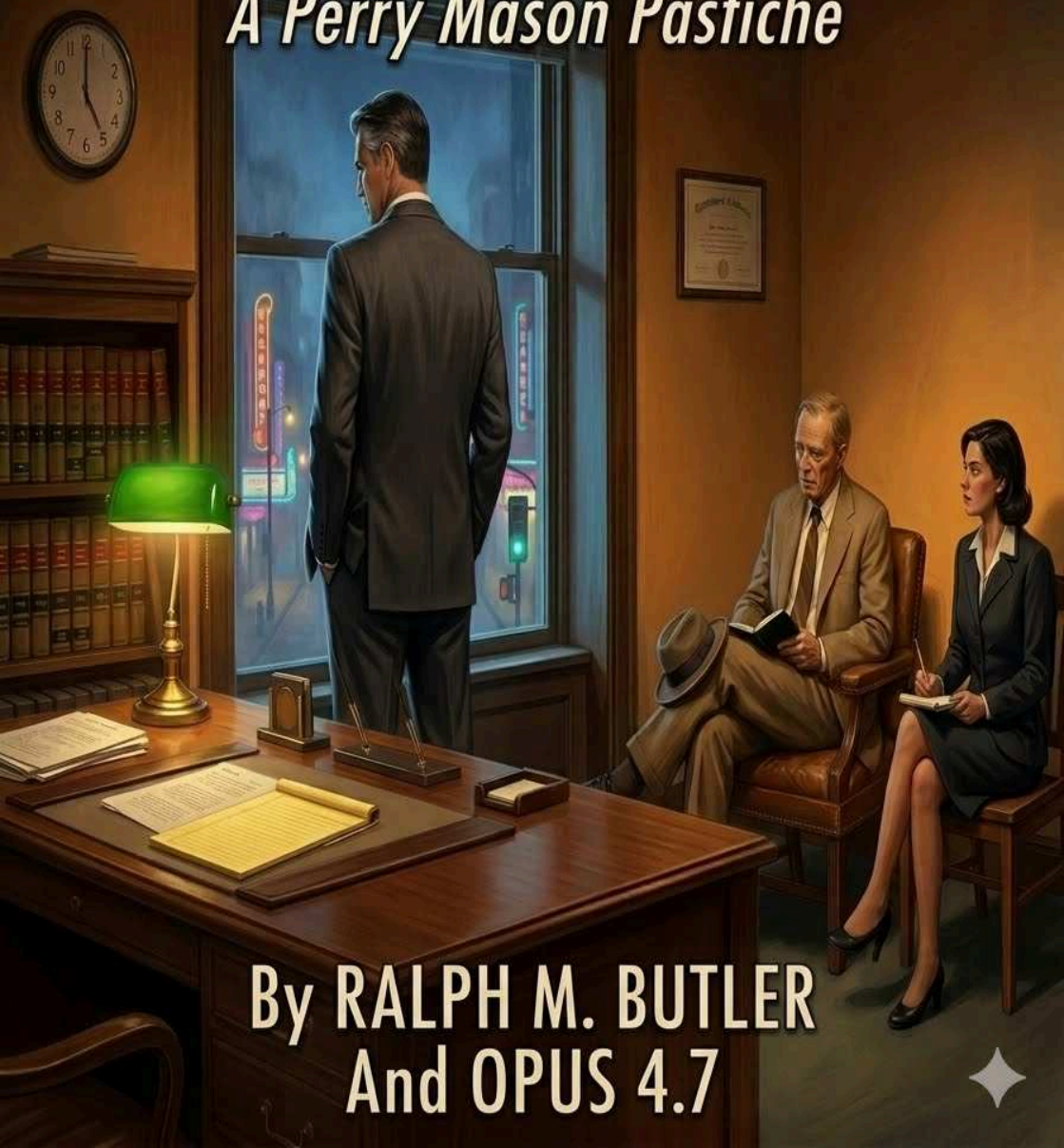


THE CASE OF THE BORROWED ALIBI

A Perry Mason Pastiche



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And OPUS 4.7



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Chapter 1

Della Street was at the typewriter with the morning's *Times* open on the corner of her desk and a cup of coffee gone half-cold beside it. She was medium-height, trim, dark hair cut just below the ear, a string of small pearls at the collar of a slate-gray suit. She was finishing a letter when the door from the corridor opened and a man came in.

He was somewhere in his middle thirties, athletic-muscled, deeply tanned, the tan running into the cuffs of a faded denim jacket. He wore jeans. Sandy-brown hair touched the back of his collar in a style two years too long for the building they were standing in. His hands looked like they had been opening prop cases or breaking falls for fifteen years; the knuckles were marked, and the marks were old. He had blue eyes set close to a flat nose, and crow's-feet at the corners from squinting on lit stages. He took the office in. The typewriter, the *Times*, the hat rack, Della at the desk — in that order.

"I need to see Mr. Mason," he said. "Five minutes is plenty."

"Mr. Mason has appointments this morning, Mister—?"

"Bannon. Hal Bannon."

"Is Mr. Mason expecting you?"

"He will be." He grinned. The grin was practiced. "Tell him a friend of a friend sent me. Tell him it's about a thing I said to some folks downtown."

Della held him in the gray-blue eyes for a beat. "Have a seat, Mr. Bannon."

She picked up the intercom and pressed the bar. "Chief, there's a Mr. Hal Bannon in the outer office. He says it's about a thing he told some folks downtown. He has no appointment."

Mason's voice came back through the intercom. "Send him in."

She set the receiver down and made a small notation on the appointment book that wasn't an appointment.

Bannon was already up. He went past her desk on his way to the inner door, looked at the cedar box of cigarettes she kept for clients, picked one out, and lit it from her lighter on the way past.

Her pen stopped half a stroke. Then she finished the stroke.

Mason was at the window with his back to the room. He turned when Bannon came in.

He was tall and broad through the shoulders, and the suit he wore had been cut for him a couple of seasons back and would last him a few more. His hair was dark, edged with gray at the temples. His eyes were level and gray. Bannon, coming through the door on the outside of his own swagger, slowed by a quarter-step at the look that came across the desk to meet him.

“Sit down, Mr. Bannon.”

Bannon sat. He set his elbows on the chair arms, pulled his cigarette twice, and looked around the office.

“Nice setup. Smog’s brown enough today to charge a man for it.”

“What’s on your mind?”

“I might have a problem with a thing I said to some folks downtown.”

“What folks?”

“A grand jury.”

Mason came around the desk and sat in the chair behind it. He laid both hands flat on the blotter.

“What did you say?”

“I told them I was drinking with a man at his club from eight at night until midnight.”

“And were you?”

“No.”

“Where were you?”

Bannon pulled the cigarette again. "On a soundstage at Paramount, doing a high-fall for Mannix. From around six. Got off the rig around ten, give or take."

"Why did you tell the grand jury you were at the club?"

"Because I'd been telling the man's wife and the man's housekeeper and the man's secretary the same story for the previous three weeks. They subpoenaed me yesterday. I went in cold. I gave them what I'd been giving everybody else."

"Who's the man?"

"Walter Hollister."

"Argonaut Pictures Walter Hollister?"

"That's the one."

"What's the club?"

"The Magnolia. Up in the hills."

Mason pressed the intercom bar. "Della, would you bring your book in, please."

She came in with the steno pad. She didn't look at Bannon. She took the chair to the right of the desk and opened the pad on her knee.

"Go on, Mr. Bannon," Mason said. "From the top. The night in question was when?"

"A week ago Tuesday."

"And Mr. Hollister had asked you, prior to that night, to say you were drinking with him at the Magnolia Club from eight to midnight."

"Yeah."

"Had you done this for him before?"

Bannon glanced at the steno pad and shifted in the chair. "Once or twice."

"Once or twice."

"Twice."

“Same arrangement?”

“Same arrangement.”

“Same nights of the week?”

“Tuesdays. He had a standing thing on Tuesdays. A lady-friend.”

“All right. The first two times, what was Mr. Hollister actually doing?”

“What I just said. Lady-friend.”

“The third time.”

Bannon’s jaw worked.

“That’s what I want to know, Mr. Mason. I went in there yesterday morning and gave them the story. I came out around two in the afternoon. By four I had a guy on a coffee break tell me Mrs. Hollister was found dead in her bedroom Wednesday morning and the police had pulled the husband in for questioning.”

“A guy on a coffee break.”

“A grip I know on the Mannix unit. He reads the trades.”

“You hadn’t seen the news.”

“I’d been up since five Tuesday morning and on the rig until ten that night and I’d slept through Wednesday and worked Thursday and worked Friday, and the trades aren’t where I look.”

Mason’s hand moved an inch on the blotter and stopped.

“What were you paid for the third one?”

“Two grand.” Bannon caught himself. “I mean — fifteen hundred. The last one was a grand.”

Della’s eyes lifted from the steno pad. Mason’s pen tapped the blotter once. Della went back to the page.

“In what form.”

“Cash. Envelope. He’d hand it to me at the club a couple of nights after the date. I’d sign in as his guest, we’d have a drink, he’d pass me the envelope going out.”

“Did you sign in last Tuesday.”

“No, sir. He paid me at lunch the Thursday before. I never went to the club that night.”

“You sold him an alibi for a club you weren’t at on a night his wife was killed and you repeated the alibi to a grand jury without knowing his wife was dead.”

“That is correct, Mr. Mason.”

“Did you tell the grand jury you’d sold this alibi to him before.”

“They didn’t ask.”

“Did you volunteer it.”

“No, sir.”

“Did you tell them anything other than that you were at the Magnolia Club drinking with Walter Hollister from eight until midnight on Tuesday a week ago.”

“I told them I had a couple of bourbons. They asked me what he had. I said he had a Scotch and water. I gave them the bartender’s first name. I gave them the parking attendant. The guy is named Tony. I see him every other week.”

“What else.”

“That was about it. Maybe twenty minutes on the stand. Burger himself questioned me. I held up. Got out clean.”

“Got out clean.”

“Yes, sir.”

“Mr. Bannon, you committed perjury yesterday in front of a grand jury investigating a homicide and you got out of the room by giving them the parking attendant’s first name. You did not get out clean.”

Bannon looked at his cigarette. He hadn't tapped it; the ash was bent.

"Walter's a decent guy, Mr. Mason. He didn't do this."

"That isn't the question I'm trying to answer this morning."

Bannon leaned forward to put the cigarette in the ashtray on Mason's desk and then sat back. His knuckles had gone the color of the chair.

"Look, Mr. Mason — about the fee — I'm a little short until the next picture cycles in—"

Mason's hand went flat on the desk. Bannon stopped.

"We'll come to the fee. Della, take down two things. One, Mr. Bannon is going to live at a motel in Burbank that I'll name in a moment. Two, Mr. Bannon is going to register at that motel under a name I'm going to write down for him. Mr. Bannon, you will not go home tonight. You will not call your agent. You will not call Mr. Hollister. You will not call Mr. Hollister's housekeeper or Mr. Hollister's secretary or anybody at the Magnolia Club. You will not call the man on the Mannix unit who reads the trades. When you call your unit to check in, you tell them you've been with a girl in San Diego for the weekend. Are we clear?"

"We're clear."

"Della, the Sequoia Court motel on Olive. Phone first. Two weeks paid up front, in cash, which I'll send a runner with."

"Yes, Chief."

Mason took a slip of paper from the blotter, wrote on it, and turned it around so Bannon could read it across the desk. Bannon read it upside down and then right way up. The corner of his mouth started toward a smile and stopped at the look on Mason's face.

"This is the name you sign," Mason said. "Do not improvise. Do not initial with your real first letter. Sign exactly what is written."

"Yes, sir."

Della took the slip and went out to her desk and picked up the phone.

Mason stood up and went to the window again with his back to the room. He spoke without turning his head.

“You’ll go from here to the motel. You will not stop on the way. You will not pick up clothes at your apartment. We’ll send a man to your apartment. You’ll write down a list, before you leave this office, of what you need.”

“Mr. Mason, about the fee—”

“Mr. Bannon, a man who repeated a paid alibi to a grand jury yesterday is in no position to negotiate a fee this morning. We’ll come to it.”

Bannon was quiet.

“You’ll wait at the motel for Mr. Drake. You’ll cooperate with him fully. You will tell him every detail you have left out of this conversation, of which there are several, beginning with the actual cash figure and continuing through to whatever you owe Sully in Burbank.”

Bannon’s eyes lifted.

“I—”

“Mr. Bannon.”

“Yes, sir.”

“Sully runs a poker game out of the back of the Crown Tap on Verdugo. I read the police log three days a week. Don’t be tedious.”

“No, sir.”

Della came back in. “The Sequoia Court has a unit on the back side of the building. Two weeks paid Friday morning. Twelve dollars a night.”

“Thank you. Mr. Bannon, write your list.”

Della handed Bannon a pad and a pen. He wrote on it. While he wrote, Mason picked up the office phone and dialed.

“Paul. Walk over.”

He set the receiver back.

Bannon finished the list and handed it across. He looked at Mason and looked at Della and looked at the door and back at Mason.

“Mr. Mason — thank you.”

“Della will see you down.”

She stood up. “Mr. Bannon, I’ll get you a cab on Spring.”

He went out behind her.

Mason stood at the window. His knuckles rested against the frame.

Della came back inside. She set the steno pad on the desk and stood there with her hands clasped at her waist.

“He took one of the cedar-box cigarettes on his way in,” she said. “Without asking.”

“Yes.”

“He said two grand and he meant two grand.”

“Yes.”

She held him in the gray-blue eyes a half-second longer and went back to the outer office.

A few minutes later the corridor door opened.

Paul Drake came in with his head pushed forward on his long neck and a notebook already open in his hand. He was tall, lean, a little stooped at the shoulders, and the off-the-rack suit he wore had been hung up in something that wasn’t quite a closet. His sandy hair had gone thin at the crown. Pale-blue eyes drooped at the corners in a perpetual half-amused way.

“Della. Beautiful.” He stopped at her desk. “Why is the Chief calling me at nine fifty in the morning.”

“He’ll tell you.”

Drake went on through. He sat in the chair Bannon had vacated. He flipped to a fresh page.

“Stuntman,” Mason said. “Mid-thirties. Walter Hollister bought an alibi off him for last Tuesday night, eight to midnight, Magnolia Club. Helen Hollister was killed in her bedroom that night. The stuntman repeated the alibi to a grand jury yesterday morning under Burger himself.”

Drake wrote it down. “Where is he now?”

“Della’s putting him in a cab. He’ll be at the Sequoia Court in Burbank in an hour. Registered as—” Mason picked up the slip from the blotter, looked at it, set it back down. “She’ll give you the name on your way out. Twelve dollars a night. Two weeks paid up front, cash. I want a runner over there with the cash by noon.”

“That’s eight days of doughnuts I’m not having, Perry.”

“You’ll cope.”

“Tail on him?”

“No. Let him think the door is open. He’ll sit if he thinks he can leave.”

“On Hollister?”

“Yes. Whatever you’ve got. Names of the household. The wife’s housekeeper, the secretary, anyone Hollister had at the club Tuesday a week ago who’d vouch he was there. I want to know who he actually was with.”

“Hal Bannon is the stuntman?”

Drake wrote it.

“I want everything on the night,” Mason said. “Tuesday a week ago. The Magnolia. The valet, the bartender, the steward. Anyone who saw Hollister or who didn’t see him. Anyone who saw Helen Hollister between four in the afternoon and the time she went to bed. Anyone in the household. The housekeeper. Whoever was on at the gate, if there’s a gate.”

“There’s a gate.”

“Then whoever was on it.”

Drake closed the notebook.

“Perry, you know what it costs me to put a tail on a producer who runs a country club out of his back pocket?”

“I’ll cover it.”

“You always cover the cost. The cover is the problem.”

Mason almost smiled. He didn’t.

“You’ll bill me by Friday.”

“I’ll bill you by Wednesday.”

Drake stood up. He stopped at the door.

“Where was the stuntman actually?”

“Paramount soundstage. High fall for Mannix. Off the rig around ten.”

“Then we need the call sheet.”

“We need the call sheet.”

“All right.”

He went out. He stopped at Della’s desk on his way past. She had a slip of paper ready for him. He looked at it, looked at her, said nothing, and pocketed it. He went down the corridor.

Mason stood at the window with his back to the room.

In the outer office Della began to type.

Chapter 2

The bureau on the third floor ran on bad coffee and the noise of typewriters. Desks pushed together two at a time, paperwork in piles soft at the corners, a hat rack by the door with three hats on it and one with the crown punched in. The window was open to the smog. A telephone rang somewhere in the back, and somebody picked it up on the second ring.

Drake came in past the front desk with two paper bags from the place on Spring under one arm and his notebook in the other hand. He walked the length of the bureau without breaking stride — past the Burglary desks, past Robbery, past the bulletin board with its mug shots and its mimeographed bus-schedule for the night shift — and stopped at a back-corner desk where a heavysset man in shirtsleeves and a loosened tie was working through a file with a pencil eraser between his teeth.

Drake set both bags on the corner of the desk. He sat on the corner where he always sat. The wood there was a shade lighter than the rest. The sergeant looked up over the top of his glasses, took the bags in, and went back to the file.

“Paul.”

“Morning.”

The sergeant pushed the file two inches to the left and one of the bags two inches to the right.

“What did Reilly say about the new captain?”

“He said the new captain put him on six-day weeks until the heat lifts. He put me on six-day weeks too.”

“You retire when, again?”

“Fourteen months. Fourteen months and a Tuesday.” The sergeant lifted the bag, looked into it, set it back down. “You hear about the kid in MacArthur Park?”

“He came up?”

“He came up Sunday. Cause-of-death undetermined.” He shook his head. “Undetermined for me means a bookie I’ll never get to.”

“You’ll get to him.”

“Not this side of fourteen months and a Tuesday.”

Drake grinned. He had his pen out and a clean notebook page open against his knee.

“What’ve you got on the Hollister?”

The sergeant set the file aside and reached for a thinner one that had been sitting under his elbow. He opened it.

“TOD nine to eleven. Strangled. Ligature, fine fabric, no fiber recovered. No forced entry. Husband’s still inside on it; Burger personally. Talk is filing inside the day, but Burger’s slow-walking it.”

Drake wrote it. He underlined *no fiber recovered* with a single mark of the pen.

“Marks on her?”

“Two on the face. Open hand more likely than fist. Thumb-sized bruise on the upper arm.”

“They figure she stood up?”

“They figure she got it at the bedroom door.”

“Sign of struggle in the room?”

“A glass off the nightstand. Lampshade crooked.”

“Time of the housekeeper’s call?”

“Eight-twelve Wednesday. She was in the kitchen at eight, started the coffee, went back to wake her, found her, came back down to the kitchen telephone.”

“Anything missing?”

“Nothing missing. Jewelry was in the box. Two hundred forty dollars in the husband’s drawer.”

“Who’d they have at the house Wednesday?”

“Two from Homicide, two from the precinct. Tragg by ten.”

“Who’s in the room with Hollister now?”

“Tragg and a kid out of Burger’s office named Carstairs. They’ve had him since eight-thirty. He’s keeping his head. Says he was at the club drinking with Bannon from about eight till around midnight, home after, didn’t kill his wife.” The sergeant turned a page in the file. “Burger came down at nine. They took ten minutes in the corridor. Burger went back upstairs.”

Drake wrote it. He closed the notebook and put the pen in his shirt pocket. He stood off the corner of the desk.

“Thanks for the trouble.”

“Thanks for the sandwiches.”

Drake was at the door. He turned back.

“Frank.”

“Don’t get me killed, Paul. I retire in fourteen months and a Tuesday.”

The diner was three blocks from the courthouse and a long way from new. Counter and stools, a long mirror behind the urn, two payphones — one in the back near the kitchen, one in the vestibule by the front door. The smog came in flat through the front window. The morning’s *Times* sat folded open between two stools, with a sugar shaker keeping it down. The headline was about a cease-fire in Cambodia that had not yet held.

Mason was at the counter on a stool near the front. He had a plate of eggs that had been worked over and not finished, and a coffee gone the color of weak tea, and a fork in his right hand set on the rim of the plate. He was not looking at the *Times*.

Drake came through the front door, took the diner in with one glance, and slid onto the stool to Mason’s left. He flipped the notebook open against the counter. The pale-blue half-amused droop in his eyes was as it always was; the rest of him needed coffee. The counter girl came past with the urn,

held it over Mason's cup, looked at him; Mason shook his head an inch. She poured Drake's. She moved on.

Drake did not sit properly before he spoke.

"TOD nine to eleven. Strangulation, ligature, fine fabric, no fiber recovered. No forced entry. They've still got Hollister inside. Burger personally. Talk is filing inside the day, but Burger's slow-walking it."

The fork in Mason's right hand had been about to lift the last bit of egg off the plate. It stopped at *no forced entry*, and went back to the rim of the plate, and stayed there. Mason looked at the long mirror behind the urn. Then he looked at the page of Drake's notebook.

"Marks on her?"

"Two on the face. Open hand more likely than fist. Thumb-sized bruise on the upper arm. They figure she got it at the bedroom door."

"Sign of struggle?"

"Glass off the nightstand. Lampshade crooked. That's it."

"Anything missing?"

"Nothing. Cash was in the husband's drawer. Jewelry in the box."

"Who'd they have at the house Wednesday?"

"Two from Homicide, two from the precinct, Tragg by ten."

Drake drank a half-inch off the top of his coffee. He turned the page of the notebook.

"My guys have been calling in since seven. Talk over there is two-fifty bond when it goes. They've got the housekeeper for the morning, the sister in Pasadena for the last phone call, and one of the clubmen who'll say the marriage was cool the last six months."

"Clubmen at the Magnolia?"

"Two so far. Names by tonight."

"Get the names."

"I've got somebody on it."

"Who's representing him?"

"An old corporate guy named Putnam. Handles Argonaut's contracts and a couple of the boys at Twentieth. Hasn't been in front of a jury since '54."

"He'll need somebody."

"He'll need somebody."

"Has Hollister talked to anyone outside the bureau since Wednesday?"

"Putnam came in to see him at the bureau for thirty minutes Thursday morning. Burger let it happen and watched it through the glass. The daughter at school back east got him on the phone last night for ten minutes. That's all anybody can find."

"He has a daughter?"

"From the first marriage. She's at Wellesley. She's flying out tomorrow."

"Tomorrow."

"Tomorrow noon."

Mason set the fork on the plate. He turned his head a quarter and looked at Drake — gray, level — and then he looked at the urn behind the counter.

"Excuse me a minute."

He took change from his suit-coat pocket as he stood up.

The payphone was in the vestibule between the inner door and the front door. Mason fed the slot and dialed the Sequoia Court.

The unit at the Sequoia Court was on the back side of the building, ground floor, one window on a parking lot of patched asphalt and a swimming pool nobody had used since June. The television was on and silent. The contestant on a daytime game show had won something behind a curtain and was clapping at the curtain with both hands. The ashtray on the nightstand held the bent ends of three cigarettes and a fourth still going. The air conditioner under the window was working hard and audibly. Hal Bannon

was on the bed in a t-shirt and jeans, the denim jacket draped over the back of the chair, his hair flattened on one side from the strange pillow, an empty Coke bottle on the carpet by his foot. He had not shaved. He had been at the window twice that morning and he hadn't seen anything either time.

The phone rang. He picked it up on the second ring.

"Hello."

"Mr. Bannon."

"Mr. Mason." He came up off the edge of the bed like a fighter at the bell.

"Listen to me. They have a time of death of nine to eleven. Strangulation, ligature, no fiber. No forced entry. Burger is filing on Hollister inside the day."

"Mr. Mason, I told the grand jury I was with him from eight to midnight."

"You did. Now we deal with that."

"I told them about the bartender. I told them about Tony in the lot. They wrote it down."

"They did. Now stay where you are."

"Mr. Mason, let me call my agent. He's got me up for a thing on Wednesday and if I don't ring him by tonight he's going to think I—"

"Did you call your unit?"

"This morning. Said San Diego."

"Then your agent does not need to know anything, Mr. Bannon. Your agent knows where you'd be."

There was a small silence. Hal Bannon could be heard breathing through the phone.

"Mr. Mason — my truck. It's in the lot at Paramount. They tow it after Friday."

"Your truck stays in the lot at Paramount. They will not tow it. Drake will pay the lot man not to."

“Mr. Mason.”

“Yes.”

“What if I went over to Walter’s. Just ten minutes. Just to look at the man and tell him to keep his mouth shut and not make this any worse than it is.”

There was a pause on the line that was not long enough to be a pause.

“Mr. Mason — Sully’s going to come around looking for me, I owe him three—”

“Mr. Bannon.”

“Yes, sir.”

“You are not going to go to Walter Hollister’s house. You are not going to telephone Walter Hollister’s house. You are not going to telephone Walter Hollister’s lawyer or Walter Hollister’s secretary or Walter Hollister’s housekeeper, you are not going to telephone the Magnolia Club, you are not going to telephone the man on the Mannix unit who reads the trades, and you are not going to settle a poker debt with Sully or any other party out of the back of the Crown Tap on Verdugo. You are going to stay in room twelve at the Sequoia Court and you are going to read the *Times* a runner is going to bring you at noon and you are not going to leave that room for any reason that does not involve your own cardiac arrest. Are we clear?”

“We’re clear.”

“Good morning, Mr. Bannon.”

Mason set the receiver on the hook.

In the unit at the Sequoia Court Hal Bannon held the receiver against his ear two seconds longer, then set it in the cradle, then sat down on the edge of the bed and looked at the silent television. The contestant had won something else. The audience was clapping. The audience could not be heard. The fourth cigarette had burned down to the filter in the ashtray and gone out.

Mason came back to the counter. He sat. The coffee in his cup was cold and he did not touch it. The counter girl had brought the bill and laid it face-down between the *Times* and the sugar shaker. Drake had closed the notebook and turned a half-circle on the stool and was watching the front of the diner for nothing in particular.

“He all right?”

“He’d like to go visit Walter.”

“He’d like to.”

“He won’t.”

Drake nodded. He turned back to the counter. His coffee was gone.

“How long is he in there?”

“However long it takes.”

“He’s paid through two weeks.”

“Pay another two on Monday if necessary.”

“On Monday.”

Mason turned the bill over with one finger and did not pick it up. He looked at the figure on it. He looked at Drake.

“Paul.”

“Yes.”

“Who else has a key to that house?”

Drake set the cup down and reached for the notebook.

“Housekeeper. Husband, obviously. Wife, but she lived there. Daughter at Wellesley might have one — I’d have to check. Sister — no, the sister’s in Pasadena, and she didn’t have one. Could be somebody in Hollister’s circle who got handed a spare once and never gave it back. Could be the yard man. I’d want to ask the housekeeper.”

“Ask the housekeeper.”

“I’ll ask her this afternoon.”

He wrote it down. He didn't ask why. He turned the page.

"Frank's going to eat one of those sandwiches in three bites, Perry. The other one in two."

"Put it on the bill."

"You'll get a bill on Friday that includes the sandwiches, a cab back from the bureau, and a phone call I've got to make at four to a man who doesn't take calls at four. The Crown Tap is going to be on the bill too, by Tuesday."

"I'll see it next Wednesday."

"You'll see it Friday and you'll pay it the Wednesday after."

Drake grinned and pocketed the notebook.

Mason picked up the bill, looked at the figure on it once more, and laid two singles and a quarter on the counter on top of it. He stood. Drake stood. The counter girl was at the urn at the far end and did not turn.

The smog through the front window had gone the color of weak tea.

They went out through the vestibule, past the payphone, into it.

Chapter 3

Friday afternoon. Hollister was still at the bureau and Drake had been working since Wednesday. Mason came in through the outer office on the eighth floor, where one of the clerks was on the phone and another was running a typewriter and the cleaning man was wiping a stripe of furniture wax along the corner of a desk where somebody had rested a coffee mug. He nodded at the woman nearest the door and went on through. The door to Drake's private office was open. Drake was at his desk with the notebook open in front of him and a stack of typed reports on the corner of the blotter and an empty ashtray for clients beside it. The desk lamp was on. The window faced west; the light coming through it had gone amber on the file boxes stacked by the door.

Mason took the chair opposite the desk and set his hat on the blotter.

"Della?"

"At the typewriter."

Drake nodded. He closed a different file on the corner of the blotter and pushed it under his elbow. He turned the notebook around so the open page faced both of them.

"I've got most of what you asked for. Household. Magnolia. Helen's last week. The runner went over to the Sequoia Court at noon."

"How's our friend?"

"Eating. Sleeping. Has gone twice to the front desk to complain about the air conditioner. Hasn't tried to leave."

"Good."

"Coffee's an hour cold but I can have one of the girls call out."

"No."

Drake pulled the notebook a half-inch closer.

"Household first."

"Household first."

“The housekeeper. Mrs. Aguirre. Fourteen years with the family. Sleeps in a room off the kitchen. Was in the house Tuesday night, went to her room at quarter past ten, didn’t hear anything overnight. Was up at six-thirty Wednesday morning. Came on duty in the kitchen at eight, started the coffee, went up to wake Helen. Found her then.”

“Heard nothing in the night?”

“Heavy sleeper. Takes half a sleeping powder before bed. Has for ten years.”

“She has a key?”

“Front, back, garage, and the box at the gate.”

“Box at the gate?”

“There’s a gate at the bottom of the drive. No man on it — Hollister never put one on. Combination box on the inside. Household — housekeeper, husband, wife.”

“Anyone else have the combination?”

Drake’s pen tapped the page. “I asked the housekeeper this morning. She gave me the three on the household. Hired help has it separately — gardener, pool man, that level. Anyone outside those two categories, I’ll be working through Monday.”

“Monday.”

“Monday.”

“The gardener?”

“Mexican fellow named Reyes. Tuesdays and Fridays. Has the gate box and a key to the toolshed. No key to the house. At the property Tuesday morning eight to noon, not there Tuesday evening. Wife and four kids in Boyle Heights vouches for him; my man talked to the wife and the eldest boy.”

“Anyone else around the place?”

“Pool man on Wednesday afternoons. Old Italian fellow named Sabatini, has done the pool eight years. Has the gate box, no house key. Leaves the toolshed open while he works. Wasn’t on the property Tuesday.”

“The secretary at Argonaut?”

“Mrs. Brockman. Fifty-some, widow, twenty-two years on the lot. Started with Hollister at the Argonaut bungalow in ‘57. No key to the house. Office and bungalow only. Hasn’t been to the Hollywood Hills on her own account in three years. She has Hollister’s office diary. I’m working on getting her to let me look at the last month by Monday.”

“The daughter?”

“Wellesley, junior. From the first marriage. Twenty years old. She’s at the Beverly Hilton — flew in at noon today, has a room until Hollister’s out. Hasn’t been to the house this week. She had a key from her holidays at the house in high school but I don’t know whether she’s still carrying it. She’s seeing her father at the bureau tomorrow morning under Burger’s supervision.”

Mason waited. His thumb found the brim of the hat on the blotter and stayed there.

Drake turned the page.

“Helen’s last week. Datebook. Lunch Monday with a woman from the Children’s Hospital benefit committee — Mrs. Sandler, we’ve called her. Errands Tuesday morning — the dressmaker on Wilshire, the bank, a stop at I. Magnin. Charity board meeting Tuesday afternoon at three, ran until five-thirty. Home by six. Then the housekeeper takes it from there.”

“Phone?”

“Sister in Pasadena, four times last week. The dressmaker once. The charity board secretary twice. Three numbers I haven’t traced. I’ll have those Monday.”

“Anything to a number she hadn’t called the previous month?”

Drake glanced at him over the top of the page. “I’d have to put a man on the prior month’s bill. I don’t have the prior month yet.”

“Get it.”

“All right.”

“Bank?”

“Two hundred and forty out of household on Friday, regular. Charity check on Wednesday for fifty. Nothing out of pattern.”

“Where’s the household two-forty go?”

“Forty to Mrs. Aguirre weekly. Fifteen to Reyes. The rest to groceries and the cleaner. The dressmaker is separate.”

“What does Mrs. Aguirre say about Tuesday evening?”

“Helen came home a little after six, ate dinner alone in the breakfast room — Hollister was at the Magnolia. Read in the front parlor until nine. Phone call to her sister in Pasadena ending at quarter to ten — Mrs. Aguirre says she’d been on fifteen minutes. Said goodnight on her way upstairs a few minutes later. Mrs. Aguirre went to her own room off the kitchen at quarter past, took her powder, and slept through.”

“Quarter past ten.”

“Quarter past ten.”

The clerk who had been on the phone in the outer office came through the door with a yellow message slip in her hand. She crossed the room, set the slip on the corner of Drake’s blotter, and went out. Drake glanced at the slip, slid it under the edge of the notebook, and turned the page.

“The Magnolia. Tuesday a week ago. Steward’s guest book, bartender’s chits, what my men got on the phone today. Sid Karp, the agent — in at six, out at quarter past nine. Mort Crowley, old-time member, came in for dinner around seven-thirty, was at the bar until ten. Doc Rinaldi, internist with a Beverly Hills practice — played cards in the back room from eight to eleven-twenty. Arthur Reisman. The partner. Magnolia until eight, home after midnight, wife and housekeeper corroborate.”

Mason’s eyes dropped a half-second to the line on the page where the name sat, and came back.

“Crowley sat with anybody?”

“Two men from a real-estate office on Highland. They left when he did.”

“Karp?”

“Drank alone at the bar, met Crowley’s table for ten minutes around quarter to eight, went back to the bar.”

“Doc Rinaldi’s card game?”

“Three other doctors. Wives picked them up at eleven-thirty.”

“The bartender?”

“Eddie Salinas. Eight years on the bar. Pulled tickets from six to one Tuesday a week ago. I’ve got my man dropping in tomorrow night.”

“What does Eddie say so far?”

“My man hasn’t seen him. I have the chits but they’ve been sitting in my outer office since lunch.”

“Go through them.”

“Tomorrow morning. First thing. Saturday morning, in fact.”

“I noticed.”

“Reisman?”

“Arthur Reisman. Hollister’s partner at Argonaut going back to ‘53. Lives in the Hills above the Bowl. Wife was up reading when he got in at twelve-fifteen. Housekeeper a heavy sleeper but heard the car in the drive.”

“Magnolia until eight?”

“Magnolia until eight. Steward put him on the book at six-twenty. Two scotch and waters at the bar between six-twenty and seven, dinner alone in the small dining room from seven to seven-fifty, settled the chit and went at seven-fifty-five.”

“Where between eight and twelve?”

“Home, per his account. Wife went up to bed early — was reading when he came up at twelve-fifteen. Housekeeper to bed at ten with a powder; heard the car at twelve-fifteen.”

“His account?”

“That’s what the file says.”

The amber had gone out of the file boxes by the door. The desk lamp had taken the room.

“Tonight.”

Drake’s pen came up.

“Put men on Reisman. Tail him. Anywhere he goes, anywhere he stops, anyone he meets. Names.”

Drake wrote it.

“On what grounds?”

“On a hunch.”

Drake wrote that too, and underlined it, and looked up.

“Anything else?”

“Canvass Helen’s block. Every neighbor on the street, every dog-walker, every paperboy, anybody outside between nine and eleven that Tuesday a week ago who might have seen a car coming up the drive or a car going down it.”

Drake wrote it.

“Friday-night rates on a tail this size, Perry. And four men on a foot canvass tomorrow morning, weekend overtime starting Monday at noon.”

“Bill me.”

“I’m calling the Friday men at home in twenty minutes. Some of them will say no.”

“Get the ones who don’t.”

“They charge time-and-a-half after six.”

“They will.”

“And weekend doubles starting tomorrow noon.”

“They will.”

Drake grunted. He set the pen down across the open page.

Perry: "What car does he drive?"

"I don't know."

"You don't know."

"I don't know yet."

Drake made a note. "I'll have it inside an hour. My men will pick him up at Argonaut tomorrow morning and stay with him. Saturdays?"

"Tell your men he might be at the studio Saturday morning."

"All right."

Drake wrote that. He set the pen down and reached for the telephone on the corner of the desk. He dialed.

"Hennessey," he said when the line picked up. "Drake. I want you in your car in twenty minutes. Bring Burdette if he's still at the desk. The address is in the Hills above the Bowl. The subject is a man named Reisman. Tonight's open-ended; we're working until I tell you to stop." He listened. "Yes. Friday-night rates. Be at my office in twenty minutes."

He set the receiver back on the cradle. Mason was still in the chair.

"He's good?"

"Five years out of LAPD vice. Quiet on a tail. Drinks too much coffee."

"Good."

Mason picked up his hat from the blotter and stood up.

"Monday morning."

"Monday morning. I'll have what the surveillance gives us tonight, what the canvass gives us overnight, and what Mrs. Brockman's diary says about Hollister's office for the past week."

"Good."

Mason was at the door. The clerk in the outer office had finished her phone call; the cleaning man had crossed to a different desk with his rag. Mason crossed the outer office and went out into the corridor.

The door swung shut behind him.

Drake sat. He turned to a blank sheet at the back of the notebook. At the top of it he wrote SURVEILLANCE in small block hand and underlined it twice. He dropped down a line. The pen waited a half-second. He wrote Reisman.

Chapter 4

Hal Bannon was in the client chair with a cigarette working between two fingers and the denim jacket on the back of the chair behind him. He had not shaved. The jacket was creased in a long diagonal where it had been over the back of the motel chair for three nights, and the cuff of the right sleeve had a stain on it the color of bad coffee. Della sat against the side wall of the inner office with the steno pad open on her knee. Mason was behind the desk in a charcoal suit with the jacket on. The morning light came in hard from the east through the side window and fell across the corner of the blotter. The building was on its Saturday register. The phone in the outer office had been silent since Della had let Drake's man up at quarter past nine, and the corridor outside had carried only one other set of footsteps in the half-hour since — somebody on the floor below, on his way out for the weekend.

"Mr. Bannon."

"Mr. Mason."

"I want you to go back and walk me through the first two times."

Bannon pulled the cigarette and looked at the pad on Della's knee.

"I gave you all that on Wednesday."

"You gave me the headlines on Wednesday. I want you to walk me through them."

"Mr. Mason — about my truck. They tow at three on Saturdays. I called my unit Friday and the kid on the gate said—"

"The first time, Mr. Bannon."

Bannon worked his jaw and pulled the cigarette again. He set the cigarette in the ashtray on the corner of the desk.

"All right. The first time. About fourteen, fifteen months back. I was working a thing on the western lot at Paramount and a guy came down from the tower and asked if I'd take a meeting with Walter Hollister at the bungalow."

“What guy?”

“AD on a feature Argonaut had in development. Vito Petracca. He’s not on the lot anymore. He went to a unit at MGM and he’s been on a picture in Spain since February.”

“You went to the bungalow.”

“I went over the next morning. The Argonaut bungalow is the white one on the second row in from Melrose, with a magnolia tree by the steps that they water from a bucket because the tap doesn’t reach. Walter had coffee for me. He had a tray on the side table with two cups and a sugar bowl and a milk pitcher with the milk already in it, like he’d had a girl set it up before I came in. He said he had a thing on Tuesdays — said it just like that, a thing on Tuesdays — and he said he was looking for a friendly face who could put him at the Magnolia from eight to midnight if anybody ever asked. He said it would be a thousand dollars a time and that nobody would ever ask. He said it twice. Nobody is ever going to ask, Mr. Bannon. I took the coffee and the offer.”

“What night did he name?”

“Two Tuesdays out. Tuesday in two weeks.”

“And you did what on the night?”

“Worked till nine, drove home, slept. The next Friday I dropped by the club after work and signed in as his guest, had a scotch at the bar, and Walter passed me the envelope going out.”

“In what?”

“Tens and twenties. Bartender’s name was Eddie. The valet was a kid named Tony I’d seen before.”

“And you assumed something about Hollister those nights.”

“I assumed.”

“Assumed what?”

“I assumed Walter was with a lady that night.”

“You didn’t ask.”

“You don’t ask, Mr. Mason.”

Mason set both hands on the chair arms and let them rest there.

“Second time.”

“Six, seven months later. Same arrangement, same money, same Tuesday. Vito wasn’t the contact this time — Walter just called the bungalow Monday morning and asked me to come over after lunch. Same coffee. Same speech, shorter. I worked the night, the Friday I went to the club, signed in, drank a scotch, Walter passed me the envelope going out. Same Eddie. Same Tony in the lot.”

“Anything different the second time?”

Bannon’s mouth moved at the corner.

“Eddie smiled at me when I asked for the scotch. The first time he hadn’t. The second time he had a small smile.”

“What did the smile mean?”

“The smile meant the bartender knew what he was looking at.”

“Which was?”

“A man buying his cover.”

Della’s pencil moved on the page.

“Who was Hollister with on those Tuesdays?”

Bannon picked up the cigarette from the ashtray and pulled it. The end of it was bent now from sitting on the lip.

“Mr. Mason — I never met her. I don’t know her.”

“I didn’t ask whether you’d met her.”

“I wouldn’t want to drag her into—”

“Her name, Mr. Bannon.”

The cigarette was bent in the ashtray. Bannon looked at the bent end of it. He looked at Mason.

“Tall. The kind of woman who walks into a room and—”

“Her name.”

“Vivian Tate.”

Della’s pencil stopped a half-second on the page, and then she wrote it.

“What does she do?”

“Has a gallery in Beverly Hills. Off Camden, I think. I drove past it once.”

“Married?”

“Single. As far as I know. Walter’s been with her — Christ, I don’t know — five, six years. Maybe longer.”

“Did she ever come to the Magnolia?”

“Once or twice. Walter pointed her out to me at the bar one Friday after the second time. Across the room, with two other women. He didn’t introduce. He just lifted his chin once.”

“What does she drive?”

“Cream Mercedes coupe. I saw her get into it once outside the gallery. The plate was a low number.”

“And you held the name.”

“And I held the name. I told you. You don’t ask, you don’t tell.”

“All right.”

Mason looked at the ashtray for a beat and then back at Bannon’s face.

“Now the third time.”

“The third time was the same speech and a different envelope.”

“Tell me how it came at you.”

Bannon leaned forward on the chair arms.

“It was a Thursday. The Thursday before the Tuesday. Walter rang the unit at Paramount in the morning and said could I meet him at Musso’s at one. I went. He had the corner booth on the south wall, the one with the high back, the one his table was always saved at on Thursdays. He had a martini in front of him already and he ordered me one without asking what I drank. He said he had a Tuesday again, the Tuesday coming up, and he wanted the same thing. Eight to midnight. The Magnolia. Same speech. He pulled an envelope out of his coat pocket on the booth bench between us and slid it across. He said, not at the club this time, Hal — I’m doing this one cleaner. I put the envelope in my jacket pocket. I told him I had it. Then we had lunch.”

Mason’s right hand had been resting on the arm of his chair with the thumb working at a worn spot in the leather. The thumb stopped. Both hands stayed where they were.

“He paid you at the booth.”

“He paid me at the booth.”

“How much?”

“Two thousand. I told you fifteen Wednesday. It was two.”

“Did he tell you why he was doing it cleaner?”

“He said his wife had been asking questions and he was being more careful.”

“Did he tell you he wanted you not to sign in at the club?”

“He told me not to sign in at the club. He said, just be ready to say it if anybody asks, Hal — nobody is going to ask.”

“Did he look at his watch?”

“He looked at his watch twice. Once when the food came and once when the check came. He had a one-thirty back at the lot.”

“Where was the envelope?”

“Inside breast pocket of his coat.”

“What kind of envelope?”

“A bank envelope. Plain manila. No bank printed on it.”

“Anybody else at the booth?”

“Nobody at the booth. The next booth over had two agents from Bill Schiffrin’s office; I knew one of them and nodded and he nodded. They didn’t sit long.”

“What time did Hollister leave?”

“He left at one-forty. I sat for ten more minutes with the coffee and went back.”

“Did you put the envelope in a bank?”

“I put it in the dresser at the apartment. I owe Sully and I owe a guy on Cahuenga and I had it earmarked.”

“Did you sign in at the club Friday before the Tuesday?”

“No, sir.”

“Did you sign in at the club the Friday after?”

“No, sir.”

“Did you go to the club at all between the lunch and the grand jury?”

“No, sir.”

Mason’s hands stayed where they were. He looked at the page on Della’s knee for a half-second and back at Bannon.

“All right, Mr. Bannon. The first two times you signed in at the club two nights after, drank a scotch, picked up your envelope going out. The third time he paid you in advance, in a restaurant booth, and told you not to come to the club at all.”

“That’s right.”

“And you didn’t think anything of it?”

“I figured he was being careful like he said. I took it.”

“All right.”

Bannon waited.

“Mr. Mason — about my truck. They tow at three. They have my plate, they have the make. The kid on the gate said he could move it for me to the back lot if I called him by noon, but he needs the keys, and the keys are in the dresser at the apartment with the envelope, and I cannot, under your instructions, go to the apartment.”

“Drake’s man went to the apartment Friday morning. You wrote the list on Wednesday. Your keys are in the bag at the Sequoia Court.”

Bannon’s hand started for the cigarette and stopped.

“And my agent?”

“Your agent has been told you are scouting a thing on a ranch in Arizona that does not have a telephone.”

“By who?”

“By Mr. Drake at five o’clock Thursday afternoon.”

Bannon set the cigarette in the ashtray. His hand went to the back of his neck and worked there.

“And Sully?”

“Sully waits.”

“Mr. Mason, Sully sends a man Sunday. The kid he sends is named Pico and he’s been on a bench eight months for an arm he broke at a swap meet in El Monte. He carries a piece of pipe in a sock.”

“Sully sends a man Sunday and the man finds room twelve at the Sequoia Court empty because you do not open the door to him. Mr. Drake’s third party meets Sully’s man in the parking lot of the Crown Tap on Sunday night with a message — that the three hundred dollars will be paid in full on a date to be named, with interest. Mr. Drake will name the date. Sully will accept it.”

“How do you know?”

“Because Sully will accept it.”

“Pico, though?”

“Mr. Drake’s third party also has a piece of pipe. In a different sock.”

Bannon’s hand on the back of his neck went still.

“All right.”

“Mr. Bannon.”

“Yes, sir.”

“You are going to go downstairs with the man at the door, you are going to get in the car with him, and you are going to ride back to room twelve at the Sequoia Court. You are not going to open the door to anybody who is not Mr. Drake or Mr. Drake’s man. You are not going to call your agent, you are not going to settle anything with Sully, you are not going to telephone Walter Hollister or anybody who knows Walter Hollister. You are going to sit in the room and you are going to read what Drake’s man brings you. Tell me you understand me.”

“I understand you.”

“Stand up.”

Bannon stood. He picked the denim jacket off the back of the chair, put it on, tugged the cuffs straight, and looked down at the cigarette in the ashtray. He picked it up, took a last pull on it, and set it back on the lip. He went around the chair toward the door to the outer office.

He stopped with his hand on the knob.

“Mr. Mason.”

“Yes.”

“Walter didn’t do this.”

“I have heard you say so.”

“I’m telling you because I want it on the page on her pad.”

“It’s on the page.”

Bannon nodded once and went through the door. Della stood up. She crossed the inner office, went into the outer. Through the gap, before the door closed behind her, Drake’s man could be seen at Della’s desk — a

stocky silhouette in a gray suit and no hat, standing with both hands at his sides. The door swung shut. There was the murmur of two voices for the length of a sentence, and the small sound of the outer-office door opening and closing in the corridor. Della came back through the inner door and shut it behind her. She had the steno pad against the front of her skirt. She closed it.

“You think the partner did it?”

“I think the alibi-buying habit was a tool somebody else turned on him.”

Chapter 5

The building was on its Monday register. The phone in the outer office had been ringing since eight-thirty. Della was at the typewriter on a memo to a man at Twentieth on a contract that had nothing to do with anything, and the keys were going at her steady rhythm. The corridor outside carried footsteps in both directions. The elevator's bell rang somewhere down the hall every minute or so. Mason was behind the desk in the inner office in a gray suit with a thin chalk stripe and the jacket on, the morning *Times* folded open at the front page where the Hollister grand jury was reported as having reconvened over the weekend with charges expected this week. He had read the article twice when he came in at nine. The hedge was in the second paragraph — *charges expected this week* — and the second paragraph was where Burger always put the hedge. The morning's first call, from a man on Wilshire on a real-estate matter, had gone to Della and been declined.

The intercom buzzed.

"Mr. Drake."

Mason picked up the receiver.

"Paul."

"Frank says it went in at nine. Burger walked it in himself."

Mason set the *Times* folded the way it had been. He pulled the appointment book toward him an inch and pulled it back.

"Tell me what else."

"Hennessey's report. Saturday morning Reisman drove from his house to Argonaut and was at the bungalow from nine to noon — alone, came out twice, once to the commissary and once to the parking lot, ten minutes each time, no one with him. Drove home. Sunday evening he drove from the house to the bungalow and was there from seven-thirty to ten — alone, lights on the second floor, no visitors. Drove home. Burdette took the night side both nights. Driveway, garage, a light in the upstairs bedroom until eleven to the minute each night, nothing moving between midnight and

six. The car's the dark blue Cadillac Eldorado, two-door, plate ZAR 408. Burdette had him in sight or in the lot the whole time."

"Pattern."

"What else?"

"I got Mrs. Brockman to let one of my girls look at the diary for last week. Hollister had a one-o'clock lunch out marked the Thursday before the Tuesday. Just 'lunch' — she didn't write where. But it's there."

"It's there."

"Frank says they're asking around for Bannon. Apartment Saturday morning. The unit at Paramount Saturday afternoon. The agent Sunday. They went down the list."

"Who's asking?"

"Tragg's office. They haven't said why."

Mason's left hand had been resting on the edge of the appointment book. He took it off.

"The canvass?"

"Thirty-eight houses on the block as of this morning. Two of mine are back tonight on the late shifts. Milkmen and paperboys Tuesday at five. Three neighbors saw cars on the street, none on the Hollister drive. There's a lane I want for Wednesday — a dog-walker on the corner I haven't been able to put my hands on."

"Wednesday."

"Wednesday."

"Anything else?"

"By Wednesday I'll have the gate combination, the three numbers off the phone bill, the prior month's bill, the daughter's key situation, and the Salinas chits. The chits are the slowest — Eddie's been off two days; Hennessey's man will be on him tonight when he comes back to the bar. I have a runner going out to Mrs. Brockman this afternoon to ask about the

Friday and the Monday around the Thursday lunch — see if Hollister’s day moved any way that’s worth noting.”

“Move on it.”

“The Crown Tap?”

“The third party met the kid in the parking lot Sunday night at ten-thirty. The kid took the message and went home to his mother. She lives on Olive. Sully accepts the deferral. We’ll have a date by Friday.”

“Good.”

“Surveillance over the weekend ran me triple on Sunday night. I’ll itemize Friday.”

“Itemize Friday.”

“All right.”

Mason set the receiver in the cradle. Della was in the doorway between the outer office and the inner with the steno pad against the front of her skirt. She had been there since the intercom. She came in. She closed the door an inch behind her.

“Paul told the agent Arizona, Chief. Hal told the unit San Diego.”

“Yes.”

She crossed to the side wall and sat in her interview seat. She opened the pad to a clean page. The pencil was in her right hand.

The typewriter in the outer office had stopped when she got up. The corridor carried somebody passing on the way to the elevator. The elevator’s bell rang.

Mason stayed at the desk. The *Times* stayed folded. The appointment book sat where Della had left it on the corner. His hands rested on the blotter; his eyes stayed on the door to the outer office.

In the outer office Della had not gone back to the typewriter. The page she had been on at nine was still in the carriage. The corridor outside carried somebody coming up the corridor on the elevator and somebody else going

past on the way to the stairs. The minute hand on the wall clock above the bookshelf went over the half-hour, then over forty-five, then over the eleven.

Footsteps came up the corridor and stopped at the door. The outer-office door opened. Voices for half a sentence. Della was on her feet before Mason had come fully out of the chair. She crossed the inner office, opened the door wide.

“Lieutenant Tragg, Chief.”

Mason was on his feet behind the desk.

Tragg came through the door. He was trim, in his fifties, with iron-gray hair clipped close at the sides and parted on the left. A thin mustache was trimmed even at the corners. The brown suit was the brown suit, pressed at the lapels and crisp at the cuff. The brown hat was in his right hand. His eyes were dark and set deep under heavy brows.

“Lieutenant.”

“Counselor.”

Mason gestured at the client chair. Tragg took it. He set the hat on his lap and folded his hands over the brim. His feet were flat on the floor. Della had crossed to the side wall with the steno pad open on her knee. She had set an ashtray on the corner of the desk on her way past.

“Burger filed at nine, Counselor.”

“I heard.”

“The grand jury came back on the husband.”

“I heard that too.”

“We’d like Mr. Bannon for a statement on his grand-jury testimony. He’s a material witness in the matter now.”

“All right, Lieutenant.”

Tragg looked at the ashtray on the corner of the desk and then at Mason.

“His unit at Paramount thinks he’s in San Diego. His agent thinks he’s in Arizona on a ranch that doesn’t have a telephone. Either Mr. Bannon is doing one of the longer trips of his career, Counselor, or he’s a lot closer than that. The agent told my man a Mr. Drake called him at five o’clock Thursday. Mr. Drake works for you.”

Mason did not look at Della. Della’s pencil worked.

“Mr. Bannon is my client, Lieutenant. If your office issues a subpoena, I’ll have him at your office within twenty-four hours.”

Tragg reached into his coat for a pack of Chesterfields and a lighter. He shook one cigarette loose, tapped it against the back of his hand, and put it in the corner of his mouth. The lighter clicked. The flame came up. He drew on the cigarette and the end of it caught.

“We could move faster than that.”

“You could. You won’t this week.”

He drew on the cigarette and looked at it.

“No. Probably not this week.”

Mason waited.

“Burger wants the case clean,” Tragg said. “He wants Mr. Bannon’s grand-jury testimony in front of the trial jury with no complications. He doesn’t want Mr. Bannon to suddenly remember that something he told the grand jury was less than complete.”

“That’s a fair concern.”

“It’s a fair concern.”

“My client will be available at the bureau on subpoena, Lieutenant. He’ll answer the questions your office asks him.”

“Through your office.”

“Through my office.”

Tragg drew on the cigarette and tapped the ash into the ashtray.

“When did you take Mr. Bannon’s case, Counselor?”

“Wednesday morning, Lieutenant.”

“The day after the grand jury.”

Tragg let the smoke go. “On whose recommendation?”

“I’d rather not say.”

“All right.”

He held the cigarette away from his lap and looked at it.

“Did Mr. Bannon work for Mr. Hollister?”

“He worked at Paramount, Lieutenant. Stunt unit. He’s done work on Argonaut productions over the years.”

“Recently?”

“That’d be in the production records. I haven’t been through them.”

“Have you spoken with Mr. Hollister?”

“I have not, Lieutenant.”

“Are you going to?”

“I haven’t been asked to.”

“Putnam doesn’t try cases.”

“He doesn’t.”

“Burger expects to see you on the case by Wednesday.”

“I take cases when clients come to me, Lieutenant. Burger knows that.”

“He does.”

Tragg pulled on the cigarette.

“What did Mr. Bannon tell the grand jury, Counselor?”

“What he told them is on the grand-jury record, Lieutenant.”

“I have the record.”

“Then you have what he told them.”

"I'm asking what he told you. Wednesday morning. In this office."

"That's privileged, Lieutenant."

"I know it's privileged. I'm asking whether what he told you in this office is consistent with what he told the grand jury on Tuesday."

"I'd want to be more careful with that question, Lieutenant."

"I expect you would, Counselor."

Tragg let the smoke out slowly. He looked at the cigarette in his fingers, then back at Mason.

"Your investigator's car was seen up in the Hills above the Bowl this weekend, Counselor. Both nights."

Mason waited.

"Friday after dark. Saturday after dark. There again Sunday."

"Mr. Drake works other cases, Lieutenant."

"He does."

"Sometimes he works one case three places."

Tragg's eyes went to the ashtray and back.

"We have a man at the Magnolia going through the chits, Counselor. Friday and Saturday and again last night."

"Eddie Salinas's chits. Mr. Drake's man was in there Saturday morning."

"He was."

"Try not to send him in there at the same time as my man. My man is an excitable kid."

"I'll mention it to Mr. Drake, Lieutenant."

Tragg's fingers tapped once on the brim of the hat in his lap.

"Mr. Hollister's daughter saw him at the bureau Saturday morning. Twenty minutes. She came out asking who was going to handle her father's defense."

“Has she asked Mr. Putnam?”

“Mr. Putnam handed her your name.”

“Mr. Putnam has not called me, Lieutenant.”

“He may by Wednesday.”

Tragg let the cigarette burn down half an inch in his fingers. He looked at the corner of the desk, then at the door to the outer office, then back at Mason.

“Bannon’s apartment was empty Saturday morning.”

“You went in.”

“I went in.”

“On what?”

“He’s a material witness whose testimony is on a grand-jury record and whose unit at Paramount thinks he’s in San Diego, Counselor. The landlady opened the door for me.”

“All right.”

“There’s a kitchen tap that’s been dripping. Whoever was last there didn’t shut it off all the way. Two glasses in the sink with a film on them and a paper sack from a delicatessen on the counter. No mail in the dish by the door, no bills on the table. The bed was made. Nobody had been in there since Wednesday. The landlady says the unit at Paramount called him Wednesday afternoon — twice — and she went down and knocked at his door when the unit asked her to, and she didn’t get an answer.”

“He travels light.”

“He travels light.”

Tragg blew smoke toward the corner of the ceiling.

“There’s a dresser in the bedroom with three drawers. The bottom drawer has a dust pattern on the lining paper of the kind you see when something’s been sitting there a while and was lifted out recently. Rectangular. Eight inches by ten inches.”

"I wouldn't know about a dresser, Lieutenant."

"You wouldn't."

"No, sir."

"All right, Counselor."

Tragg's cigarette had gone almost to the filter. He stubbed it in the ashtray.

He looked at the corner of the desk and then up.

"There's a man in a sedan on the corner of Spring and Sixth this morning. He'll be there tomorrow morning. He'll be there Wednesday morning. He'll come off the corner when Mr. Bannon walks into the bureau on subpoena Wednesday afternoon. Not before."

"I see."

"I'm telling you so we don't waste each other's time."

"Appreciated, Lieutenant. Anything else, Lieutenant?"

"Not today."

He stood. The hat went into his right hand. He crossed to the door. At the door he turned back a quarter.

"Counselor."

"Lieutenant."

Tragg went through into the outer office. He did not pause at Della's desk. The outer-office door opened and closed on the corridor. His footsteps went the length of the corridor and the elevator's bell rang and the elevator took him down.

Della had not moved from her seat. The steno pad was open on her knee. The pencil rested across the page. The cigarette Tragg had stubbed in the ashtray on the corner of the desk was still in it, the smoke gone, the filter bent at the angle his thumb had left it.

Mason came around the desk. He crossed the inner office to the window. He stood there with his hands in his trouser pockets. The east light had softened through the morning. Below, on Spring Street, a delivery truck

was double-parked at the corner with its hazard lights on, and a man in a brown apron was carrying a crate of something across the sidewalk and up the steps of the building across the street. The corner traffic light went green to yellow to red and back to green and back to yellow in the time he stood there. On the corner of Spring and Sixth a dark sedan was parked with a man in the front seat holding a newspaper. The newspaper had been open to the same page when Mason had come in at nine.

He did not turn from the window.

“Type the subpoena for Vivian Tate. Make it conditional.”

Chapter 6

The Stunt Workers' Union office had a corkboard on the wall behind the secretary's desk, and the corkboard was solid call sheets pinned in rows three deep. The mimeograph machine in the back room had been run that morning; the ammonia smell was still in the room. The front window looked across Cahuenga at a parking lot and beyond it, through the smog, the back of a sound stage. Drake came in with his hat in his hand. The secretary was Doris Walters, fifty-something, a cardigan over a blouse, a smear of mimeo ink on her left thumb and ash on the right cuff, her coffee cup beside the typewriter and the coffee in it the same coffee that had been there at seven.

"Paul Drake," she said. "The week's not over and here you are."

"It isn't, Doris."

"Whose mess this time?"

"Hal Bannon's."

"Hal."

"Hal isn't the mess type. Hal's the kind to walk past a mess on his way to a poker game."

"I want his sheets for the past two months."

She turned in her chair, opened a drawer of the second cabinet by the wall, and lifted out a folder with a rubber band around it. The rubber band was wide and old, and had been on the folder since spring; it broke when she pulled it. She set the folder on the desk and slid it across.

"Two months. Mannix mostly. He had a Western pickup on the back lot in May for a day and a half — Gunsmoke borrowed him for a barfight. Other than that, all Mannix."

Drake opened the folder. The Tuesday sheet was a third of the way down. He pulled it. Six o'clock call, a high-fall from a fourth-story facade onto an air bag, a wire rig for the second take, off the rig at ten o'clock per the unit foreman's signature. Hal initialed the sheet on the bottom line in his big looping hand.

“Ten o’clock off the rig,” Drake said.

“Ten and change. That foreman doesn’t sign a sheet a minute early.”

“Who else worked the night?”

“The whole second unit. Eddie Vincent up in publicity for the rig shot — Eddie likes a wire shot. Two grips on the rig — Cy Polonsky and the kid Mendelson. The unit foreman is Leo Ramsey. Leo doesn’t lie on a sheet. He’d let his mother go to county before he’d back-date a call.”

Drake pulled the prior Tuesday’s sheet, then the Tuesday before that, then a Tuesday three weeks back. Hal had been on each one.

“Tuesdays,” Doris said.

“Tuesdays.”

None of the sheets had Hollister’s name on them — Hollister was an Argonaut feature man, and Mannix was Paramount television.

“He do work for Argonaut on the side?”

“The boys all do. Argonaut takes a stunt-coordinator meeting every six months and they shoot two pictures a year. Hal had a meeting on a thing they were calling Crossfire about a year and a half back; that picture went down. He had a coffee on a sequel piece Argonaut was workshopping in the spring; that went down too. Most Argonaut things go down. Reisman runs the office; Hollister runs the table at lunch.”

“Reisman?”

“Arthur Reisman. Hollister’s partner. Picks his projects, stays on his projects. Hollister is the bigger name; Reisman is the man who’ll be at the lot at nine on a Sunday.”

Drake nodded.

“Anybody else freelance who works the same circuit as Hal?”

“Cy Polonsky, who was on the rig with him that night. Mendelson. A man named Frank Tessio — does horse work, won’t get out of bed for under

a hundred. They all know each other; freelancers always have something cooking on the side. That's the trade."

Drake folded the Tuesday sheet into his notebook, set the rest of the file back on the desk, and picked up his hat.

"Doris."

"Mr. Drake."

"I was never here."

"You were always here, Mr. Drake. You came in for the spring schedule. You take half a doughnut on the way out."

Drake smiled, did not take a doughnut, and left.

He drove three blocks south and parked at a curb across from a coffee stand on the corner. The smog was flat and yellow over the pavement. Drake stayed in the car with the window down. Two minutes later a beat-up Plymouth coupe pulled in behind him; a stocky man in a too-big suit jacket got out, looked the corner over without seeming to look it over, and came up to Drake's window.

"Paul."

"Hennessey."

The jacket sat a touch wide in the shoulders, holster-shaped at the small of his back, no holster on him today. Hennessey leaned his forearm on the doorframe. His hair was brown and going at the front rather than the crown. His eyes did not react to the smog, the corner, or Drake.

"Burdette had him from six," he said. "Bungalow second floor lights at seven thirty-five. Lights out at eleven sharp; you could set a watch. He was home at twelve oh-six. Wife's window dark since ten."

"Sharp at eleven."

"Sharp. The man does not vary."

"What else?"

Hennessey took a folded sheet of paper from his inside pocket and read it without unfolding it the rest of the way.

“One of yours on the canvass — a man named Toomey on the milkmen beat last night — got it sideways from a uniform who worked the door-to-door Wednesday morning. Mrs. Reisman told the uniform Arthur often goes back to the office of an evening and she didn’t think anything of it. Verbatim. The uniform’s name is Carney. Hollywood Division, two years on.”

Drake took the sheet, folded it into his coat pocket alongside the call sheet, and looked at the rear-view.

“You stay on the bungalow tonight. Put Burdette to bed and pick him up at six. I’ll call the answering service at five-thirty if I move you.”

“Five-thirty.”

“Five-thirty.”

Hennessey straightened, looked over the corner once more, and went back to the Plymouth. The Plymouth pulled out past Drake’s window — coffee on the dash, a pulp magazine on the passenger seat — and was gone.

The production-business building at Paramount was three stories of beige stucco set back from Marathon between two soundstages. Drake parked, walked through the front lobby past a guard who waved him through on his ID, and took the stairs to the second floor. Production accounting was a corridor of small offices, three on each side, doors mostly open. Margaret Doyle was in the third office on the left. He stopped at the doorway.

“Miss Doyle.”

She looked up from a ledger. She was thin and the gray cardigan hung loose at the shoulders. Her hair was a dark red pulled back into a low knot at the nape, and pulled back tight enough that it shaped the bones at her temples. Hazel eyes. Freckles fading on the bridge of her nose. The cardigan was wool and the office was warm.

“Yes.”

“Paul Drake. I work for Perry Mason. Mr. Mason represents Mr. Bannon, who is a witness in the Hollister matter. I’d appreciate a few minutes of your time.”

“Come in, Mr. Drake.”

He came in, set his hat on the corner of her desk, and took the wooden chair across from her. The ledger between them was open to a page of carbon-paper duplicates clipped to a master sheet; an adding machine sat off to the side with a column of figures running down a roll of printer tape, half-tallied, the carriage held mid-stroke. Her fingers went to the desk edge as he sat down. They lay flat there. The knuckles were pale.

“You knew Mrs. Hollister?”

“Helen. Yes. We were friends for eight years.”

“I’m sorry, Miss Doyle.”

She accepted the condolence with a small dip of her chin and waited.

“How often did you see her in the last week of her life?”

“I had her on the phone Monday evening. We talked for fifteen minutes about the Wednesday charity board — I’m on the committee with her. We confirmed the agenda and she told me her dressmaker was being slow with a fitting. That was the last time I spoke with her.”

“How did she sound?”

“Tired. But fine. She was on her feet a lot in the spring and she had been catching up on things in the summer. She sounded like a woman who had been catching up.”

“Did she mention anyone she was concerned about?”

“No.”

“Anyone she was avoiding?”

“No.”

“Anyone at all whose name came up that she said anything about that you remember now and want to tell me?”

Margaret's fingers pressed a little flatter on the desk edge.

"Her sister in Pasadena. Her dressmaker. Mrs. Sandler. She had a Monday lunch with Mrs. Sandler about the Christmas appeal. She told me Mrs. Sandler had been worrying about her son."

"Did she mention her husband's partner?"

"Mr. Reisman."

Her fingers went flatter still.

"Of course she mentioned Mr. Reisman. He was at the bungalow. He and Walter were there every day. Helen and Mr. Reisman were friendly. There was no reason for her not to mention him."

"Was there reason for her to be uneasy with him?"

"Not that I observed."

Drake watched the desk edge, watched the cardigan, watched the small pulse at her throat below the round collar of her blouse.

"Miss Doyle. Had Mrs. Hollister been working on anything in particular this last month?"

"Working on?"

She held the question for what was less than a second and was nevertheless a question of her own.

"Working on. A project. A piece of business. Anything she was attending to."

"Not that I know of."

"All right."

He took it down in the notebook in shorthand. He did not look at her when he wrote.

"Did she ever ask you about Argonaut?"

"In what regard?"

"In any regard."

“She asked me once last spring whether the studio took the Argonaut payroll through the studio books or whether Argonaut ran their own. I told her Argonaut runs their own. That was a casual conversation at a charity lunch.”

Her fingers loosened a fraction on the desk edge.

“Last spring?”

“April. The benefit at the Wilshire.”

“All right.”

“Mr. Drake.”

“Yes.”

“Helen was my friend.”

“I know that, Miss Doyle.”

She did not say anything to that. The knuckles went whiter on the desk edge. Drake closed the notebook, slid it into his coat pocket, and stood up.

“Thank you for the time.”

“You’re welcome, Mr. Drake.”

She did not stand. Her hands stayed on the desk edge. He picked up his hat and went out, closing the door softly behind him. In the corridor he held there for the length of two steps, then went to the stairs.

The Sequoia Court was on Olive in Burbank, an L-shaped two-story with the office at the joint of the L and a swimming pool behind a chain-link gate visible between the two wings. The deck around the pool was rust-stained where the sprinkler heads had bled into the concrete. Drake parked in the lot in front of the back row, walked along the back, and knocked on twelve.

“Yeah.”

“Drake.”

The door opened on the chain. The chain came off. Drake came in. Hal was on the bed with the headboard at his back, the denim jacket on, a paper plate beside him with half a sandwich on it, the television on with no sound

and a gray-and-white picture showing a man and a woman in a kitchen. The air conditioner in the window was running on high. The room smelled of the air conditioner, the sandwich, and an ashtray on the nightstand with a cigarette burning down at the lip.

"You drove over."

"I drove over."

"It is an honor."

"Sully called?"

"Sully called twice. The first one at nine, the second one at ten-fifteen. Different number both times. The kid on the desk took both. He picked Friday."

"Friday."

"Friday."

Drake stayed at the foot of the bed with his hat in his hand. The television's man in the kitchen poured coffee for the woman; the picture rolled half an inch and corrected.

"How is the AC?"

"The AC works. The towels do not dry."

"The breakfast?"

"A doughnut. Coffee. The doughnut is yesterday's doughnut. I think it is the same doughnut."

"The television?"

"Two channels. One of them is in Spanish and the other one is showing a man pour coffee for a woman in a kitchen."

"Which channel are you on?"

"The English one."

"I see that."

Drake reached into his coat pocket, took out a folded twenty, and put it on the dresser next to the half-glass.

“Eat at the diner across the lot. It’s three buildings down. Walk; don’t take a cab. Don’t open the door tomorrow morning to anybody who isn’t me or Mr. Mason’s man with a key. Tomorrow afternoon at two o’clock you walk into the bureau on Lieutenant Tragg’s subpoena. Mr. Mason will be at your right hand. You answer Lieutenant Tragg’s questions on what you told the grand jury, and you do not volunteer anything you were not asked. You stick to the grand-jury record.”

“They are pulling me in.”

“They are.”

Hal set his hand on the sandwich and did not pick it up.

“Walter?”

“Walter is at the bureau. Walter has been at the bureau since Wednesday.”

“Walter.”

The brim of the hat moved a fraction in Drake’s hand.

“I heard you, Mr. Bannon.”

Hal looked at the television. The man in the kitchen had moved to the counter.

“All right.”

“Two o’clock.”

“Two o’clock.”

Drake put on his hat, opened the door, and went out. The door clicked shut behind him; the chain ran along its track on the inside; the air-conditioner unit came up half a tone as it took over the room again.

Chapter 7

Della came to the doorway with her steno pad. Mason was at the desk with the morning *Times* folded open to the second page. The Hollister case had been above-the-fold the morning after Burger filed and on the second page now, where Burger had wanted it.

"Putnam called yesterday afternoon, Chief."

"He did?"

"Ten-fifteen this morning. Counsel side room two, off Judge Whitcomb's session. Before the arraignment."

"All right."

"He said the daughter pressed."

"He said it like that."

"He said his client has not asked him to bring you in, but the daughter has been after him since Saturday morning at the bureau, and he would prefer you came down at his invitation rather than hers. He was grateful for the time, Chief."

"Has he been candid about why he wants me there?"

"He has been candid. Mr. Putnam is overmatched, and Mr. Putnam knows he is overmatched."

"How was his voice?"

"Steady. He is not asking for a favor. He is asking the man he should have brought in on Saturday afternoon."

"All right."

Mason closed the appointment book and pushed it to the corner of the desk. He stood. Della had his hat off the rack and his coat over her arm before he had come around the desk.

"Has the daughter called?"

"She has not, Chief. Mr. Putnam said she would not. Her father is the one who will retain you, or no one. They both understand that."

“All right.”

They went out through the outer office and down the corridor. The elevator’s bell rang and the elevator took them down. On the street the morning’s smog was already up over the buildings. The LAPD sedan was at the corner of Spring and Sixth, where it had been on Monday and on Tuesday, and the man behind the windshield had a newspaper folded back to a page that did not seem to have turned since the last time Mason had looked. Mason walked past it. Della walked at his elbow.

The corridor outside Judge Whitcomb’s courtroom was wide and tiled and cool, with tall paneled doors at long intervals and wood benches against the wall between them, a uniform at the courtroom door with his hands folded behind him, a clerk passing the other way with a stack of files held against his chest, and at the far end of the corridor on a bench by herself a young woman with her hands in the pockets of a navy coat that was a heavier wool than the morning called for, the coat buttoned to the throat, her eyes on the courtroom door. She was small and dark-haired. She did not look up when the elevator opened.

Across the corridor a heavyset man in a three-piece suit was going through the courtroom door with a younger man behind him carrying a sheaf of files. The heavyset man’s steel-rimmed glasses caught the ceiling light. His suit strained at the waistcoat. He looked across the corridor; saw Mason; nodded once. Mason nodded back. The courtroom door closed behind him.

Putnam was at the door of side room two. He was small and white-haired and thinning at the top, and he wore eyeglasses on a chain that hung against the front of a charcoal pinstripe suit. His hands were folded in front of him. He came across the corridor.

“Counselor. Thank you for coming.”

“Mr. Putnam.”

“Walter is inside. He is prepared to give you a few minutes.”

Putnam’s hands stayed folded. “Mr. Mason, before we go in. I understand you represent Mr. Bannon. I told Walter and his daughter yesterday.

Walter chose to take this morning regardless. He would prefer to see how Mr. Bannon's matter develops."

"All right, Mr. Putnam."

Putnam held the door open for Della and then for Mason, and then he came in behind them and closed the door.

The room was small and rectangular, with a table in the middle and four wooden chairs around it and a single window at the far end with the blind half drawn over a parking-lot view. A water pitcher stood on the table and three glass tumblers beside it. The wall clock above the door read ten-fifteen. The corridor's footsteps came faintly through the wall. Behind the wall on the courtroom side a low rumble carried — voices, the shuffle of files, somebody coughing once.

Walter Hollister was on his feet by the chair at the window end. He was tall and stout and gone soft from a once-athletic build. His hair was thick and gray and combed back from a high forehead. He wore heavy black-framed glasses, and his eyes behind them were dark brown and gone slightly watery. His suit was a charcoal three-piece, very polished, and his shoes had been polished that morning. His hands were at his sides.

"Mr. Mason. I'm grateful for the time."

"Mr. Hollister."

"My daughter has been concerned that I have appropriate representation for what is coming. Mr. Putnam has assured me you are the man for it."

His eyes went to the side-room door for a fraction of a second, then back. Della's pencil moved a quarter-inch on the page.

"I understand Mr. Putnam represents you, Mr. Hollister. I'm here at his invitation. I don't expect that you have decided anything about counsel for what comes after this morning."

"Mr. Putnam has been very generous about it."

Putnam said: "Walter, Counselor Mason has come down so that you can have a few minutes with him before this morning's matter. I asked him to come."

“Mr. Putnam.”

Hollister nodded at the chair beside him. They sat. Mason and Della on the door side. Hollister and Putnam on the window side. Della opened the steno pad on the corner of the table; the pencil rested across the blank page. Mason set his hat on the chair beside him.

“Mr. Hollister, if I’m going to be of any use to you, I need to know what your evening looked like that Tuesday from the time you arrived at the club. Take it slowly. Your answers are not on a record.”

Hollister’s hand had been at the back of his chair. It came down to the chair arm.

“I arrived at the Magnolia about eight. Hal Bannon was at the bar when I came in. We had drinks. We took dinner in the small dining room. We parted around midnight. I drove home.”

“What time did you arrive?”

“A few minutes before eight, perhaps.”

“Who saw you arrive?”

“Owen Davies. The steward signs us in at the door.”

“Mr. Bannon was at the bar.”

“At the bar. Yes.”

“With whom?”

The hand on the chair arm moved a half-inch.

“He was alone, I believe. He had a glass in front of him. Eddie was on the bar.”

“Anyone else at the bar?”

“There were several members. I couldn’t give you a list. Sid Karp may have been there. I think Mort Crowley was at a table with two men I did not know.”

“What time did you sit down to dinner?”

"I would say eight-thirty. A little after."

"In the small dining room."

"In the small dining room. Yes."

"Who else was in the small dining room?"

"It is a small room, Counselor. Three or four tables. I do not recall who else was at them."

"Who served you?"

The glasses were adjusted. His eyes went to Putnam once and back to Mason.

"It was a slow evening. I do not recall who served us."

"You do not recall."

"I do not recall."

"Mr. Bannon was at dinner with you."

"Yes."

"Did anyone come by the table?"

"No one I recall."

"Did you take wine?"

"A glass each. Hal took beer with the meal."

"What did Mr. Bannon eat?"

"It was a slow evening, Counselor. I do not recall what either of us ate."

"You do not recall."

"I do not recall."

"Walter, the small dining room takes a written order," Putnam said. "The kitchen keeps the chits."

Hollister did not look at Putnam.

"I am sure they do, Mr. Putnam."

“What time did you leave?”

“Around midnight.”

“Did you sign out?”

“At the Magnolia we don’t sign out. We sign in.”

“Who saw you leave?”

“Tony Marchese was at the lot. The valet. He brought my car around.”

“What time was that?”

“A few minutes after midnight.”

“What route did you drive home?”

“Sunset to Highland and then up. There was traffic on Sunset.”

“Did you stop anywhere?”

“I did not.”

“Not for gasoline, not for cigarettes?”

“I take the car to the lot in the morning. I had gasoline. I do not smoke at home. There was nothing to stop for.”

“Did anyone see you on the way?”

“Counselor, I drove home alone. I did not stop.”

“What time did you arrive home?”

“Twelve forty-five, perhaps. I did not look at the clock when I came in.”

“Did Mrs. Aguirre hear you come in?”

“Mrs. Aguirre takes a powder before bed. She has taken one for ten years. The room she sleeps in is off the kitchen. She would not have heard.”

“Was Mrs. Hollister awake?”

The hand on the chair arm went to the temple of his glasses. The glasses were adjusted. The hand came back to the chair arm and stayed.

“The bedroom door was closed when I came up the stairs. I did not go in. I slept in the room I always sleep in when I come home late. I did not see Mrs. Hollister.”

Mason waited. Della’s pencil moved.

“Counselor is asking for context, Walter,” Putnam said. “The answers don’t have to be perfect.”

“I understand.”

Mason set his elbows on the arms of the chair and brought his fingertips together in front of his chest.

“In the week before her death, Mr. Hollister, was Mrs. Hollister concerned about anything in particular?”

“Helen and I had not been close for some years. She did not confide her concerns to me.”

“Was she occupied with anything you noticed?”

“She had her charity board. She had her dressmaker. She had the household. I was at the lot most evenings.”

“Did she mention any names you remember?”

“Mrs. Sandler at lunch on the Monday. Her sister in Pasadena most evenings. The dressmaker by name once or twice. No one outside the usual.”

“All right.”

“You were at the lot the Thursday before.”

“Yes, I was at the lot the Thursday before.”

“At lunch you were not at the lot.”

A pause that was less than a second. The dark eyes held Mason’s through it.

“I take a Thursday lunch out, Counselor. I have for years. Mrs. Brockman keeps the calendar.”

“All right.”

“Counselor.”

“Mr. Hollister.”

“You will have an impression of the prosecution’s case by now. I would be interested in your impression.”

“It would be early for an impression, Mr. Hollister. I haven’t been retained on it.”

“Mr. Putnam has been kind enough to share what he has.”

“Mr. Putnam knows what the prosecution has shown him, which is what they have to show him at this stage. They have not shown him what they will hold for trial.”

“I see.”

“Counselor.”

“Yes, Mr. Hollister.”

“You haven’t asked me whether I killed my wife.”

“No, Mr. Hollister, I have not.”

“Mr. Putnam asked me. The police asked me. Mr. Burger asked it of every witness who would sit still.”

“They would, Mr. Hollister.”

“You did not.”

“No.”

Della’s pencil rested on the page.

The hand on the chair arm went flat. The glasses were adjusted one more time. Hollister’s hands came off the chair and went to the table edge and stayed there, palms down. Hollister’s eyes held Mason’s a beat longer than they had through the encounter. Then they went down.

Mason set his hands on the table edge in front of him.

“Mr. Hollister, you have a morning ahead of you. I’ve taken enough of your time.”

“Counselor.”

“You’ll want to talk with Mr. Putnam and your daughter about how you’d like to proceed for what comes after this morning. Mr. Putnam has my office number. He has my home number as well. I would expect to hear from one of you, or not, by the end of the week.”

“By the end of the week.”

“Whichever way you decide.”

Hollister did not stand. His hands stayed on the table.

“Counselor.”

Putnam stood halfway. He walked Mason and Della to the door. He did not say anything when he opened it. Mason picked up his hat. Della closed the steno pad and slipped the pencil into the inside of the cover and stood. They went out.

The corridor was as it had been. The uniform was at the courtroom door. A different clerk was at the bench at the wall sorting a stack into two piles. From inside the courtroom Burger’s voice came faintly, the words not distinguishable, the cadence the steady cadence of a man reading from a document. The young woman in the navy coat was still on the bench at the far end, but she had stood, and was a step closer to the courtroom door now. Her hands were still in her coat pockets. Her eyes came up from the floor at the sound of the side-room door, and stayed on Mason for half a second, then went back down. Mason walked past her. Della’s eyes held her a quarter-second longer than Mason’s. They came to the elevator. The elevator’s indicator was on six. They waited.

The car arrived empty. They got in. The doors closed and the car started down.

Della said: “He thought he was going to manage you, Chief.”

The indicator above the door went past five.

“He found out.”

The car descended. Past four. Past three. Past two. The indicator settled on the lobby and the doors opened on the marble floor and the smog through the high glass doors at the front.

Chapter 8

Mason and Della came up the bureau stairs at five minutes before two with Hal Bannon between them. The third floor of the LAPD homicide bureau took the afternoon heat through an open window at the far end of the corridor, smelled of cigarettes and floor wax, kept its paperwork on the open desks in soft-cornered piles, and held at the corridor's end a hat rack with three hats on it and a fourth hat with the crown punched in. Hal had his hands at his sides. The corridor light caught his sandy-brown hair where it touched the collar of the denim jacket. He did not look at the desks they passed.

Tragg came out of the third doorway on the left at the sound of them. The jacket of his brown suit was off; the brown vest of the suit was buttoned over a white shirt; the sleeves of the white shirt were buttoned at the cuff. He was not carrying his hat. He stopped at his own doorway and waited.

"Counselor."

"Lieutenant."

"Mr. Bannon."

Hal nodded. He did not speak.

"Mr. Bannon will answer your questions on the matters covered in his grand-jury testimony, Lieutenant," Mason said. "He won't be answering on anything else."

"That will do, Counselor. We will take an hour."

"An hour?"

"Approximately."

"I'll come in with him, Lieutenant."

"Material witness, Counselor. We do those without counsel in the room."

"All right." Mason turned to Hal. "Mr. Bannon. We talked about this on the chance it came up. You answer the Lieutenant on the matters in your grand-jury testimony. Anything else, you tell the Lieutenant your lawyer

has not authorized it, and the Lieutenant either sets the question aside or telephones me at my office. He won't take it the wrong way."

"He won't, Mr. Bannon," Tragg said.

Tragg held the door open. Hal looked at Mason once. Mason gave him the small nod. Hal went through the door. Tragg stepped through behind him and the door closed.

Mason and Della turned back down the corridor. Della did not look back at the closed door.

"He's on procedure today," Della said.

"He is."

"He looked at Hal as if he'd been having him in once a week for a month."

"He would have liked to."

They went past the hat rack and down the staircase at the corridor's far end, past the open window with the smog yellow over the building across the street, out through the lobby to the cab Mason had asked to wait at the curb on Spring.

The corner of Spring and Sixth was empty.

Mason stepped out of the cab and his eyes went once to the corner where the LAPD sedan had been on Monday morning, on Tuesday morning, and on Wednesday morning, and was not there now. The traffic light at Sixth went through green and yellow and red and green again while he was paying the driver. Della stood on the curb with her handbag at her elbow and watched him notice.

"He took it off when Hal walked in, Chief."

"He said he would."

"He keeps the small promises."

"He does."

They went up. The outer office was unchanged. The typewriter was uncovered. The appointment book was open at the day. Della's morning jacket

from the courthouse hung from the second hook of Mason's hat rack. They went through to the inner office. Mason laid his hat on the corner of the desk and crossed to the window. The corner from the inner office was the same corner the cab had let them out at. The sedan was still gone. Mason held there with his hand on the sash, then turned back into the room and sat down at the desk.

"Drake said three-thirty," Della said.

"He'll be on the dot."

The buzzer on the intercom rang at three-thirty-two.

Drake came through the inner-office door with the slim accordion folder under his arm and his hat in the other hand. He stopped at the rack, turned the hat once, and set it on the third hook. The accordion folder went onto his lap when he sat down. He did not open it. The pale-blue eyes had a tighter droop than they had on the Friday at his own office.

"This bundle ran me into the weekend on Tuesday, Perry."

"Sit down, Paul."

"I'm sitting." Drake reached into his coat pocket, took out the small black notebook he carried for client work, and opened it on top of the folder. "Frank was on the second floor when I came past the bureau. He came up out of the basement to take a phone call from his sister. He says Burger picked a man for you sometime after the courthouse this morning. The kid is named Chesney, out of Burger's office, not bureau homicide. He isn't on you yet."

Mason absorbed it. Della's pencil moved across the page on the corner of her interview seat.

"Not yet."

"He'll be on you on the street tomorrow morning when you leave the building. He won't be Hennessey-quality. You'll see him."

"I'll see him."

Drake glanced at the page. "Frank had a second piece. Burger's had a man at Pacific Mutual since Monday on Hollister's coverage. Hollister raised Helen's policy from a hundred to five hundred thousand the first week of March. Sole beneficiary. Three months before the murder."

"March."

"Burger's financial motive on the husband, Paul. Five hundred thousand three months before she dies. The jury hears that on the second day of his case."

Drake turned a page in the notebook.

"Eddie's chits?"

"Yes."

"Tom got into the kitchen at the Magnolia Tuesday night while Burger's man wasn't there. The chit from the small dining room from the Tuesday Helen Hollister was killed shows wine and beer for one. Not for two. Hollister wasn't there with Bannon. He wasn't there with anybody. There's no chit for him in the small dining room and there's no chit for him at the bar."

"The bought alibi covered for an absence, not a presence, Paul. Mr. Hollister wasn't at the club at all that night."

"That's the chit Putnam volunteered the kitchen keeps," Drake said. "Tom has a noted-from-inspection copy. The original stays in the kitchen records pending subpoena."

"All right."

"The gate?" Drake turned the page. "Mrs. Aguirre confirmed direct. Housekeeper, husband, wife. That's the combination list for the gate at the bottom of the drive. She gave it back to me Wednesday morning when Tom went up with the question. Reisman doesn't have it. Tom asked her if anyone else had ever phoned about it. She remembered then. Three weeks before the murder a man called the house and said he was from the gas company on an emergency leak inspection. He needed the combination so the crew could get up the drive without waiting on her. She gave it. Nobody ever

came. Pacific Bell records on the household bill show a one-minute call from Argonaut's office line at two-forty-seven that Tuesday afternoon. There's no call from any Southern California Gas line to the residence that day or that week. I had Tom over at the gas company office this morning. No work order at the Hollister address last month. No outbound call placed out of their dispatch on that day. They confirmed by phone with the supervisor and again in person."

Mason's hand had been resting on the leather of the chair arm. It stayed where it was.

"There's our direct line to him, Paul. Three weeks before the murder, from his office line. The gas company didn't make that call."

"The numbers?" Drake turned the page again. "Three from her last week's bill. The first is the secretary on the Children's Hospital benefit committee. We knew that one going in. She'd called twice on the prior month's bill as well. Clean. The second is a florist on Wilshire. She called him twice to put off a delivery to the daughter at Wellesley by a week. He confirmed. Clean."

"And the third?"

"Levine, Coulter and Sokol. Certified Public Accountants. Beverly Hills. Helen called them on the Monday before she was killed. The call ran eleven minutes. She had not called them at all the previous month. She had not called them on the prior six months' bills before that, near as Tom can read the file."

"Eleven minutes?"

"Eleven minutes on the Monday. The senior name partner is Aaron Levine. Late sixties. Semi-retired. He handles the long-standing files personally. Tom got that out of a directory at the bar association, not by asking the firm."

"She had her own outside man, Paul. She was working the company from the books up."

Della's pencil worked down to the next line on the page.

“The daughter’s key.” Drake looked at the notebook. “She’d had one from her high-school visits. She gave it back to Hollister at the bureau Saturday morning during Burger’s twenty minutes. Burger had a uniform there. The key is in the property locker downstairs from where Tragg has Bannon now. The uniform’s name is Yount. He’ll talk to me if I need him; I don’t need him.”

“Not yet.”

“Not yet. That’s the bundle, Perry.”

Drake closed the small black notebook and slid the folded sheet out of the inside pocket of his coat. He did not unfold it the rest of the way to read.

“Hennessey on the Reisman bungalow. Pattern first; there’s a thing at the back I want to flag. Last night second-floor lights on at seven-fifty-five, out at eleven sharp, home twelve-oh-nine. Same as the night before. Same as the four nights before that, allowing for the minute either way. The man does not vary.”

“To the dot.”

“To the dot. Burdette has him on the day side now. The bungalow lights don’t come on for an hour after he gets in but they’re on by seven-fifty-five every evening and out at eleven.”

“You said you wanted to flag something.”

“I did. The portfolio. He has been carrying it to the bungalow every evening Hennessey and Burdette have had him — Friday through Tuesday, five nights. Hennessey reads it as routine. Burdette does not. The portfolio goes in light and comes out heavier by Burdette’s eye. The leather sits a different way under his arm on the way down the stairs than it did on the way up. Five nights of it now.”

“He’s sanitizing the bungalow, Paul. Stay on him through the weekend.”

“Toomey’s note from the door-to-door — the Mrs. Reisman line about Arthur going back to the office of an evening — has a second pass on it. A different uniform was at the Reisman house Saturday morning on a follow-up call. Mrs. Reisman volunteered, on her own, that Arthur has been at

the office every evening since this terrible thing happened, going through Walter's papers in case the police need anything. The uniform wrote it down. The uniform's name is Hollings. He'll talk to me if I need him. Two uniforms have it now."

"Going through Walter's papers."

"Going through Walter's papers. That's what she said. That's the cover."

Mason did not answer. Della had stopped writing.

"Hennessey's into time-and-a-half on the second night this week," Drake said. "He'll be into double on Friday if you want him on through the weekend. Which I assume you do."

"Stay on him."

"I'll stay on him."

Drake set the small black notebook on the corner of Mason's desk and opened the slim accordion folder on his lap. He took out a small black memo book that was not his own. The cover was rubbed soft on the corners. He turned it once in his hand and held it.

"I had lunch with Mickelson at the commissary yesterday."

"Mickelson?"

"Outside auditor. Two days a week at Paramount production accounting since 1963 or 1964, somewhere in there. I met him on the Powell contract case in '64. You wouldn't have heard the name. He sees the cross-departmental invoices from his desk because the auditing mandate covers them. He doesn't sign anything off; he reads them and he goes home. He's been seeing Argonaut's books since he started."

"Coastal Production Services."

"Coastal Production Services." Drake opened the small black memo book to a page near the back. "Quarterly invoices to Argonaut going back to the first quarter of 1967. Lump sums. Signed off by Mr. Reisman. The work-product invoices say *production services* and that is all they say."

"Read me three."

Drake read from the page.

“Q1 1967. Fourteen thousand. Production services. Q3 1969. Twenty-four thousand. Production services. Q2 1971. Thirty-two thousand. Production services.”

“Total?”

“Mickelson’s tally to Q2 1971 is approximately four hundred and eighty thousand.”

“Four hundred and eighty thousand.”

“Four hundred and eighty thousand. Across the eighteen quarters. Rising to the quarter, near as he sees it. Never a refund, never a holdback, never a question from the boys upstairs. Mickelson says the invoices come in on the same day of the same month each quarter — the fourth Tuesday.”

“Eighteen quarters of skim, Paul. Helen was inside that. That’s why she was killed when she was.”

“Like the man pays his rent on the first.”

Drake turned to the next page in the small black memo book and read: “*They bill quarterly, lump sums, signed off by Mr. Reisman, and the work-product invoices don’t say what the work was. The boys upstairs don’t ask, and I don’t tell them.*”

Mason did not answer.

“He never raised it with Hollister or Reisman,” Drake said. “It isn’t his role to flag a vendor that’s signed by an officer. He hasn’t told anybody else. He gave me the book on the understanding his name stays out of it unless it has to come in.”

“It will not come in unless it has to.”

“That’s what I told him.”

Drake turned a page.

“He saw Helen at the production-business building in the spring. Twice maybe three times. She had a notebook the size of the one she carried at

the charity board, and a pencil. She was talking to the quiet bookkeeping people in his department — he gave me two names. She did not talk to him directly. He gave the names without my asking what the case is. He hasn't asked."

"The names?"

"A woman named Vetter who does payables on the accounting side. A man named Hardiman who works the contracts file. Tom can have both of them by tomorrow afternoon if you want them."

"By tomorrow afternoon."

Drake wrote it.

Drake closed the small black memo book and set it on top of the slim accordion folder on his lap.

"That's the picture, Perry."

The hand on the chair arm came away from the leather. Mason stood up from the desk.

He crossed to the window. The corner of Spring and Sixth was where it had been at three-fifteen. The sedan was gone. The traffic light at Sixth went through one cycle and started the next. Mason had his hand on the sash of the window frame. The hand stayed where it was. The wall clock above the bookshelf went past the half-hour and on through the next two ticks. Mason's breath came out, and he turned back into the room.

"Tomorrow morning you go back to Margaret Doyle, Paul," he said. "You open with the April benefit at the Wilshire. You ask her what she's been thinking about it since you saw her on Tuesday. You don't push past her first answer. We want her wedge widened, not closed."

"The Wilshire benefit."

"The Argonaut payroll question. Ask it the way you asked it on Tuesday. Do not ask it any harder."

"Tomorrow I'm at her office. They'll know I came back. Reisman will know I came back."

“He’ll know. Don’t volunteer for him.”

“Tomorrow afternoon.”

“Tomorrow afternoon Vivian Tate at the gallery. You don’t take the subpoena. You ask her whether she’s prepared to be helpful before she’s required to be.”

“Before she’s required.”

Drake wrote both lines in the small notebook from his coat pocket. He closed the notebook, slid it back into the pocket, and stood up. He had the small black memo book in his hand. He turned it once, the way he had turned his hat.

“Mickelson wants the book back.”

“Tomorrow night.”

“Tomorrow night.” Drake set the small black memo book on top of the slim accordion folder, took the folder under his arm, and went toward the door.

“Tomorrow’s a long day, Perry.”

“They are getting longer.”

“They are.” Drake had his hand on the doorknob. “Chesney. The kid out of Burger’s office. He’ll be on you tomorrow morning.”

“I’ll see him.”

Drake went out. The outer office door closed behind him. The buzzer on Mason’s intercom did not ring.

Mason turned to Della. Della had the steno pad on the corner of her seat with the pencil across the open page. She did not pick up the pencil.

“Telephone Levine, Coulter and Sokol tomorrow morning, Della. Make an appointment for Friday. Make it through Drake’s office. That won’t hold past Saturday, but it doesn’t have to.”

Chapter 9

Della had the receiver against her ear and the pencil in her right hand and the Levine number from the bar association directory propped against the appointment book. The line rang twice. A young man came on at the switchboard of Levine, Coulter and Sokol with the firm's name said in full and an offer to be of service.

"This is Mr. Drake's secretary, calling on his behalf. Mr. Drake would like to make an appointment for his client with Mr. Levine. The matter touches Mrs. Hollister's affairs."

The young man took it and asked her to hold. The hold was about forty seconds. He came back on with Friday morning at ten, with Mr. Levine in person.

"Friday morning at ten with Mr. Levine. Thank you. May I have the address?"

He gave it. North Bedford Drive, Beverly Hills. Two-story office building set back from the street; small courtyard lot at the rear with a buzzer at the gate. Della took it down, repeated the address, and gave the firm Drake's office number for the callback.

"Friday at ten. Thank you very much."

She set the receiver down. The pencil came off the page. The typewriter was still under its cover; the morning *Times* was on the corner of her desk where she had set it when she came in. She crossed to the inner-office window and looked down at the corner of Spring and Sixth. A young man in a light tan suit was leaning against the lamppost across the street with a folded paper under his arm and a paper cup in his other hand. He was looking up at the building. Della crossed to Mason's open door.

"Friday at ten, Chief."

From the inner office: "Friday at ten."

"Chesney's on the corner."

"He's early."

Della came back to her desk, uncovered the typewriter, and rolled in a fresh sheet.

The accounting-floor corridor at Paramount took the late-morning heat through an open window at the corridor's end, smelled of coffee that had been on the burner since seven, and held the bullpen's working hum behind the frosted partitions on either side of Margaret Doyle's office. Her door was open. She was at the desk with a column of figures running down a roll of adding-machine tape, her cardigan over the back of her chair, the coffee cup with its saucer at the corner of the desk where it had been at the start of the morning. Drake stopped at the doorway with his hat in his hand.

"Miss Doyle."

She looked up. The fingers went to the desk edge before she answered.

"Mr. Drake."

"A few more minutes, if you can spare them."

"Of course."

He came in, set the hat on the corner of the desk, and took the wooden visitor's chair across from her. The small black notebook came out of the coat pocket and opened on his knee. The page was still on Tuesday's notes.

"I wanted to ask you about the April benefit at the Wilshire, Miss Doyle. You said on Tuesday that Mrs. Hollister had asked you a question over lunch about how the studio took the Argonaut payroll. I was hoping you might have thought about the afternoon since. Anything else that comes back to you."

A small dip of the chin. The fingers stayed flat.

"I have been thinking, Mr. Drake."

"All right."

"Helen had a notebook with her. A small one, calf cover, I think. She kept it in her handbag. She took it out twice during the meal."

"A notebook."

“Yes.”

“Did she write anything you saw?”

“I saw her write a line after I’d answered her about the payroll. Whether she had written before the lunch I don’t know. I assumed she had — there was a small tick in the margin already, and she made another after I spoke and went on.”

“She was going through a list.”

“It looked like a list. Yes.”

“Was the payroll the only question she asked you?”

A half-second.

“It wasn’t. She asked about the cross-departmental side as well. How money moved between Walter’s company and the studio when Argonaut hired studio crews on a picture. Whether the studio billed Argonaut directly or whether somebody at Argonaut sent the work order to a department. She wasn’t asking me to answer; she was asking whether I knew what she didn’t know. I told her what I told her about the payroll. The rest I didn’t know.”

“All right.”

“In May she telephoned me at this office. It wasn’t a long call. She wanted to know who signed off on Argonaut invoices when they came back through the studio for record-keeping. Whether anyone at Paramount signed off, or whether Argonaut signed off on its own.”

“And what did you tell her?”

“I told her Argonaut signs off on its own.”

The fingers stayed flat.

“All right.”

He took the line down in shorthand. He did not look at her while he wrote it. The adding-machine carriage held mid-stroke at her elbow. The bullpen hum carried through the partition.

“Miss Doyle. When was the last time you saw Mrs. Hollister?”

A pause that was not a pause.

“The week before she died. Wednesday at the charity board.”

He turned a page back in the notebook to Tuesday’s interview, marked a small line in the margin of the date entry, and turned forward again. He did not say anything about the date.

“And anything you’ve remembered since Tuesday that she’d been working on this last month? Beyond what we’ve just gone through?”

“Not that I know of, Mr. Drake.”

The fingers had tightened at *working on* and flattened again as she answered. The knuckle of her index finger had gone pale and stayed pale through the line.

“All right.”

He took it down.

“Anyone else at the studio she knew socially? Anyone you’d point me toward?”

“Mrs. Sandler. From the charity board. And a young woman in editorial named Linda Mathers. I don’t think Linda will know anything; they were friendly only. Mrs. Sandler will speak with a private investigator if Walter asks her to. Not otherwise.”

“All right.”

He took the names. He closed the notebook. He stood. She stood with him. The cardigan stayed on the back of the chair. She came to the door of the office with him and stopped at the threshold with her hand on the door.

“Mr. Drake.”

“Miss Doyle.”

The door closed behind him. He went through the bullpen — typewriters under cover at three of the desks, a man in shirtsleeves on a phone with his hand over his other ear — and down the corridor and the stairs.

He ate the sandwich at the curb on Larchmont with the windows down and the engine off and a paper cup of root beer on the dash from the drugstore counter at the corner. He wrote two lines in the notebook on the passenger seat. He closed it, started the car, and took La Brea south to Olympic, and Olympic west.

The gallery was one of three small commercial fronts on a block off Camden Drive in Beverly Hills, with a coffee shop on one side and a milliner on the other. The cream Mercedes coupe with the low-number plate sat at the curb in front of it. The sign over the door read *tate* in a small lowercase brass plate, no street number, no descriptor. Drake parked across the street and crossed.

The bell over the door rang as he came in. The front room was a single high-ceilinged space hung salon-style with eight or nine canvases on three walls, walnut floors, pale gray walls, four picture lights on at low against the afternoon glare from the front windows. Through an archway at the back was a smaller office: a desk, a chair facing it, a low bookshelf along one wall, a small abstract canvas propped against the desk leg as if it had come in this morning and not yet been hung. A woman was at the desk going through a leather-bound ledger open to a page of columns and small handwritten notes in the margins. She looked up at the sound of the bell, set the pen down, and closed the ledger. The motion was deliberate. It was not hurried.

She was tall. Ash-blond hair cut in a sleek center-part bob. Green eyes with fine lines at the corners. An ivory silk blouse and well-cut charcoal slacks. A pearl in each ear. The slim cigarette case and a thin gold lighter were on the desk by her right hand; an ashtray at her left held a Pall Mall stub and a fresh Pall Mall not yet lit.

Drake came through the archway with his hat in his hand.

“Miss Tate.”

“You’ll be Mr. Drake.”

“That’s right.”

“Sit down, Mr. Drake.”

He sat. The closed ledger sat between them on the desk. She took the case, opened it, took out the fresh Pall Mall, and lit it with the gold lighter. The smoke went up between them and away toward the front room.

“Who is your client, Mr. Drake?”

“I work for Mr. Mason. Mr. Mason represents Mr. Bannon, who is a witness in the Hollister matter.”

“Mr. Bannon.”

She held the smoke a beat and let it go. Her green eyes went to the closed ledger once and came back to him.

“Did you know Helen Hollister, Miss Tate?”

“By name.”

“Do you have any information about Mrs. Hollister’s death that might be useful to Mr. Bannon’s defense?”

“I have no information about Mrs. Hollister’s death, Mr. Drake.”

“Do you have any information about Mr. Hollister’s whereabouts on the evening she died?”

She held the cigarette between her fingers and looked at him and did not answer for a count of three.

“Mr. Drake. I think we both know the question you’re asking.”

“Yes, Miss Tate.”

“My answer is that I have nothing to say to a private investigator on the matter of Mr. Hollister. If there is a court appearance ahead of me, I will deal with it then. With my own counsel.”

He closed the notebook on his knee. He had not opened it in front of her. The pencil had stayed in his shirt pocket through the conversation.

“All right, Miss Tate.”

“Now if you’ll excuse me, Mr. Drake. I have a client coming in this afternoon.”

“Thank you for your time.”

He stood. She did not stand. She did not extend her hand. The Pall Mall stayed between her fingers and the smoke went up and away. He set his hat on his head at the archway, came through the front room, opened the front door, and went out. The bell rang overhead.

He crossed back to his car and looked once at the gallery. The front windows took the afternoon glare and showed nothing of the back office. The Mercedes was at the curb. He sat down in the driver’s seat, took the small black notebook from his coat pocket, wrote a line on the next blank page, and started the car.

The late-afternoon light lay flat across the inner office by the time Drake came through the door. Mason was at the desk in his shirtsleeves, jacket on the rack, vest buttoned over a white shirt with the cuffs at the wrist. Della was at the interview seat with the steno pad on the corner of the chair and the pencil across the page. Drake set his hat on the third hook of the rack, took out the small black notebook, and sat down across from the desk.

“Your kid is in a Ford coupe at the corner now, Perry. He was in the Ford when I came up; Della says he was on the lamppost this morning.”

“He was. Sit down, Paul.”

Drake sat. He opened the notebook on his knee.

“Margaret first.”

Drake checked his page.

“She has been thinking about the Wilshire. She gave me what she didn’t give me Tuesday. Helen had a notebook in her handbag at the lunch. Calf cover. She took it out twice during the meal. Margaret saw her write a line after Margaret answered the payroll question. There was a tick in a margin already — whether Helen had written more before lunch Margaret can’t say, but the tick was there before Margaret spoke.”

Drake turned a page in the notebook.

“A list. Helen had asked her about the payroll first, then about the cross-departmental side — how money moved between Argonaut and the studio when Argonaut hired studio crews. Whether Argonaut sent the work order or the studio billed direct. Margaret didn’t know the cross-departmental answer and told Helen so. In May, Helen telephoned her at the office. She wanted to know who signed off on Argonaut invoices when they came back through the studio for record-keeping. Whether anybody at Paramount signed off, or whether Argonaut signed off on its own.”

“What did Margaret tell her?”

“That Argonaut signs off on its own.”

Mason did not answer. Della’s pencil moved down the page.

“And one more thing. I asked her when she’d last seen Helen, the same question I asked her on Tuesday. Today she said the week before Helen died, Wednesday at the charity board. On Tuesday she said the week before that. I marked the Tuesday page; I didn’t say anything to her about it.”

“All right.”

“She’s hiding something, Perry. Could be the killer. Could be something else.”

Mason did not answer. He stood up from the desk and crossed to the window. The corner of Spring and Sixth held the Ford coupe at the curb; the kid was in the driver’s seat with the folded paper on the dashboard and his hat on the seat beside him. Mason held there with his hands in his trouser pockets and turned back into the room.

“Vivian.”

“She was waiting for me. She knew my name when I came through the archway.”

“Waiting how?”

“Composed. Going through a leather ledger at the desk; closed it when I came in. One motion. Not a snatch. She let me name my client and asked

me my question and answered. She told me she has nothing to say to a private investigator on the matter of Walter Hollister. If it comes to court she'll deal with it then. With her own counsel."

"She closed the ledger."

"She closed the ledger. She didn't want me to see it."

"All right."

"Levine's set, Della says. Friday at ten."

Della: "The firm took it as Drake's office. They didn't ask for any other name."

Mason did not comment. Drake turned a page in the notebook.

"Tom is on Vetter and Hardiman by telephone tomorrow morning. He'll have them by Friday afternoon. Hennessey stays on Reisman; Burdette on the day side. Hennessey's into double on Friday if we hold him through the weekend, which I assume."

"Hold him."

"I'll hold him."

Drake closed the notebook, stood, took his hat from the rack, and turned the hat once in his hand.

"Anything else for tomorrow, Perry?"

"Paul. I want a man on Margaret Doyle's apartment by Saturday morning. Hennessey if you can spare him; one of his second-shift men if you can't. I want to know who comes by, and when, and what kind of car."

"By Saturday morning."

"By Saturday morning."

Drake nodded, went through the inner-office door, and pulled it shut. The outer-office door clicked closed.

Chapter 10

Friday morning. Mason had the second cup of coffee down to the dregs when Della came through the inner-office door with the steno pad in her handbag and her hat in her left hand. The navy jacket was on. The string of pearls she did not wear on a normal day sat at her throat against the pale blue of the blouse. She crossed to the inner-office window and looked down at the corner of Spring and Sixth.

“He’s on the lamppost again, Chief.”

“He’ll have a long morning.”

“He has a paper cup. He had one yesterday. He doesn’t take cream.”

“He won’t get cream from the lamppost.”

She turned from the window. Mason set the cup on the desk and stood up and took his hat from the rack. The second-best charcoal three-piece sat one shade looser at the shoulder than the suit he wore to the courthouse. Della read it on him and said nothing. They went out.

The Levine, Coulter and Sokol building stood back from North Bedford Drive behind a low stucco wall with bougainvillea trained over the top of it. The cab let them out at the curb. Mason paid the driver. Della stepped through the gate to the courtyard at the rear, found the buzzer panel by the second column, and spoke into it.

“Drake. Ten o’clock with Mr. Levine.”

The gate released. They crossed the courtyard, with the small fountain ticking against the brick, and went up two steps and through a glass door into a small front lobby. A wood reception counter stood at one end, a leather settee at the other, a low table with a copy of *Architectural Digest* open on it. The woman behind the counter wore a navy dress with a small white collar. Glasses on a chain rested against her front, with the chain set in two careful loops. Mid-fifties. Salt-and-pepper hair pulled back into a small bun at the nape. The appointment book lay open on the counter under her right hand.

“Good morning. Mr. Drake?”

“This is Mr. Mason, Mrs. Pemberton. I am Miss Street.”

Mrs. Pemberton looked up from the book. Her eyes went from Della to Mason and back to the book. She did not change expression. She lifted a fountain pen from a brass holder at her right hand, drew a thin line through the word *Drake* in the appointment book, and wrote *Mason* above it in a small neat hand. The line was even. The pen had not jumped. She had done it before.

“This way, Mr. Mason. Miss Street.”

She rose and led them through a small swing door at the back of the lobby and up a flight of stairs carpeted in dark green to a corridor on the second floor. The walls of the corridor were hung with framed lithographs of the California coast — Carmel, Big Sur, Point Lobos. She stopped at the second door on the left, knocked once, and opened it.

“Mr. Mason and Miss Street are here, Mr. Levine.”

Aaron Levine stood up behind a mahogany desk at the far end of the room. Late sixties, medium height, thin, slightly stooped at the shoulders. Bald with a fringe of white hair around the back and sides, neatly trimmed. A small white mustache cut even at the corners. Small dark eyes behind small round wire-rimmed glasses. A plain charcoal three-piece with a darker waistcoat. A gold pocket-watch chain across the waistcoat. A small white handkerchief in the breast pocket. He came around the desk slowly and put out his hand.

“Mr. Mason.”

“Mr. Levine.”

“Miss Street.”

“Mr. Levine.”

He gestured at the two leather visitor’s chairs across the desk. They sat. Mrs. Pemberton withdrew and the door closed behind her. Levine lowered himself into his chair. The window behind him looked onto a small interior

courtyard with a fountain running, and the late-morning light fell on the green leather blotter at his elbow.

"I have read your appellate work, Mr. Mason."

"Have you?"

"In *Pacific Reporter*, second series. I have been at this thirty-eight years and I read the briefs that interest me. Yours interest me. What can I do for you?"

"Mrs. Hollister telephoned your office on the Monday before her death, Mr. Levine. The call ran eleven minutes. I am Mr. Hollister's potential counsel of record on the murder charge."

Levine considered it. He took a fountain pen from a holder at his right hand and laid it back in the holder.

"Are you presenting yourself as counsel for Mr. Hollister at this time, Mr. Mason?"

"I am not yet retained, Mr. Levine. I expect to be. I am here on the matter of Mrs. Hollister's affairs as they relate to a defense I expect to file within the week."

Levine took it. He looked at Della and then at Mason. His hand came back to the pen and away again.

"Mrs. Hollister retained this firm in March of this year, Mr. Mason."

"For what purpose?"

"She had become concerned about a pattern of vendor payments at Argonaut Pictures. She asked the firm to assist her in compiling records of certain financial activities and to structure an audit-trail document for her review. The work was not complete at the time of her death."

"Where are the records, Mr. Levine?"

"In this firm's records-room safe, Mr. Mason."

"May I see them?"

"No."

Levine said it with no emphasis. He let the word stand and went on.

"I cannot release client records or this firm's work product on the basis of a request from a non-executor party. Mrs. Hollister's will names her sister, Mrs. Caroline Marsh of Pasadena, as executor. Mrs. Marsh has not contacted the firm. I expect she will. With Mrs. Marsh's authorization, or with a court order on Mr. Hollister's defense behalf, or with a subpoena duly served by either side, the records may be released. Mr. Hollister, as surviving spouse, would have a colorable claim under the marital community-property statute. I would want a court determination before I released anything to him."

Della's pencil moved down the page in shorthand. Mason watched Levine's hand, which had come to rest beside the pen holder.

"Trial is approximately six weeks out, Mr. Levine."

"I appreciate the timeline, Mr. Mason. The firm will respond to a properly served process within forty-eight hours of service. If the District Attorney's office serves first, the firm will respond on the same terms. The records exist. They are not going anywhere."

"Mrs. Hollister's instructions to the firm — were they verbal or in writing?"

"Both. The firm has her engagement letter on file, signed by Mrs. Hollister in March. The firm has my notes from each of the meetings."

"Were there meetings?"

"Three. March, April, and May. All here, in this office. All with me personally. Each approximately two hours."

Mason's right hand rested on the arm of the chair. It stayed where it was. The fountain in the courtyard outside the window ran a half-tone into the room. Della's pencil reached the bottom of the page and turned over and began the next page.

"Thank you, Mr. Levine."

"Mr. Mason."

They stood. Levine rose with them. The handshake was brief. Mrs. Pemberton was at the corridor door before Mason could open it, as if she had been waiting on the stairs. She walked them down to the lobby.

“Mr. Mason. Miss Street.”

“Mrs. Pemberton.”

She made one small additional notation in the appointment book — Mason did not see what it was — and the brass holder closed over the pen. They went out through the courtyard to the cab.

The cab took Wilshire east. Mason settled into the seat and spoke without looking across.

“She had outside counsel on Argonaut from March, Della. Five months on the books. The work was nearly complete.”

“Yes, Chief.”

The smog lay heavy over the corridor, a thin gray haze that flattened the light against the Hancock Park lawns. At the light at La Brea, Della’s eyes went to the side mirror.

“He’s on us, Chief.”

“He picked us up at Bedford.”

“Three cars back.”

“He’ll be three cars back to Spring.”

The light changed. The cab pulled through. The downtown skyline came up through the windshield, blunt and smudged at the edges of the buildings.

The Ford coupe was at the curb on Spring with the engine off when the cab pulled up. The folded *Herald-Examiner* lay on the dashboard. The kid had his hat on the seat beside him and an apple core on the floorboards under the passenger door. Mason paid the cab. They went up.

Della took off the navy jacket and hung it on the second hook of the rack. She unhooked the pearls at the back of her neck, set them in their small velvet box, and slid the box into the second drawer of her desk. The typewriter cover came off and went onto the bottom shelf.

Mason crossed to the inner office. He laid his hat on the corner of the desk, sat down, and looked across at Della through the open door. The pearls were in their box. The navy jacket was on the rack.

“He’ll have the address on Burger’s desk by Saturday morning, Della.”

“He will.”

“It bought us the meeting.”

“It did.”

She rolled a fresh sheet into the typewriter. Mason took a sheet from the legal pad in the middle drawer and wrote on it the names *Caroline Marsh — Pasadena* and *Levine engagement letter — March*. He did not underline either. He folded the sheet once and slid it into the inside pocket of the jacket on the back of his chair.

The afternoon light had gone flat against the bookshelves and the heat had not come off the pavement on Spring when the door buzzer rang twice. Drake let himself in. He had the slim accordion folder pressed against his ribs under his left arm and the hat down at his thigh in his right hand. He laid the folder on the corner of Mason’s desk, hung the hat on the third hook of the rack, and dropped into the visitor’s chair across from the desk. The small black notebook came out of the inside pocket of his coat.

“Your kid is in the Ford. I came up the back stairs.”

“Della had him at the lamppost.”

“He moves around. Perry, what did Levine give you?”

Mason gave it to him in pieces. Helen retained the firm in March. Three meetings, March April May, two hours each, with Levine personally. A pattern of vendor payments at Argonaut. Records in the firm’s safe upstairs. Won’t release without the executor — Caroline Marsh in Pasadena — or a court order or a subpoena. Hollister has a community-property claim that Levine would want a court determination on before he released anything.

Drake took it down. He looked up.

“If the sister won’t authorize, we’ll have to subpoena. Burger may get there first.”

“He may.”

“I’ll get a man up to Pasadena tomorrow. If she’s reasonable I’ll have her on the telephone with you Monday.”

“Monday.”

“Monday.” Drake turned a page. “Hennessey on the bungalow. Last night, lights on at seven-fifty-five. Out at eleven sharp. Home twelve-eleven. Same as the night before, same as the five nights before that, allowing the minute.”

“To the dot.”

“To the dot. Burdette has the day side. The portfolio is on its sixth night. In light, out heavier. Burdette’s eye holds.”

“All right.”

“There’s a thing.” Drake turned the page back. “Hennessey was on the bungalow last night at ten-twenty. Reisman took a phone call on the second floor. The window was open. The voice carried into the alley. Hennessey was at the corner of the alley with his car. He couldn’t make out who Reisman was talking to, but Reisman was answering questions about a vendor named in some Argonaut paperwork — Hennessey did not catch the vendor name. Reisman told whoever it was on the line that he had never met the man. Said the name was unfamiliar. The whole call was about thirty seconds.”

Mason did not answer. Della’s pencil moved down the page on the corner of her interview seat.

“Tom got Vetter at her desk just before noon,” Drake said. “Vetter confirmed she talked to Helen at the production-business building in April. Helen had a small calf-cover notebook in her handbag. Helen asked her about a specific vendor signed off only by Reisman — the vendor name Vetter remembered, Tom did not press her for it — Vetter answered honestly: she had seen the name on payables but did not know what the work was. Tom got Hardiman at his home at three. Hardiman confirmed the same. Helen

at his contracts file in April. Same notebook. Same vendor question. Same answer.”

“Both of them in April.”

“Both in April.”

“Were they on the list together?”

“Vetter said they had not compared notes. Helen had been to each of them separately. Vetter knew Hardiman had seen her too because Hardiman mentioned it to her at the commissary in May. Neither of them brought it to anybody else.”

“She worked them separately, Paul. Building it source by source. That’s how Margaret will land.”

Drake closed the small black notebook and nodded at the slim accordion folder on the corner of the desk.

“And then there’s the Magnolia. Owen Davies turned the steward’s records this morning while the kitchen was setting up. The photostat machine ran an hour. Two years of register, two years of the parking log, a sample of dining-ticket chits — going back two years to give you a baseline against the Day-of chits Tom got me Tuesday. Owen wants them back by Monday morning.”

“By Monday morning.”

“By Monday morning.” Drake stood. He took the slim accordion folder from the corner of the desk and carried it through the inner-office door into the outer office. He set it on the corner of Della’s desk. “Hang on to these please, Della. They go back to Mr. Davies at the Magnolia Monday morning. I’ll come by for them.”

“Thanks, Paul.”

Drake came back in, took his hat from the rack, and turned it once in his hand.

"Hennessey is into double on the Reisman tail from tonight, Perry. Twelve an hour, eight hours a night, plus Burdette day side. The week's bill is going to look like a feature budget."

"Send it, Paul."

"I will." He set the hat on his head. "Anything else for tomorrow?"

"Hennessey on Margaret Doyle's apartment by six o'clock Saturday morning, Paul. Per yesterday."

"At six o'clock." Drake turned for the door. He had his hand on the knob.

Mason stood up from the desk and crossed through the open inner-office door into the outer office. Della had the stack on her desk in three small piles — guest-book pages on top, parking logs in the middle, dining-ticket chits at the bottom. She had begun with the top pile. The first photostat lay face up on the blotter under her right hand.

"Paul."

Drake stopped at the inner-office door.

"Reisman's lights last night went out at eleven sharp."

"Eleven sharp."

"And stayed out."

"They stayed out."

Mason's eye then went down to the page on Della's blotter. The photostat was a Magnolia Club guest-book page from a Tuesday in early February, with Owen Davies's hand in the steward's column and the members and the guests signed in for that night, and halfway down the page, in the columns ruled across the sheet, the name *Reisman, A.* stood in the member column and the name *Bannon, H.* stood in the guest column, and the date in the third column was the second of February.

Drake: "Tom got Hal on the phone at the motel this morning. Ran him a list of the dates I asked for. Hal didn't remember the February lunch. Said he takes a lot of these meetings."

“He does.”

Drake went out. The outer-office door clicked shut behind him.

Della reached for the page on the blotter. She turned it over, set it on the smaller stack at her left hand for the second-drawer Hollister file, and reached for the next one. The cabinet drawer pulled open with a small metallic click. The page went into the file. The drawer clicked shut.

Chapter 11

The Saturday morning *Times* lay open on Mason's desk. He turned the page with the coffee cup in his left hand, and the rim caught the corner of the paper. The dribble landed on the lower third of the tie.

He looked down at the tie, set the cup back on the saucer, and turned the page.

Through the open inner-office door Della was at her desk in a cotton blouse and a light wool skirt, going through the morning mail. The typewriter cover was still on. She had brought him the second cup at quarter to nine and taken her own back to her desk. The bullpen across the corridor was quiet, with three of the four desks under cover and the fourth Della's. The elevator had run twice in the last hour. Both for floors below his.

She crossed the outer office to the inner-office window and looked down at the corner of Spring and Sixth.

"He's in the Ford, Chief. He's been there since I came in."

"He'll have a long Saturday."

"The *Herald-Examiner's* on the dash. He had the *Times* yesterday."

"He'll work through the page count."

She came back to her desk. The typewriter cover came off.

The phone rang. She lifted the receiver, listened, and reached for the intercom switch.

"Drake on one, Chief."

Mason set the *Times* aside and lifted his receiver.

"Paul."

"Hennessey's been on the apartment from six this morning. Lights on at quarter past eight, off at twenty to ten. The milkman at half past, two letters in the slot at quarter past nine. No movement out yet."

"All right."

"My man left for Pasadena at seven. He'll be at Caroline Marsh's house by ten. Back here by four with a report."

"All right."

"Frank phoned at half past seven. Burger's man Chesney filed his Friday report by ten last night. Burger's office is preparing a subpoena for Levine, Coulter and Sokol. Monday-morning service. Frank says Burger reads Helen Hollister's CPA work as Helen documenting her husband's business."

"That's how he'll read it."

"Reisman's bungalow last night, lights on at five to eight, out at eleven, home twelve-eleven. Burdette's holding the day side. The portfolio's coming out of the bungalow on its seventh evening."

"All right, Paul."

"That's the morning."

"Stay close. I'll have something for the apartment tonight."

"For tonight."

The receivers went down. Mason looked at the tie.

The phone rang again. Della took it.

"Mr. Putnam, Chief."

She put the call through. Mason lifted his receiver.

"Mr. Putnam."

"Counselor. Walter has asked me to bring him to you today, Mr. Mason. He has asked me to take the personal-defense matter out of my hands and into yours. I would continue as counsel to Argonaut Pictures for any corporate concerns. I would step aside on the criminal matter as of today."

"All right, Mr. Putnam."

"Walter has asked whether eleven o'clock would suit you."

"At eleven."

"At eleven, Mr. Mason."

“Mr. Putnam.”

He set the receiver down. Della had the pencil over the appointment book.

“At eleven, Della.”

She wrote it down. Mason stood, crossed to the closet behind the door, and opened it. The small mirror was on the inside of the door. The row of hooks was above the mirror with three ties on them. He took the dark one in the middle. The other two were also dark. He unsnugged the spilled-coffee tie at the throat, slid it from under the collar, and folded it once over the bar at the bottom of the door. He brought the new tie up around the collar and tied a four-in-hand by feel.

He came back to the desk.

“Della. The substitution-of-counsel form on my desk before eleven. Two carbons.”

The typewriter cover was already off.

Putnam came through the outer-office door at three minutes after eleven. The white head and the eyeglasses on a chain came in first; Hollister behind him. The small dark briefcase was in Putnam’s right hand. He stopped at Della’s desk and removed his hat. Hollister removed his hat behind him.

“Miss Street.”

“Mr. Putnam.”

She rose, took the two hats, and set them on the rack. Hollister was in a charcoal three-piece different from the one he had worn at the courthouse, and his shoes were not quite polished. The black-framed glasses sat on his nose. The thick gray hair was combed back from the high forehead.

“Mr. Mason will see you now, Mr. Putnam.”

She crossed and opened the inner-office door.

Mason rose behind the desk and came around to take Putnam’s hand and Hollister’s hand. Putnam: “Mr. Mason.” Hollister: “Counselor.” Mason indicated the two visitor’s chairs. They sat. Della took the wooden chair

behind Hollister's left shoulder, set the steno pad on her knee, and lifted the pencil.

Putnam set the briefcase on his lap.

"Mr. Mason. Walter has asked me to bring him to you today. He has asked me to take the personal-defense matter out of my hands and into yours. I would continue as counsel to Argonaut Pictures for any corporate concerns. I would step aside on the criminal matter as of today."

"Thank you, Mr. Putnam."

"Walter has asked me to remain available to you on what I have seen of the case. I am at your disposal."

"Thank you."

Hollister: "Mr. Putnam has been very good to me, Mr. Mason. I have asked him to step aside because the matter has gone past his practice."

"All right, Mr. Hollister."

Putnam opened the briefcase. The substitution-of-counsel form came out on top, with two carbons, signed at his firm offices that morning by him and by Hollister. He set the form on the corner of the desk. Della's typed copy stayed on her blotter. Mason read down the page, took the pen from the holder at his right hand, and signed. Della took the original from the corner of the desk and slid the carbon to Putnam. Putnam slid it back into the briefcase.

He stood.

"Mr. Mason."

"Mr. Putnam."

Hollister did not stand. Mason walked Putnam through the outer office to the door. Della rose and took Putnam's hat from the rack. Putnam took it, set it on his head, and paused at the door with his hand on the knob. He looked back at Hollister sitting in the visitor's chair through the open inner-office door. The eyeglasses on the chain caught the light. He did not say anything. He opened the door and went out.

Mason came back into the inner office and sat down behind the desk. Della had the pencil over the steno pad. Hollister had his hands on the chair arms. The eyes behind the black-framed glasses had gone slightly watery again.

“Mr. Hollister.”

“Mr. Mason.”

“On the Tuesday in early May this year. Were you at the Magnolia Club for the evening?”

A pause. The hands tightened on the chair arms.

“I was, Mr. Mason.”

“And on the Tuesday in late June?”

A longer pause. The hands moved from the chair arms to the desk edge and stayed.

“I was, Mr. Mason.”

“Mr. Hollister. The two Tuesdays before the Tuesday Mrs. Hollister died.”

The hands went palm-down on the desk edge.

He drew a breath that lifted the waistcoat half an inch and let it back, and the hands that had been on the chair arm and then the desk edge stayed flat where they were, and the eyes behind the black-framed glasses did not move from the corner of the desk.

“Mr. Mason. I was not at the Magnolia for the evening on those two Tuesdays.”

Mason did not answer.

“I asked Mr. Bannon to say I was. I paid him to say I was.”

“For all three Tuesdays.”

“For all three Tuesdays.”

“Where were you, Mr. Hollister?”

A pause. The hands stayed flat.

“At a friend’s apartment, Mr. Mason. I would prefer not to name the friend at this stage.”

“All right, Mr. Hollister. We will come to the friend in time.”

“Thank you.”

Mason took a sheet from the legal pad in the middle drawer and laid it on the desk between them. He took the pen from the holder.

“The Magnolia routine you gave to the police on the Wednesday morning. Walk me through it.”

Hollister walked through it. He had been at the Magnolia at eight. Owen Davies had signed him in at the door. Eddie Salinas had been on the bar. Hal Bannon had been at the bar with a glass when he arrived. He sat to dinner about half past eight in the small dining room with Hal. He did not recall who had served them. He did not recall what either of them had eaten. He took wine; Hal took beer. He left around midnight. Tony Marchese brought his car. He drove home Sunset to Highland and then up. He did not stop. He arrived home about a quarter to one. Mrs. Aguirre had taken her powder; the bedroom door was closed; he slept in the room he sleeps in when he comes home late.

The voice had flattened by the second half of the account.

Mason wrote it down in a column. He did not look up while Hollister talked. The pencil moved down the page in shorthand on the corner of Della’s chair.

“Mr. Hollister. Did you give that account to a grand jury?”

“No, Mr. Mason. The prosecutor did not call me. I gave it to the police at home on the Wednesday. They came back on the Saturday and I gave it again.”

“Mr. Bannon was called.”

“Mr. Bannon was called. He gave the same account. He has told me as much.”

Mason wrote the no-grand-jury note in the margin.

“Mr. Hollister. In the past six months has Mr. Reisman raised any concern about the company’s finances with you?”

Hollister’s eyes moved to the desk. The hands stayed flat.

“No, Mr. Mason. The books have been very well-managed.”

“All right, Mr. Hollister.”

Mason wrote the line down and set the pen in the holder.

“Mr. Hollister. The substitution will be filed Monday morning. Until then I am your lawyer in fact and Mr. Putnam is the lawyer of record. From this moment, three working instructions. Do not speak of the case with anyone — police, friends, your partner, your daughter — without me on the call. Assume the home telephone and the office telephone are not private. The Magnolia account as you gave it to the police is privileged between you and me. Do not modify it in conversation with anyone.”

“All right, Mr. Mason.”

“Anything you need from me before Monday?”

“No, Mr. Mason.”

Mason stood. Hollister stood. The hands came up from the desk edge and went to the chair arm and then to the side. Mason walked him to the inner-office door and through to the outer office. Della had the hat off the rack and held it out.

“Mr. Hollister.”

“Miss Street.”

He took the hat. He stopped at the outer-office door with his hand on the knob. He turned.

“Mr. Mason. The friend’s name. You will need it eventually.”

“I will, Mr. Hollister. When I do I will ask.”

“All right, Mr. Mason.”

He opened the door and went out.

Mason came back to the inner office. The legal pad lay on the desk. He read down the column. He took the page, folded it once, and slid it into the inside pocket of the jacket on the back of his chair.

The typewriter started in the outer office. Della had the carbon stack and the letterhead and the substitution form in front of her. The clock above the bookshelf read fifteen minutes after noon.

Mason crossed to the window and stood with his hands in his trouser pockets. The Ford coupe was at the curb. The kid had the *Herald-Examiner* refolded on the dashboard now. The hat was on the seat beside him. The corner traffic light cycled green-yellow-red.

He turned back into the room and took the chair behind the desk.

“Della.”

“Chief.”

“Go home after the letter.”

“After the letter, Chief.”

The typewriter went on.

A sandwich came in from the corner counter at half past one. Della brought it in on a plate from her own desk, set it on the corner of his blotter, and went back to her own. He ate at the desk. She ate at hers. The typewriter cover came back on at quarter to two. She stayed at her desk.

Drake came through the inner-office door from the back stairs at twenty past four. He had the small black notebook in his right hand and the second small black notebook in his coat pocket. The hat went on the third hook of the rack. He sat in the visitor’s chair across from the desk.

“Your kid’s still in the Ford.”

“He’s been there all day.”

“He has nothing to read but the *Herald-Examiner*.”

“He has the same thing tomorrow.”

Drake opened the small black notebook on his knee. Della had the pencil and the steno pad on the corner of her desk in the outer office.

“Margaret first.”

“Hennessey was on the corner of the apartment building from five to six this morning. He was in our panel truck — Western Plumbing and Heating, the stencil. He was on the south corner with a clear view of the front entrance and the lobby. Margaret’s lights came on at quarter past eight. The milkman at half past. Two letters in the slot at quarter past nine. Lights off at twenty to ten.”

“All right.”

“At twenty-five to eleven she came out of the building. Wool skirt, blouse, light cardigan over her arm, handbag, no hat. Walked one block south, took a cab from the stand at Coldwater. Hennessey followed in the truck.”

“Where did the cab go?”

“Beverly Manor. Twelve thousand block of Pico, west side.”

“Twelve thousand block of Pico.”

“Twelve thousand block of Pico. She went in at five past eleven. Inside thirty-eight minutes. Cab back at twelve to twelve. Apartment by twenty-five past.”

“Beverly Manor, Paul. Who’s at Beverly Manor?”

“Hennessey didn’t get a name yet, Perry. He’ll have it tomorrow.”

Mason’s right hand had been on the arm of the chair. It stayed where it was.

“Find out who’s been paying the bill at Beverly Manor, Paul. The whole bill. Going back as far as it goes.”

“By when, Perry?”

“Monday. And how long. If somebody else has been carrying it, he’s been holding her with it.”

In the outer office Della’s pencil halted on the page and went on. Mason’s eye met hers across the open door. He turned back to Drake.

Drake took the line down. The pale-blue eyes had gone a click less amused. He wrote with his head down.

“Hennessey talked to the cab driver at the stand at Coldwater on the way back. The driver had taken her there before. Saturdays. Once a week.”

“Once a week.”

Mason did not answer. Drake turned the page.

“Pasadena.”

“Pasadena.”

“My man was at Caroline Marsh’s house at ten. She was at home with a niece visiting from San Marino — late twenties, on the porch when he came up the walk. She took my man into the front parlor. She’ll take a phone call from you Monday morning at nine. She’s the executor of the will. She has not contacted Levine. She’s been managing the house and the funeral arrangements. Tired, but composed.”

“All right.”

“The niece had brought some of Mrs. Hollister’s papers down from the house yesterday. Address book, correspondence, a notebook or two. Marsh hasn’t been through them. She said she’d look before Monday.”

“She’ll look before Monday.”

“She’ll look.”

Mason wrote nothing. He sat at the desk and watched the corner of Drake’s notebook.

“Reisman.”

“Burdette had the day side from nine. Pattern’s holding. Reisman in the bungalow most of the morning. Out to lunch at the commissary at one. Back at quarter past two with one of the Argonaut secretaries — Burdette didn’t get her name. Bungalow till twenty past five, then the parking lot, the Cadillac, up to the house. Hennessey relieves at the bungalow tonight.”

“All right.”

“Frank phoned at half past seven this morning. Burger has Chesney’s Friday report. The office is preparing a subpoena for Levine, Coulter and Sokol. Monday-morning service. Frank said Burger’s reading is the wife was building a case against the husband. He plans to call the firm or a junior at the firm to authenticate the records as proof of what Mrs. Hollister was working on.”

“He’ll read them his way. They’re records, Paul. They’ll read both ways.”

“They’ll read both ways.”

Drake closed the small black notebook. He took the second one out of the inside pocket and set it on his knee but did not open it.

“That’s the day.”

“Anything else for tomorrow, Perry?”

“Sunday off for you, Paul. The lanes keep going. Hennessey at the apartment, Burdette day-side on Reisman, Hennessey rotating in the evening. Bring it all in Monday morning with whatever Hennessey gets on the bill at Beverly Manor.”

“Sunday off.”

Drake stood. He took his hat from the rack and turned it once in his hand.

“Paul. I want to be at Margaret Doyle’s apartment tonight at eight. I want you with me. Hennessey at the corner.”

“At eight.”

“By eight.”

Drake set the hat on his head and went out through the inner office and the outer office, the second notebook still in his coat pocket.

Mason stood. He crossed to the window and stood with his hands in his trouser pockets. The Ford coupe was at the curb on Spring. The kid had the engine off and the *Herald-Examiner* refolded again. The afternoon light had gone flat against the buildings across Spring.

He turned back into the room. The wall clock above the bookshelf read five past five. Della was at her desk in the outer office. The pencil was across the page.

Chapter 12

The beige Ford sedan pulled to the curb behind the panel truck and Drake set the brake. The street was a residential block in the Valley running east and west between two larger streets, with porch lights coming on along the row of stucco bungalows opposite, and the apartment building three stories up across the way set back behind a strip of lawn that had not been watered Saturday. Past the second story the western sky still held a band of orange.

Mason got out. Drake got out. They closed the doors gently. Drake crossed the strip of asphalt between the two cars to the panel truck and leaned down to the driver's window. The truck had Western Plumbing and Heating across the side panel in red lettering that had been touched up at the corners.

"Anything since the report, Hennessey?"

Hennessey had the tie unsnugged at the collar and the suit jacket folded across the seat beside him with the lapels turned in. The white shirt sleeves were rolled to the forearm. A thermos and a paper cup stood on the dashboard. The folded *Herald-Examiner* lay on the passenger seat with the crease running down the center column.

"Nothing since the report. No cars on the block I didn't know. No man up the walk. Lights on the front-window since seven. Same lights."

"All right."

Hennessey did not move from behind the wheel. Drake straightened, glanced once down the block toward the corner where the next address had a sprinkler running on the lawn, and crossed back to where Mason stood waiting on the curb. They went up the small walk to the building's front door together. The Valley evening was warm and the asphalt held the day's heat under their shoes.

The lobby was small. A row of brass mailboxes set into the wall on the right; an interior door of pebbled glass at the back leading to the stairwell; linoleum on the floor in a yellowed cream with a darker thread running

through it. Mason took his hat off as he came through the front door and held it in his left hand. Drake had his hat already in his hand from the truck.

Up the stairs. Linoleum on the steps too. The smell of someone's late dinner faint in the stairwell — onion and pork browning in a pan, a long way off. A pendant light at the second-floor landing lit one corner of the small square space and left the rest in shadow.

Drake stopped at the landing. He took a small folded paper from the inside pocket of his coat and sat down on the top step of the second-floor flight, with his back against the wall. He looked up at Mason once and looked down at the paper.

"Take what time you need, Perry."

"All right, Paul."

Mason continued up the third-floor flight alone. The corridor at the top had four apartment doors, two on each side, with a single hall light overhead at the staircase end and another at the far end of the run. The linoleum continued. Margaret's door was the second on the right. Mason stood at the door with his hat in his left hand, and knocked twice.

Inside the apartment a chain ran along its track. The lock turned. The door opened.

Margaret stood in the doorway with her right hand on the inside knob. The cardigan was a soft rust over a plain white blouse and the skirt was a darker navy than the gray wool she had worn to her office. Her hair was pinned back at the temples with two small combs and a strand had fallen at one side. The freckles on the bridge of her nose were a shade fainter under the corridor light than they had been at her desk on the Tuesday Drake first sat across from her. The hazel eyes held Mason's. The knuckles on the hand at the knob were pale.

She looked past him, down the corridor and over his shoulder to where Drake sat on the step at the head of the stairs to the second floor, then her eyes came back.

"Mr. Mason."

“Miss Doyle.”

“You came up alone.”

“Mr. Drake is on the stairs.”

“All right.”

She stepped back from the door. Mason came in. She pulled the door shut behind him with the hand on the inside knob; she did not turn the lock and she did not run the chain.

The living room was small and well kept. A sofa under a knit afghan folded along one arm; a wing chair on the other side of a low coffee table; a small kitchen alcove visible through the doorless arch at the back left; a closed bedroom door at the back right. A floor lamp burned on the table by the wing chair and threw a circle of warm light across one corner of the room. On the wall above the sofa hung a framed black-and-white portrait of an older woman in pearls, the print yellowed at the edges of the mat. A small writing desk stood in the corner with a household account-book open under another lamp and a fountain pen laid across the page.

Margaret indicated the wing chair.

“Please.”

Mason took it. He laid the hat on his lap. Margaret crossed to the writing desk and turned the straight chair so it faced the wing chair across an angle, then sat. The light from the floor lamp caught her at the cheekbone and the eye and left the other side of her face in shadow. Her hands folded in her lap.

Mason came to it directly.

“Miss Doyle. Beverly Manor. The twelve-thousand block of Pico, west side.”

“Yes.”

“Who is at Beverly Manor?”

“My mother.”

“And the bills.”

The hands in her lap moved. The right hand came up to the arm of the chair and gripped the carved end of it. The left followed. Her shoulders did not lift; her breath caught once before the inhale, and the inhale that followed it was thinner than the one before. The eyes went bright. The tear did not fall.

When she spoke her voice had dropped half a register and the consonants had sharpened.

“My mother is at Beverly Manor. He’s been paying since ‘69.”

Mason did not comment, and outside down the block the sprinkler at the next address went on running, and the floor lamp at his elbow gave a small electrical hum that ran under the room, and the framed portrait of the older woman above the sofa held its pearls in the still air, and from the apartment below somewhere a door closed.

Margaret drew the next breath. Her hands stayed on the chair arms.

“He arranged it through what he called a private fund. He told me it was a longtime family-friend gesture, Mr. Mason. I let myself believe him.”

“How long has it run, Miss Doyle?”

“Since June of ‘69. Two hundred and forty a month at the time. Three hundred since last spring. He raised it without a word.”

“And the conversation.”

“I had been trying to keep her at the house another year. The Paramount salary covers what it covers. I was at his bungalow on a billing question and he knew about my mother because Mr. Hollister had asked after her once. He said his cousin had been at Beverly Manor and he knew the cost of that kind of care. He said he had a fund for that purpose, and would I let him help. I let him help.”

Mason did not answer.

“There has never been any paper, Mr. Mason. The check is mailed direct from a bank in Pasadena to the home on the first of every month. I have never seen it. The director at Beverly Manor tells me the arrangement is private.”

“Since when have you known what it was, Miss Doyle?”

She did not look up from the rug between them.

“Since the morning the housekeeper found Helen.”

The hand he had set on the arm of the wing chair had gone still on the wood. The floor lamp’s hum continued under the silence. Outside the front window a car passed slowly down the block and the tires made the small dry sound of asphalt warm from the day. Margaret’s hands loosened at the chair arms; the knuckles went back to a normal color. She drew breath evenly. She lifted her eyes from the rug at last and put them on Mason and held them there.

“Miss Doyle. Mr. Reisman has been paying the bills at Beverly Manor since ‘69 because he knew there would come a day when he would need something from you. The day came a month ago. He needed your silence on the records you helped Mrs. Hollister put together. Tomorrow or the day after he will need the records destroyed. The day after that he will need the only person who can put his signature next to Coastal Production Services to be unavailable to put it there. If he walks out of court at the end of this trial, he stops paying the bill at the home. The day he stops paying the bill at the home, he removes you. You either move now, or you wait.”

She heard it through. The hands in her lap stayed where they were. She did not flinch on the name.

“How sure are you, Mr. Mason?”

“As sure as I am sitting in this room.”

“How long have you known?”

“Since the second week of the case.”

She nodded once.

“I will not be the only thing standing between him and freedom, Mr. Mason. If you do not have him before I take the stand, I do not take the stand.”

“You won’t be the only thing, Miss Doyle. We have other witnesses. We have what’s in the file.”

“All right.”

She drew breath and let it out.

“My mother stays at Beverly Manor through the trial, Mr. Mason. After the trial as well. I cannot move her from where she is. I cannot pay for her where she is on what Paramount pays a bookkeeper. I am asking what happens to my mother on the day Mr. Reisman stops paying.”

The hand on the arm of the wing chair went still on the wood for the second time.

“I will see what can be done, Miss Doyle.”

She held his eyes a moment longer, and looked down at her hands.

“Thank you.”

“What will you testify to?”

“I will testify to Coastal. The signatures, the invoice cadence, the work that did not exist. I will testify to the conversation in April when Mrs. Hollister first asked me about Argonaut. I will testify to the May conversation when she asked me who signed off on Argonaut invoices. I will testify to what I helped her assemble in June. When you are ready.”

“Thank you, Miss Doyle.”

He stood. She stood with him. Her hands came up from the chair arms and went to her sides. They did not move toward the door together. She stayed at the chair and looked at him.

“Mr. Mason. The home is closed to outside calls after nine in the evening. If you need me before nine on a Sunday morning, telephone the apartment and after nine I am at Pico.”

“After nine on a Sunday at Pico. Thank you, Miss Doyle.”

He crossed to the door.

Mason opened the door, stepped through, and pulled it closed from the corridor side. From inside the apartment the chain ran along its track on the inside; the lock turned once. He waited at the door with the hat in his left hand until the chain had settled. Then he set the hat on his head.

Drake stood at the head of the stairs with the small folded paper back in the pocket of his coat. He looked at Mason once and turned and started down the second-floor flight. Mason followed.

At the second-floor landing Mason spoke.

"She'll testify, Paul. On Coastal. Signatures and invoice cadence."

"On Coastal."

"Conditional. The trap closes around Mr. Reisman before Margaret takes the stand. We will need what's in the file to land."

"All right, Perry."

"Keep Hennessey on the building. Through Monday morning."

"Through Monday day-side. He has the bungalow nights."

"I'll want her down to the office before the hearing, Paul. One of your men brings her."

"One of my men."

Down the second flight to the lobby. The brass mailboxes in their row along the wall. The pebbled-glass interior door swung shut behind them. Out through the front door of the building to the strip of lawn and across it to the curb.

The western sky over the row of bungalows opposite had gone full dark. Porch lights were lit along both sides of the block. The sprinkler at the next address had shut off, and a wet patch on the asphalt where the spray had reached caught the lamp light from above the lawn.

They crossed to the cars. Drake gave a hand signal through the windshield of the panel truck and Hennessey returned it. The truck did not move. Drake unlocked the Ford and they got in.

Drake set his hand on the gear shift. He did not turn the key.

“Perry.”

“Paul.”

“Sunday off.”

“Sunday off.”

Drake turned the key.

Chapter 13

At the desk Mason had the morning *Times* unfolded and unread. Della came in from the outer office with the steno pad and the appointment book.

“Miss Doyle, Chief?”

“Hennessey on the apartment through the morning. We don’t telephone.”

“All right, Chief.”

“And the testimony, Della. On Coastal. Conditional. The trap closes around Mr. Reisman before Margaret takes the stand.”

“Conditional. Yes, Chief.”

She wrote it on the pad. The appointment book went on the corner of his desk.

Drake came up the back stairs at eight-fourteen. Della heard the back-hallway door from her own desk and was at the inner-office threshold before he crossed the outer office. She had the appointment book against her chest and the pencil already in her right hand.

“He’s in. Coffee on the table.”

“Coffee.”

He went through. Mason was at the window with his back to the room, hands in trouser pockets, the Monday navy three-piece a deeper color than the morning lamp had on it. The cup on the corner of the desk had gone untouched.

“Paul.”

“Perry.”

Mason came around the desk. Drake took the visitor’s chair and pulled the small black notebook from the inside pocket of his coat. The slim accordion folder went on the corner of the desk. Della took the wooden chair behind Drake’s left shoulder, set the steno pad on her knee, and lifted the pencil.

“Della.”

She wrote *Monday Day 12* across the top of the page. Drake opened the notebook on his knee.

“Frank phoned at seven. Burger has subpoenaed the Magnolia Club. The records subpoena landed last Wednesday. Hearing on his motion to admit the records as business documents is at two this afternoon. Judge Whitcomb. Their custodian on the stand.”

“Who is their custodian?”

“A Mr. Linwood. Club secretary, fourteen years at the desk. Owen Davies says he is by the book. Won’t say yes to anything that isn’t asked in the right form. Won’t say no to anything either.”

“Will he have what Burger wants?”

“He’ll have it.”

“All right.”

“Burger’s office served the subpoena at Levine, Coulter and Sokol at eight this morning. Forty-eight-hour return per the firm’s standing rule. Aaron Levine telephoned my office at eight-twenty. He is waiting for word from Mrs. Marsh.”

“Mrs. Marsh telephones at nine.”

“She does.”

“Reisman?”

“Hennessey on the bungalow last night. Lights on at five to eight. Out at eleven sharp. Cadillac in the garage at twelve-oh-eight. Burdette is on him this morning from six.”

“All right, Paul.”

He paused at the chair-arm.

“After court today, Paul. Stay heavy on him tonight. Hennessey night-side, Burdette on the second shift through midnight. I want any variance. However small.”

“For the variance. Yes.”

“Any particular shape?”

“The portfolio. The route. The hours. Anything.”

“All right.”

“Tom to Pasadena at three. Mrs. Marsh will have a bundle of Mrs. Hollister’s papers her niece brought down from the house. He is to collect it and have it back to your office by tomorrow morning.”

Drake wrote it.

“And the substitution, Della.”

“It’s in the second drawer, Chief. The carbons are in the file. I’ll send it down to the courthouse by ten.”

Drake closed the notebook and slid it back into the coat. He stood at the chair, looked at Mason once, looked at Della.

“Sunday off, Perry.”

“Sunday off.”

“I took half of it.”

“You took half.”

He went out the way he had come.

The phone rang at nine.

Della took it at her own desk and reached for the intercom. The pencil was already on the pad.

“Mrs. Marsh on one, Chief.”

Mason picked up.

“Mrs. Marsh.”

“Mr. Mason.”

“Thank you for telephoning.”

"I have been through the bundle Mrs. Bender brought down on Friday, Mr. Mason. Helen had been working on something at her husband's company. I do not know what it was. I can see that it was a serious piece of work."

"It was, Mrs. Marsh."

"I am authorizing Mr. Levine to release the records at his firm to your office. I will telephone him this morning."

"Thank you, Mrs. Marsh."

"My niece has the bundle of Helen's papers at the house. Address book, correspondence, a notebook or two. If you have someone who can come for them this afternoon."

"At what time would suit Mrs. Bender?"

"Mrs. Bender will be at the house from two onward."

"My man will be there at three."

"At three, Mr. Mason."

"Mrs. Marsh."

The receiver went down. Della came through the inner-office door with the steno notes folded over her hand.

"Tom at three, Della. Tell Drake by telephone."

"At three. Tom. By telephone."

She went out.

The cab took Spring south to First, First west to Hill, and Hill south to the courthouse. The afternoon edition of the *Times* lay folded between them on the seat. Della had the steno pad and a clean pencil in her handbag, and her hat on her head. Mason had the hat on his lap and the leather portfolio on the seat against his hip.

The courthouse lobby was cooler than Spring Street. The marble held the day's heat below the polished surface. They went up to Judge Whitcomb's

session on the third floor and through the double doors at the head of the corridor.

The bailiff at the side door from holding had Hollister with him at one minute before two. Hollister was in a charcoal three-piece pressed at the jail. The polish on the shoes had dulled at the creases. The watery dark eyes behind the heavy black-framed glasses were a shade more tired than they had been at the arraignment. He removed his hat and held it in front of him with both hands and said nothing.

“Mr. Hollister.”

“Counselor.”

“A foundation hearing on the club’s records, Mr. Hollister. Brief. We will hear Mr. Burger through and respond on cross. Nothing is decided today.”

“Thank you, Mr. Mason.”

Mason took Hollister’s elbow at the courtroom door, and they went in together.

The courtroom was high-ceilinged and paneled in dark wood. Spectator benches ran behind the bar, half-empty at the call. The defense table sat on the left from the back of the room, the prosecution table on the right. Judge Whitcomb’s bench rose at the front under the American flag and the California flag, with the witness stand to the bench’s left and the clerk’s table beneath it. The tall windows along the south wall were screened with venetian blinds half-drawn against the early-afternoon sun, and the wall clock over the bench read one fifty-eight.

Burger was at the prosecution table with a younger man at his elbow, a sheaf of subpoenas and a stack of marked exhibits between them. The three-piece suit strained at the waistcoat. The steel-rimmed glasses caught the light from the high windows.

Mason and Della and Hollister took the defense table. Della opened the steno pad on the table at her elbow.

The clerk called the matter at two.

Judge Whitcomb came in from chambers and took the bench. He was square-built, with gray hair clipped close at the sides and longer on top combed back from a high forehead, and reading glasses on a chain that hung against the front of his robe. He sat, lifted the glasses to his nose, and looked once at the prosecution and once at the defense.

“Mr. Burger.”

“If it please the court. The People move under section twelve-seventy-one of the Evidence Code for admission of certain records of the Magnolia Club for the night of Tuesday, July sixth, of this year, including the steward’s register, the parking log, and the chits from the bar and the small dining room. The People call as witness the club secretary, Mr. Linwood.”

“Mr. Linwood.”

Linwood rose from the second spectator row and came through the bar to the witness stand. He was medium height and stout but not heavy. The pepper-and-salt hair was slick to the side with a clean part on the left, and the rimless reading glasses were already in his hand. He wore a conservative dark-blue three-piece with a navy tie and a small gold tie-clip at the third button. The clerk swore him. He sat, set the rimless glasses on the clerk’s railing within reach, and waited.

Burger put the foundation through methodically. What records the Magnolia Club maintained. Who maintained them. At what intervals. Whether they were made and kept in the regular course of the club’s business. Whether the entries were made at or near the time of the events they recorded. Whether there was any practice of after-the-fact reconstruction. Whether the witness held personal knowledge of the records’ creation and maintenance by virtue of his role.

Linwood put the rimless glasses on at each set of records and took them off to look at counsel. He answered in short sentences. He asked the judge for permission to refer to specific entries before he did so. He did not volunteer.

Burger sat with the records authenticated.

“Move to admit, Your Honor.”

“Mr. Mason.”

Mason rose at the defense table. He buttoned the navy three-piece at the middle button and crossed to the lectern.

“Mr. Linwood.”

“Sir.”

“The steward’s register and the parking log for the night of Tuesday the sixth of July are among the records you have authenticated.”

“They are, sir.”

“And the chits from the bar and from the small dining room for that night.”

“They are.”

“What records are not in this set, Mr. Linwood?”

The rimless glasses came off. Linwood looked at the ceiling once and looked back.

“The steam-room logs are kept in a separate book at the locker attendant’s station, sir. We do not put those records in front of a court except in matters of personal injury at the steam room. The kitchen ordering ledgers are in a third book at the steward’s pantry. The housekeeping schedules are with the housekeeper. Those are the principal omissions.”

“And the grounds, Mr. Linwood. The valet’s parking log shows what is in the lot.”

“It does, sir.”

“Does it show what is on the street outside the club, or on the driveway, or on the paths around the grounds?”

“It does not, sir. The valet logs cars he has parked. He does not log cars he has not parked.”

“So if a member’s car were on the club grounds at any time without being parked by the valet, your records would not show it.”

“They would not, sir.”

Mason set his hand on the lectern’s edge. The right hand stilled.

“Mr. Linwood. Are you aware that on the night in question — Tuesday, July the sixth — Mr. Reisman was seen driving in the Hollywood Hills in his Cadillac.”

Linwood’s mouth opened. The rimless glasses came back to the railing.

“Objection.” Burger was on his feet. “Foundation, hearsay, and relevance, Your Honor. Counsel is asking the witness to speculate about events that are wholly outside the records subject to this motion.”

“Sustained on all three grounds. The witness need not answer. Mr. Mason, confine your cross to the records subject to the section twelve-seventy-one motion.”

“Yes, Your Honor.”

Mason had not looked at Burger. He had not looked at Hollister at the defense table. He was looking at Linwood.

“Mr. Linwood. The records you have authenticated cover the regular operations of the club from six in the evening to one in the morning on the night in question.”

“They do, sir.”

“No further questions, Your Honor.”

Mason came back to the defense table.

Burger checked the page in front of him twice and had nothing on redirect. The judge admitted the records under section twelve-seventy-one and excused the witness. Linwood put the rimless glasses in his breast pocket, nodded to the judge but to no one else, and went out through the bar.

The judge adjourned.

Burger gathered the marked exhibits into his portfolio and set the portfolio on top of the subpoena stack. The younger man took both. They came up the aisle past the defense table.

“Counselor.”

“Mr. Burger.”

A small even nod across the bar. Burger went past with the portfolio under his arm.

Mason took Hollister's elbow at the bar. The bailiff was at the side door waiting.

"Mr. Hollister."

"Counselor."

That was all he said. The dark eyes had gone to Mason at the planted question and gone back to the table. The hand on the table edge had shifted and not lifted. The glasses had come up on the bridge of the nose with one finger. He nodded to Mason at the bar and went with the bailiff through the side door to holding.

The bailiff closed the side door from the inside.

Della had the steno pad already in her handbag.

The Ford coupe at Spring and Sixth was gone by the time the cab returned at four. The space at the curb was a station wagon with the windows down. Mason paid the driver. Della carried the steno pad and the unfolded *Times* up the building stairs ahead of him.

The wall clock above the bookshelf went past five. Della stayed at her desk past dismissal. The clock went on through the evening, and on past eleven.

Drake came up the back stairs at a quarter to midnight.

The cost grumble was first, from the visitor's chair, before the small black notebook came out of the inside pocket.

"Hennessey through last night, Burdette through the day, Hennessey through tonight — that's going to look like a feature budget by Friday, Perry."

"Send it, Paul."

"I'll send it."

He opened the notebook. Della was at the doorway between the inner and the outer offices with the steno pad already on her wrist. The pencil was up.

“Reisman left the bungalow at twenty past ten tonight. Eleven sharp every night since Friday week. Tonight at ten-twenty. Cadillac out of the lot. Hennessey on him.”

He turned the page.

“Down Sunset to Vine, Vine south to Wilshire, Wilshire west. The Bank of America branch at the corner of Wilshire and La Cienega. After-hours safe-deposit access at the Wilshire-side entrance. Reisman in at ten thirty-five with the slim leather portfolio. Out at ten forty-three. Eight minutes inside. Hennessey says the portfolio went in light and came out lighter. The leather sat a different way under his arm on the route out than it had going in.”

He turned the page.

“Cadillac back the way it came. In the garage at the bungalow at eleven-oh-five. Bungalow lights out at eleven-fifteen. He didn’t go home, Perry.”

The hand Mason had set on the leather of the chair arm stayed where it was. Della’s pencil moved on the page once. Drake closed the notebook on the bank entry with his thumb and opened to a different page.

“Burdette had the day side. Bungalow at three this afternoon. The office window on the alley side was open. Reisman on the phone with somebody — Burdette didn’t catch the line.”

“What was the substance?”

“About thirty seconds. Reisman told whoever it was on the line that he had never met the man. Said he did not know the name.”

“Did Burdette catch the name?”

“Burdette didn’t. The window was open at the top, not the bottom; he was on the curb across the alley. He had the cadence and the words but not the name.”

“All right.”

Drake closed the notebook.

He sat. Mason did not comment. Della at the doorway held the pencil where it was.

Della spoke first.

"Burger's office walked Mr. Reisman through the day, didn't they, Chief."

"They will have."

The pencil moved a half-inch down the page. Drake's pale-blue half-amused droop rested on the visitor's-chair arm.

"Tonight, then."

"Tonight. He's moving the bungalow records out, Paul."

Mason looked at Drake.

"Hennessey on Reisman through tomorrow night, Paul. Burdette also on him through tomorrow night. I want every variance. However small. Through tomorrow at midnight."

"Through tomorrow at midnight."

Drake stood. He took the small black notebook back into the coat pocket. The cost grumble was already done. He went out through the outer office. The back-stairs door clicked at the end of the hall.

Mason crossed to the window. The corner traffic light at Spring and Sixth was on the yellow. The street had emptied. The night had cooled.

Della came in from the outer office with the steno notes folded over her hand.

"Tomorrow at midnight, Chief."

"At midnight."

The wall clock above the bookshelf went past midnight.

Chapter 14

Sunday evening, the eighth of August. Mason was at the inner-office window. The trial would open Monday morning at nine in Department Nine.

He had the navy three-piece on with the jacket off across the chair-back, and the cuffs of the white shirt unbuttoned at his wrists. The corner traffic light at Spring and Sixth was on the yellow. The Sunday street was empty under it. The wall clock above the bookshelf read five past eight.

Della was at the outer-office desk through the open door. The yellow legal pad sat on the corner of her desk, fresh, with a pencil laid across it. The cover was on the typewriter. She had not been typing tonight. She had been waiting.

She had typed through Saturday for the substitution motion that already lay in the third drawer of the filing cabinet, signed and copied and ready for the courthouse opening at eight Monday morning. She had typed the witness subpoenas for the Pacific Bell and the gas-company custodians on Thursday. The motions in limine had gone down to the clerk on Friday. The day's work was done. The week's work was done. Tonight was the pad.

The smell of fresh coffee came in from the outer office where the percolator on Della's side-table had finished cycling at seven-thirty. The cup at Mason's elbow had not been touched.

Drake came up the back stairs at a quarter past eight. He had a small brown paper bag from the bakery in his hand with grease at the bottom corners, and he held it up at the inner-office threshold when he came through.

"Petrakis was still open. Boy knows me by my hat now."

He came in. The bakery bag went on the near corner of Mason's desk. He took the visitor's chair. The hat went on his lap. The small black notebook came out of the inside pocket of his coat. The slim accordion folder went on the far corner of Mason's desk.

Della came in from the outer office with the steno pad in her left hand and the pencil in her right, and took the wooden chair at Drake's left shoulder.

Drake leaned over and lifted the bakery bag from the near corner of Mason's desk. He held it open to her first.

Della took one. A sugar donut. She looked at it, looked at Drake, set it on a napkin at her elbow.

"You're going to die at that bakery, Paul. Six donuts at a time."

"With the hat on."

"He'll know which one was yours."

"He already does."

Drake took one for himself and bit into it.

Mason came around the desk. He took one onto a napkin and set the napkin at the desk corner. He did not eat it.

Della wrote *Sunday Day 41* across the top of the steno page, drew a clean line under it.

Drake had the page open on his knee. He read the order off it: "Burger's case, Perry. Mrs. Aguirre, Doctor Kessler, Tragg, then Ramsey on the call sheet, Vincent on the publicity photo, the Pacific Mutual man on the insurance change. Reisman as context witness on the marriage. Two days. Three if you cross long."

Mason turned from the window.

"Two days?"

"Two days. Burger told the clerk Wednesday afternoon."

"Then Aguirre first, then Kessler. Burger's leading with the housekeeper and the medical. Insurance agent before Reisman means the financial-motive argument lands before the partner takes the stand for context."

Della wrote the order on the steno pad.

"Pacific Bell custodian."

“Confirmed for Wednesday morning. Brings the household bill, the call log for the Tuesday in question, the prior month for context. Subpoena’s in the folder.”

“Southern California Gas.”

“Wavered Friday afternoon. I drove out to him Saturday morning at his house in Eagle Rock. He’s confirmed now. Brings the work-order log, a written statement that no service was ordered at the Hollister address for the month, and a written statement that no outbound call was placed from their dispatch on the day. Both signed by his supervisor and signed by him.”

“All right.”

“Mrs. Aguirre at her sister’s in Pasadena since Friday. Sister drives her in tomorrow morning for Mr. Burger’s direct, takes her back after. Brings her in again Tuesday afternoon. I want her here at six Tuesday for the final walk-through.”

“How is she?”

“She held it together at the kitchen table Wednesday afternoon when Tom went over it with her. The three-week timing, the gate combination, the no-show — clean.”

“Reisman.”

“Pattern stable since the bank trip. Eleven sharp out, eleven oh-five home. Portfolio in the regular weight under his arm. Hennessey says he isn’t going back to the bank.”

“Margaret.”

“Ready. You met her at the apartment two weeks ago Tuesday. The scope holds — Coastal signatures, invoice cadence, the April Wilshire conversation, the May follow-up about who signs off on Argonaut invoices.”

“Hal.”

“At the Sequoia Court, room twelve. Tom dropped in this afternoon. He’s been through the morning and afternoon *Times* every day this week. Wants to know when he goes on.”

“Tell him after Mr. Hollister. Not before.”

Drake wrote it.

Drake opened the accordion folder. He took out a small notebook bound in calf leather and set it on the desk in front of Mason.

“Helen’s notebook. Pasadena bundle. Tom worked through the rest of it the last two weeks.”

Mason turned the cover.

“She had the Coastal billing dates check-marked in her own hand back through the spring.”

“How far back does it go?”

“Spring ‘71 through this month. Every Coastal billing date through that span, check-marked the day after.”

“That’s independent corroboration of what Margaret will testify to. The dates match the work that didn’t exist.”

Mason’s right hand on the chair arm went still on the wood. He set the notebook down on the desk, square to the blotter.

Drake took the second item out of the folder. A small leather datebook, dark brown.

“Helen’s appointments. The Wednesday after she was killed. Ten in the morning, at Levine.”

Mason opened the datebook to the marked page.

“Levine’s record?”

“Tom got it Saturday. Levine had her down for ten. She made the appointment Monday afternoon — the day before she died.”

“That’s the motive timing, Paul. He killed her because she was about to act.”

“What else was in the bundle?”

“Address book — names checked against Frank Lavin’s homicide-bureau list, two of them already on Mrs. Marsh’s list. Three letters from her sister in Pasadena, ‘64, ‘67, ‘70 — household correspondence, no mention of Coastal, no mention of Reisman by name. A drawer of household receipts from the Hollywood Hills house, ‘69 through this April. Nothing else marked.”

“Nothing she put on paper for someone else to read.”

“She kept it in her head.”

Della wrote both items on the steno pad. She underlined the Levine line twice.

Drake closed the accordion folder and set it back on the desk corner.

“Bring the pad in, Della.”

She crossed from the chair to the desk with the yellow legal pad and a fresh pencil, took the wooden chair back, and set the pad on her knee.

“Step one, Della. Plan A — pretext-call evidence — dent Reisman publicly. Mrs. Aguirre on the gas-company telephone call three weeks before the murder, the gate combination given, the no-show. Pacific Bell custodian on the one-minute call from Argonaut’s office line at two-forty-seven that Tuesday afternoon — three weeks before the murder. Southern California Gas custodian — no work order, no outbound call from their dispatch that day. The argument: somebody at Mr. Reisman’s offices, posing as the gas company, took the gate combination from Mrs. Aguirre three weeks before Mrs. Hollister was killed. The dent on him publicly is what forces what comes next.”

Della wrote Step 1 on the pad in her clean small hand.

Drake had the small black notebook on his knee. He turned the page to a new line.

“Mrs. Aguirre Tuesday six. The walk-through at this office.”

“Tuesday six.”

Drake wrote it.

“Pacific Bell custodian and the gas company at the courthouse at nine Wednesday morning. If either wavers tomorrow, Tom subpoenas at his house in the evening. Mrs. Aguirre’s gas-company-call statement — original in Tom’s hand to my office Tuesday morning. The gas-company statements — originals in my file by Tuesday close of business, photostat in yours. The Hollister household telephone bill — original out of the Pacific Bell custodian’s bag Wednesday morning. We mark it Defense Exhibit One the moment Mr. Burger rests his case.”

“Defense Exhibit One.”

“Exhibit One.”

Drake wrote the assignments down the page of the notebook. Della wrote them on the yellow pad under Step 1 in her own small even hand, on the lines below.

“Step two, Della. Plan B — Vivian flips after Plan A lands.”

Drake looked up from the notebook.

“Why does she flip on Plan A landing, Perry? She’s been ducking Plan A’s existence.”

“Because Reisman’s leverage on her depends on Reisman being free and credible. Coastal disbursements run somewhere, Paul. Reisman’s been signing them since ‘67. The ledger she closed when you walked in on her — she did not want a private man’s eyes on what was in it. My read is the Coastal money has been running to her gallery, monthly, since ‘69. Plan A lands publicly Wednesday morning. Reisman is dented on the trial transcript for the first time. By Wednesday afternoon her calculation has shifted. Margaret on the stand Thursday — Step four — will surface the Coastal payment list whether Vivian helps us or not. If the gallery is on that list, Vivian’s exposure is coming. Better to flip with a deal than to be exposed without one.”

“What deal, Perry.”

“Truthful testimony tomorrow on Mr. Hollister’s whereabouts. Reisman’s leverage articulated under oath. In exchange we structure the gallery-laun-

dering exposure on her terms — defensively, before Margaret’s testimony surfaces it. Margaret’s testimony Thursday will name Vivian’s gallery in the Coastal payment list. Vivian gets ahead of it by twenty-four hours, we frame it as cooperation with the defense, the U.S. Attorney’s office takes it as voluntary disclosure. Five years tax exposure becomes two with cooperation.”

“And if she doesn’t?”

“Then Plan B doesn’t activate and we run Plan A through to the perjury trap. Marchese, Beltran, the bank variance. Step five carries it. Slower and uglier.”

“All right, Perry.”

“Step three, Della. Vivian recants — Mr. Hollister at the apartment from approximately nine until eleven-thirty that evening. The producer’s actual whereabouts during the murder window.”

Della wrote Step 3.

“Step four. Margaret on Coastal — signatures, invoice cadence, the quarterly fourth-Tuesday pattern, the work that did not exist. The April Wilshire conversation. The May follow-up about who signs off on Argonaut invoices. And the bracket back to Mrs. Hollister’s calf-cover notebook — Coastal billing dates check-marked — corroborates Margaret. The notebook authenticates through Margaret on the stand or through Mrs. Marsh as executor.”

Della wrote Step 4 and drew the bracket from it to a line below: *Helen’s notebook — Coastal billing dates — corroborates Margaret.*

“Step five, Della. The cover-up. Mr. Beltran at the Magnolia incinerator — Mr. Reisman at six-thirty Wednesday morning, items wrapped in newspaper. Tony Marchese at the valet — Mr. Reisman back to the club at eleven-thirty Tuesday night with the small gym bag. The bank variance the night the Cadillac question landed — the safe-deposit at Wilshire and La Cienega, the portfolio in light and out lighter.”

Della wrote Step 5.

“Step six. We recall Mr. Reisman. The methodical questions. The narrowed ground. Then the question we know he will answer the way he always answers it.”

Drake from the visitor chair: “You think he will?”

“His pattern with small inconvenient questions has been the same at his offices for nine months, Paul. Hennessey overheard him deny knowing the Argonaut vendor at the bungalow window in July — never met the man. Burdette overheard him deny knowing a person on the bungalow phone the day of the section twelve-seventy-one hearing — never met the man, did not know the name. Each time he could have answered with an oh-yes. Each time he picked denial. He picks his ground every time. He’ll pick it on Tuesday too. And the small lie under oath ends him.”

“He picks his ground.”

Della wrote Step 6 with a small hash underline under *trap*.

Drake turned a page in the small black notebook.

“Plan B.”

“Standing readiness on your line for her call, Paul. Tom in your office through the afternoon recess every day from Wednesday forward. When she calls you bring her here that evening. Not the courthouse, not the street.”

“Your office, not the street.”

“My office.”

“Della types her statement on the spot. Vivian to bring the relevant pages from the cordovan ledger. If she doesn’t, your man at the gallery the next morning to collect on her authorization. If the Coastal money is running there, the ledger will say so.”

Drake wrote each line in turn.

“Step seven, Della. A piece of paper from Paul’s sweep. We hold it back.”

Drake's pen stopped on the page of the notebook. He looked up from the page at Mason. Mason had crossed back to the window and stood with his back to the room.

"From which sweep, Perry."

"Mine to know, Paul. Yours when it lands."

Drake looked at Della. Della was looking at Mason's back. Mason did not turn from the window.

Della took up the pencil and wrote Step 7 on the pad. Three words. The line was visibly shorter than the six lines above it. She set the pencil down across the pad.

Drake made a note in the small black notebook. *Photostat held, no action.* He closed the notebook and put it on his knee.

"All right."

The pad sat on the corner of Mason's desk where Drake could see it. Seven steps down the page.

Drake leaned back in the visitor chair. He rubbed the back of his neck with his right hand. He looked at his shoes.

"Coming up on midnight, Perry. Four weeks since I had a Sunday — the one after we broke for Margaret's apartment was the last of them. Hennessey and Burdette have been on Reisman seven days a week for four weeks. Time-and-a-half and double since the section twelve-seventy-one hearing. The week's bill is going to look like a feature picture's *third-draft* budget by Friday. Toomey closed the canvass weeks ago and I have not put him on a paying file since. The kid in my front office has been doing my dictation because I have been in the field every weekday and most of the weekends. My shoes need shining. I have not been to the barber in five weeks. I passed the shop Wednesday morning and the barber asked through the door if I'd switched shops. He was joking. Mostly."

Mason at the window had turned back to the room.

"Tomorrow night, Paul."

“Tomorrow night what.”

“Tomorrow night you go home for dinner.”

“Tomorrow the trial opens.”

“Tomorrow morning Mr. Burger’s case is two hours of medical examiner and housekeeper. You can read it in the *Times* Tuesday morning. Tomorrow night you go home for dinner.”

Drake’s pale-blue half-amused droop deepened a full degree. He kept the laugh in.

“All right, Perry.”

He opened the small black notebook on his knee and wrote a small line on a fresh page.

Mason crossed from the window back to the desk and sat down. He put both hands flat on the blotter.

“Pull the conditional subpoena for Vivian Tate from the drawer, Della.”

Della rose. She crossed through to the outer office. The drawer at the corner of her own desk pulled open with a small dry click. She lifted out a single carbon, came back through, and set it flat on the corner of Mason’s desk.

The form sat between them — Della’s small even typing from the first Monday of the case, the witness name and court header and the standard conditional language all in place, the date and signature lines at the bottom both empty.

He took the pen from the blotter. He filled in the date and signed at the bottom. He laid the carbon on the corner of the desk square to the blotter.

The subpoena had been conditional in plan since the first Monday of the case. It could be used in service now.

Della wrote the line on the steno pad.

Drake’s eyes went to the signed carbon on the corner of the desk. He looked at the signature. He looked at Mason. He did not speak.

The wall clock above the bookshelf was at eleven-fifty-three.

Della looked up from the steno pad.

“Cab at eight-thirty Monday morning, Chief?”

“Eight-thirty.”

Drake stood. The small black notebook went into the inside pocket of his coat. He picked up the bakery bag off the near corner of Mason’s desk and carried it out through the outer office. The bag was lighter than it had come in. The back-stairs door clicked at the end of the hall.

Della carried the yellow pad out to her own desk and set it on the corner where Drake would see it in the morning. The conditional subpoena carbon stayed on the corner of Mason’s desk.

Mason was at the inner-office window. The corner traffic light at Spring and Sixth was on the yellow. The Sunday street was empty under it.

Della was at her own desk. She wound a fresh sheet around the platen and squared it. The keys started in the outer office.

The pad sat on the corner of her desk in seven steps. The conditional subpoena carbon sat on the corner of his. The wall clock above the bookshelf went past midnight.

Chapter 15

Department Nine, Monday morning, the ninth of August. The clerk called the matter at nine, and Burger took the lectern.

At the defense table Mason was in the navy three-piece, Della behind him with the steno pad open and the pencil up, Hollister at Mason's right in the charcoal three-piece pressed at the jail, the heavy black-framed glasses on the bridge of his nose. At the prosecution table Burger had a younger man at his elbow and a stack of marked exhibits between them. Three newspaper men in the second row with pads on their laps. Judge Whitcomb at the bench.

Burger set a folder on the slope of the lectern. He looked at the jury.

"If it please the court. Ladies and gentlemen of the jury. The People will prove three things. Motive: a life-insurance policy the defendant himself increased to five hundred thousand dollars three months before he killed his wife. Access: no one broke into that house, and the gate at the foot of the drive was on a combination box known to three people. Consciousness of guilt: the defendant bought an alibi for the night his wife died, paid for it in cash, and stood by it through interrogation and through testimony to the grand jury."

He took the folder from the lectern.

"The People will ask you to find the defendant guilty of murder in the first degree."

He sat.

"The People call Mrs. Aguirre."

A small woman in her late fifties came through the bar, iron-gray hair drawn back, a dark cotton dress buttoned to the throat. Mrs. Aguirre had been the Hollisters' housekeeper since 1957. Burger walked her through the evening of Tuesday, July sixth — Mrs. Hollister home at six, dinner alone in the breakfast room while Mr. Hollister was at the club, the telephone call to her sister in Pasadena that ended at a quarter to ten, Mrs. Aguirre to her own room at a quarter past. She had taken half a powder for sleep, as she

had for ten years, and had heard nothing in the night. The call to homicide at twelve past eight Wednesday morning. Mrs. Hollister's photograph was marked People's Exhibit One.

Burger came back to the lectern.

"Mrs. Aguirre. In the weeks before Mrs. Hollister's death, did you overhear any argument between Mr. and Mrs. Hollister?"

"Yes, sir."

"When?"

"It was a Monday evening, the week before the week she died. The door between the kitchen and the breakfast room has never sealed at the bottom. A voice carries."

"What did you hear?"

"Mrs. Hollister said she had known for some time. She said she had not married a fool, and she would not be one. She said the name of a woman. I do not know if the woman she named was the woman."

"And what did Mr. Hollister say?"

"He did not say much, sir. He said her name once. He said he was sorry. Mrs. Hollister did not answer him. She went up the stairs."

"When did you decide to tell us, Mrs. Aguirre?"

"When one of your gentlemen asked me whether the marriage was a happy one. I do not lie to police when they ask a question."

Burger sat.

At the defense table Hollister's eyes had gone to the wood and stayed.

Mason rose.

"Mrs. Aguirre. You have keys to the house and the combination for the gate."

"Yes, sir. The front, the back, the garage, and the combination."

"Thank you, Mrs. Aguirre. No further questions, Your Honor."

She gathered her handbag and went out through the bar.

Dr. Maxwell Kessler, chief deputy medical examiner, gave the cause of death as asphyxiation by ligature strangulation — a long narrow band, silk or close-woven, drawn from behind. Time of death between nine and eleven Tuesday evening. No ligature recovered. No sign of forced entry at any exterior door. Marks on the cheek and a thumb-sized bruise on the upper arm consistent with brief restraint at the bedroom doorway. Mason had no questions.

Lieutenant Tragg of LAPD homicide gave his arrival at the residence at half past eight Wednesday morning and his interview with Hollister at the bureau that afternoon. Hollister had told him he had been at the Magnolia Club with Mr. Hal Bannon from approximately eight until midnight, that Owen Davies the steward had signed him in, that Tony Marchese the head valet had brought his Lincoln around at midnight, and that he had driven home Sunset to Highland.

Mason at the lectern.

“Lieutenant. The gate at the foot of the drive at the Hollister residence is on a combination box.”

“It is, Counselor.”

“Who holds or knows the combination?”

“Three persons, Counselor. Mrs. Hollister, Mr. Hollister, and Mrs. Aguirre.”

“Thank you, Lieutenant. No further questions, Your Honor.”

Tragg took his hat from his lap as he rose and went out at the back of the courtroom.

Whitcomb looked at the wall clock and adjourned until nine in the morning.

Tuesday morning. The clerk called the matter at nine.

Burger called Leo Ramsey, unit foreman on the *Mannix* production at Paramount Pictures, twelve years on the show. Ramsey signed the call sheet for the unit. The mimeograph for Tuesday, July sixth, was marked People’s Exhibit Two. It showed Mr. Hal Bannon called at six o’clock for a high-fall

sequence — three takes onto the air bag from a fourth-story facade — then wire-rig work from eight until ten, released at ten. Mason had no questions.

Burger called Edward Vincent, publicity photographer on the *Mannix* unit that evening for a *Variety* feature on the show's stunt work. Vincent had shot a stand-up at the wire-rig stage at nine-thirty Tuesday night. His subject was Mr. Hal Bannon. He had signed and dated the back of the print at the time of exposure. People's Exhibit Three. Mason had no questions.

The arithmetic stood on the record. Bannon had been on the wire rig at Paramount through ten that evening. The Magnolia alibi Bannon had given to the grand jury was a paid lie, and the jury had now heard the timing. Della's pencil moved across the steno page and paused on the figure 9:30 PM.

Burger called Bernard Wallace, senior agent at Pacific Mutual Life Insurance Company, nineteen years with the company. Wallace took a leather portfolio to the witness stand.

"Mr. Wallace. The original face value of the policy on Mrs. Hollister's life."

"One hundred thousand dollars, sir. Issued in March of nineteen sixty-three. Premium paid annually by Mr. Hollister."

"And the present face value."

"Five hundred thousand dollars, sir. There is an endorsement on the policy dated the second of March, nineteen seventy-one, increasing the face value."

"First week of March, Mr. Wallace."

"Yes, sir."

"Three months before Mrs. Hollister's death."

"Three months, sir."

"The beneficiary."

"Mr. Walter Hollister, sir. Sole beneficiary. No contingent named on the policy."

The policy was marked People's Exhibit Four. Mason had no questions.

At the defense table Hollister had not looked at the witness. Della had written the figures on the steno page — one hundred thousand, five hundred thousand, March 1971, sole beneficiary — and the pencil paused at the second figure before going to the next line.

Burger watched Mason at the defense table. Mason had not moved from the register he had held since Mrs. Aguirre — composed, even, not fighting.

Arthur Reisman came through the bar. Average height, lean, sharp features, dark hair silvered at the temples, a modern-cut summer-weight suit. Partner with Hollister at Argonaut Pictures since 1953, eighteen years. He had attended the Hollister wedding in '59.

Burger at the lectern.

“Mr. Reisman. How would you characterize Mr. and Mrs. Hollister’s marriage in recent years?”

Reisman paused. He looked at the jury, then back at Burger.

“Cool, Mr. Burger. Distant. They went out less as a couple than they had in the early years. They kept separate calendars in the last two or three years. They were courteous to each other, but not close. Walter is a private man on these matters. I would not call myself a confidant.”

“Did Mr. Hollister speak with you about his marriage?”

“He did not, sir. He kept his domestic life to himself. I understood that as his private business.”

Mason rose. Crossed to the lectern.

“Mr. Reisman. In eighteen years of partnership, how often have you been a guest at the Hollywood Hills house in the evening?”

“Rarely, Mr. Mason. Our meetings were at the bungalow on the lot, or occasionally at the Magnolia for a dinner. I do not recall an evening at the house in the last several years, since Mrs. Hollister redecorated the front rooms in the autumn of sixty-nine.”

“Thank you, Mr. Reisman. No further questions, Your Honor.”

Reisman stepped down. He came through the bar to the spectator bench at the back of the courtroom, sat, set a slim leather portfolio across his knees.

Burger stood at the prosecution table.

“The People rest, Your Honor.”

Whitcomb adjourned until nine in the morning.

The bailiff stood from his desk at the side door. Della came around the corner of the defense table with the steno pad open at the day’s page.

“Mr. Hollister. Mr. Wallace’s figure. The endorsement was the second of March, the first week. Was the policy signed at the house or at the Pacific Mutual office?”

“At the house, Miss Street. In the front parlor. Mr. Wallace brought the papers.”

“Thank you.”

She closed the pad. The bailiff came forward and took Hollister’s elbow.

Wednesday morning, the eleventh of August. The visiting room at the county jail had a small high window and a metal table bolted to the floor. Mason came in at five past seven, briefcase at his feet. The jailer brought Hollister in.

“Walter.”

“Mr. Mason.”

“This morning I open. I am going to tell the jury you paid Mr. Bannon for the alibi. I am going to tell them you paid him to hide an evening with Miss Tate, not to hide a murder.”

Hollister set his hands on the metal table. He looked at Mason a long count before answering.

“You will not say her name.”

“I will not say her name.”

"The afternoon edition will run my concession on the front page by four o'clock. A man with a desk and a phone will have her name by morning if he wants it there."

"He will want it there."

"He will."

Hollister looked at the wood of the table.

"Helen's sister will hear it before lunch. She has been on the telephone with my house every morning since the funeral. She will think it has been about Miss Tate from the start. She will think that is why."

Mason did not answer at once.

"She will think it for a time. The first week of the news the family will think it. The case ends when the case ends, Walter, and after that the family thinks what the trial record gave them. The trial record is what we are putting down now."

Hollister was quiet a count. He set the heavy black frames a quarter inch back on his nose.

"All right. Open as you said you would open."

"At the defense table, sit as you have been sitting. Do not look at Reisman."

"He has not stopped watching me, Counselor."

"I know. That is why."

Mason stood. The jailer's silhouette moved at the opaque-glass door.

Department Nine. Nine o'clock. Reisman on the spectator bench at the back of the courtroom, hands folded in his lap. The newspaper men in the second row, pads open.

"Mr. Mason, you may open for the defense."

Mason rose at the defense table. He buttoned the navy three-piece at the middle button. Crossed to the lectern. He set no folder on the slope. He looked at the jury.

“If it please the court. Ladies and gentlemen of the jury. The defense will not contest one fact in the People’s evidence. Mr. Hollister paid Mr. Bannon to provide an alibi for the night of Tuesday, July sixth. Mr. Bannon was paid in cash. The Magnolia alibi Mr. Bannon gave to the grand jury was the alibi Mr. Hollister bought.”

The jury watched him. He did not look at the prosecution table.

“But the alibi Mr. Hollister bought was not an alibi for murder. Mr. Hollister’s marriage had grown distant over the last several years. He was carrying on an affair with a woman not his wife. The alibi he paid Mr. Bannon to provide was for the evenings he was spending with that woman. It was to protect the woman, not to cover a murder.”

Burger half-rose at the prosecution table. The chair scraped back an inch. His mouth opened on *Your Honor*. His hand found the edge of the table. He sat. He did not pursue.

The newspaper men in the second row turned to the prosecution table and turned back. Mason did not break pace.

“On the evening of Tuesday, July sixth, Mr. Hollister bought the same cover he had bought twice before for the same purpose. He did not know that on that same evening his wife would be killed by someone else, that the alibi he had bought to hide a private failure would be taken by the People as the proof of consciousness of guilt, that the Magnolia he had used to hide an evening with a woman not his wife would be turned, in this courtroom, into the architecture of a murder case.”

At the defense table Hollister’s eyes had dropped to the wood. The hand on the wood went flat. Della’s pencil paused on the steno page and went on.

“The defense will show you where Mr. Hollister actually was that evening. The witnesses we call will not contradict that he paid Mr. Bannon. They will tell you where he was, and they will tell you he did not kill his wife. Mr. Hollister will not take the stand in this trial. The witnesses speak for him.”

Mason returned to the defense table.

At the back of the courtroom Reisman's hands on the portfolio had not unfolded. The brown eyes had gone to Mason at *a woman not his wife* and stayed on him through the close.

"The defense calls Owen Davies."

Davies came through the bar — twenty-two years steward at the Magnolia, near-white hair combed flat to the left, black bow tie at a fresh white shirt, the leather-bound steward's register under his right arm. The register was marked Defense Exhibit One. The entry for Tuesday, July sixth, in Davies's own hand: Mr. Walter Hollister signed in at seven fifty-five. From the steward's desk inside the front door, the bar room was open through a wide arched doorway. Davies had observed Hollister at the bar from approximately eight until approximately eight-thirty.

Mason at the lectern.

"And after eight-thirty, Mr. Davies?"

"After eight-thirty, Mr. Mason, I did not see Mr. Hollister at the bar. I did not see him at the entrance. I could not say where he was in the building."

"Thank you, Mr. Davies. No further questions, Your Honor."

Burger established on cross that the small dining room, the locker rooms, the lavatories, and the lounges were not visible from the steward's post. Sat.

Tony Marchese came through the bar — head valet at the Magnolia, sixteen years, white valet jacket over a pale-blue shirt, a clipboard in his hand. The Magnolia valet log for Tuesday, July sixth, was Defense Exhibit Two. Marchese had taken Hollister's Lincoln at the curb at seven-fifty and parked it himself in the first row reserved for members.

"Where was Mr. Hollister's Lincoln from seven-fifty onward, Mr. Marchese?"

"In the first row, sir. The car did not move from where I parked it."

"You were at the valet stand from five o'clock that evening until closing."

"I was, sir. I see every car that comes off the lot, and I see every car that comes onto the lot."

"Did Mr. Hollister's Lincoln leave the parking lot at any point between seven-fifty and the few minutes after midnight when you brought it to him?"

"It did not, sir."

"Thank you, Mr. Marchese."

Burger established on cross that no one other than Mr. Hollister had driven the Lincoln out of the parking lot between seven-fifty and the few minutes after midnight. Marchese was certain. Sat.

Marchese stepped down.

At the defense table Della leaned a quarter inch toward Mason as Marchese passed through the bar.

"He was at the club through eight-thirty, Chief. After that he was somewhere inside the building they cannot see, or outside the building on foot."

"He was outside the building on foot."

"You are not going to say so today."

"I am not. The jury has heard the question. Tomorrow they hear the answer."

Whitcomb adjourned until nine in the morning. The gavel came down.

At the back of the courtroom Reisman stood from the spectator bench. He set the portfolio under his left arm. He came up the center aisle and out through the gallery door, brown eyes on the bench until he reached it.

Chapter 16

Thursday morning, the twelfth of August. The clerk called the matter at nine. Whitcomb at the bench. Reisman on the spectator bench at the back of the courtroom, hands folded in his lap. No portfolio.

“Mr. Mason. The defense may proceed.”

“The defense recalls Mrs. Aguirre.”

She came through the bar in the same dark cotton dress, a thin wool cardigan over her shoulders against the air in the courtroom. The clerk swore her fresh.

Mason at the lectern.

“Mrs. Aguirre. On Monday you told the court that you, Mr. Hollister, and Mrs. Hollister held the combination to the gate at the Hollister property. I want to ask you about a telephone call you received at the house three weeks before Mrs. Hollister’s death. Did you receive a telephone call from someone identifying himself as Southern California Gas?”

“Yes, sir.”

“What did the caller say?”

Burger was on his feet. “Objection, Your Honor. Hearsay.”

“Your Honor, the statement is not offered for the truth of what the caller said. It is offered for the fact of the conversation and Mrs. Aguirre’s resulting action.”

Whitcomb looked at Burger over the reading glasses. “Overruled, Mr. Burger. The witness may answer for the fact of the conversation.”

Burger sat.

“He said the gas company needed to do safety work at the gate box, sir. He said the technicians would need the combination so they could let themselves in if no one was at the house.”

“Did you give him the combination?”

“I did, sir.”

“Did anyone from the gas company come to the property that day, or at any time during the three weeks before Mrs. Hollister’s death?”

“No one came, sir.”

“Did you mention the call to the police on the Wednesday morning?”

“I did not, sir. Three weeks had passed. I had not thought of it.”

“Did Mr. Reisman ever come to the Hollister house in your presence in the weeks before Mrs. Hollister’s death?”

“No, sir. I had not seen Mr. Reisman at the house in some years.”

“Did Mr. Reisman ever ask you for the combination?”

“No, sir.”

“Thank you, Mrs. Aguirre. No further questions, Your Honor.”

Burger took the lectern.

“Mrs. Aguirre. Did you give the combination to anyone other than the man on the telephone?”

“I did not, sir. Mr. Hollister, Mrs. Hollister, and myself — and the man on the telephone.”

Burger sat. Mrs. Aguirre took her handbag from the floor and went out through the bar.

The custodians went briefly.

Hugh Carmody of Pacific Bell brought the household telephone bill for the month containing Tuesday, June fifteenth — Defense Exhibit Three. A one-minute call to the Hollister residence at two forty-seven that afternoon, originating from the trunk line for the offices of Argonaut Pictures on the Paramount lot. Burger on cross established only that the bill recorded the trunk line, not the extension.

Edgar Rohm, custodian for Southern California Gas Hollywood district, brought the work-order log and a signed statement from the dispatch

supervisor — Defense Exhibit Four. No service order had been issued at the Hollister address that month or the prior month. No outbound call had been placed by the gas company to the Hollister residence — or to any address in the Hollywood Hills service zone — at two forty-seven on June fifteenth, or at any other time that day. Burger had no questions.

Mason crossed to the lectern. He set both hands on the slope and looked at the bench, not at the jury.

“Your Honor. With Defense Exhibits Three and Four admitted and the testimony of Mrs. Aguirre on the record, the defense offers proof in support of an alternative theory of the crime. Someone at Mr. Reisman’s offices, posing as Southern California Gas, obtained the gate combination from Mrs. Aguirre three weeks before Mrs. Hollister’s murder. The gas company never came because there was no gas-company business. The Pacific Bell record establishes the call originated from the Argonaut Pictures trunk line. Combined with the statement Mrs. Reisman gave Officer Carney during the LAPD canvass — that Mr. Reisman frequently went to the office of an evening for what she did not think anything of — the evidence establishes Mr. Reisman as having planned unauthorized access to the Hollister property well in advance of the murder.”

Burger rose.

“Objection, Your Honor. Speculation. The Pacific Bell record establishes a trunk-line origination, not a person. The offer of proof leaps from a trunk line to a named individual without foundation.”

“Your Honor. The defense is entitled under California law to argue an alternative theory of the crime where the evidence supports the inference. The inference is the jury’s to weigh, not for the prosecution to foreclose at the offer-of-proof stage.”

Whitcomb lifted the reading glasses. He looked at Burger, then at Mason.

“The offer of proof may stand for purposes of laying foundation. The inferences are for the jury. Objection partially overruled.”

At the back of the courtroom Reisman's brown eyes had come up to the lectern when his name was first spoken and gone back down to the page on his lap. The hands stayed folded.

The court adjourned at four twenty-nine until Friday at nine.

Friday morning, the thirteenth of August. The clerk called the matter at nine. Defense was into its third day.

"The defense calls Miss Vivian Tate."

A turn went through the second row.

She came down the center aisle from the back of the courtroom. Tall. Ash-blond hair in a center-part bob cut even at the jaw, green eyes. A charcoal suit cut close at the shoulder and the waist, a single string of pearls at the collar of an ivory silk blouse, a small clutch handbag in the left hand. She did not look at the defense table. She did not look at the gallery. She came up to the rail and waited.

The clerk swore her. She sat. The handbag went on the rail beside her right hand.

Mason at the lectern.

"Miss Tate. State your name and your occupation."

"Vivian Tate. I own and operate a gallery in Beverly Hills."

"Are you acquainted with Mr. Walter Hollister?"

"I am acquainted with Mr. Hollister."

"How long have you known Mr. Hollister?"

"Several years. I do not recall precisely how many."

"Did you see Mr. Hollister on the evening of Tuesday, July sixth, of this year?"

The green eyes went to Mason and stayed.

"I do not recall."

“Did you see Mr. Hollister at any time during the week of Tuesday, July sixth?”

“I do not recall.”

A small turn through the second row again. The newspaper men did not write.

“Do you maintain a calendar of your social engagements, Miss Tate?”

“I do not.”

“Do you maintain a record at your gallery of meetings held in the gallery’s offices in the evening?”

“I do not.”

“Thank you, Miss Tate. No further questions, Your Honor.”

At the defense table the dark eyes had lifted once behind the heavy frames toward the witness stand and dropped back to the wood as the third *I do not recall* had landed. The hand on the wood tightened over the grain.

Burger had not moved from the prosecution table.

“No questions for this witness, Your Honor.”

Vivian rose, stepped down, and walked back up the center aisle. She did not look at the defense table. She did not look at Hollister.

Della leaned a quarter inch to Mason as the gallery door closed behind Vivian.

“That hurt us in front of them, Chief.”

“It hurt the picture. It did not hurt the case. The leverage on her is what kept her from naming the day. The pressure on the leverage is what will turn her over the weekend.”

The spectator bench at the back of the courtroom was empty when the clerk called Mr. Carmody back. Mason did not look toward it.

Carmody came back with the bill for the month containing Tuesday, July sixth — Defense Exhibit Five. A fifteen-minute call from the Hollister

residence to a Pasadena number, beginning at nine-thirty PM and ending at nine forty-five PM Tuesday, July sixth. The listed subscriber for the Pasadena number was Mrs. Caroline Marsh — Helen's sister, on the witness list for the coming week. Burger declined cross.

Mrs. Aguirre came back briefly. She had seen Mrs. Hollister on the landing at about ten minutes to ten that evening, when Mrs. Hollister came down to wish her good night. After that she had taken her powder, as she had for ten years, and slept the night through. Burger declined cross.

Mason at the lectern.

"Your Honor. With Defense Exhibit Five admitted and the testimony of Mrs. Aguirre on the record, the defense respectfully submits that the evidence now operationalizes the window of Mrs. Hollister's death. Mrs. Hollister was on the telephone with her sister at nine forty-five PM. She was alive on the landing at approximately ten minutes to ten. Dr. Kessler testified on Monday that the time of death was between nine and eleven PM. Combined, the evidence places the moment of Mrs. Hollister's death between nine forty-five and approximately eleven PM Tuesday, July sixth. The defense will continue to show that Mr. Hollister was not at the Hollister residence during that window."

"Your Honor. The defense rests for the day. We will continue Monday morning."

Whitcomb adjourned until Monday morning at nine.

The wall clock above the bookshelf in the inner office read five-eighteen when Drake came up the back stairs.

Mason was at the inner-office window. Della came in from her own desk with the steno pad and the appointment book and took the wooden chair at Drake's left shoulder.

Drake took the visitor chair. He set his hat on the rack on the way through.

"Tom on my line through the afternoon, Perry. Miss Tate called twice. Once before noon — the kid took it. Once at three — Tom took it. She did not name the hour. She wants to come in."

“All right.”

“Mr. Bannon called twice from the Sequoia Court. He has been reading the trial in the *Times*. He wants to walk in tomorrow morning and tell Lieutenant Tragg the truth.”

Mason watched the corner of Spring and Sixth go to the yellow.

“Tom on your line through the evening, Paul. If she telephones and names an hour, you bring her here.”

Della wrote the line on the steno pad and looked up.

“Cab on call from nine, Chief?”

“Cab on call from nine. Della stays through whatever evening the call comes. If she does not telephone tonight, Paul, we drive to the Sequoia Court without her. Tonight or first thing tomorrow. Mr. Bannon does not walk into the bureau alone.”

“Without you he names whoever he wants to name.”

“Without me he names whoever Tragg asks him to name.”

Della set the pencil down.

“He has been alone in that motel for three days, Chief. He may name more than is true if a homicide lieutenant sits him down across a table.”

“He may.”

Mason turned from the window.

“I’m going to the jail. I will be back by half past seven. Telephone me at the office the moment she names an hour.”

“I will.”

Drake stood. He took the hat off the rack on his way through the outer office and went out the back stairs. The door at the end of the hall clicked.

The visiting room at the county jail. Six twelve in the evening. The cream paint over concrete had gone a shade darker in the late-summer afternoon.

Mason in one of the metal chairs with his back to the door, still in the navy from court.

The jailer brought Hollister in. He took the chair across the table.

“Walter.”

“Counselor.”

“Miss Tate testified this morning. She did not give us what we needed. She said she did not recall whether she had seen you on the evening of Tuesday, July sixth. She said it three times.”

Hollister set his hands on the metal table. He looked at Mason a long count.

“Vivian does not lie under oath unless she has been told what the cost of telling the truth would be.”

“That is the leverage. Mr. Reisman’s office has had a long-standing arrangement with her gallery. Miss Margaret Doyle is on the witness list for the coming week. The arrangement does not survive Miss Doyle’s testimony.”

“Vivian knows that.”

“Mr. Drake’s line has had calls from her this afternoon. She wants to come in. She has not named the hour.”

“She will not name the hour until she has decided what to do about the gallery. She will not lose the gallery for me, Counselor, and you should not ask her to.”

“I am not asking her to. The arrangement that has been carrying the gallery is going to end this trial, Walter. When it ends the gallery may pay for itself out of its own work, or it may not. That is between Miss Tate and the gallery.”

“And Mr. Bannon.”

“Mr. Bannon has been telephoning the office from the Sequoia Court. He has been reading the trial in the *Times*. He wants to walk in tomorrow morning and tell Lieutenant Tragg the truth.”

Hollister did not answer at once.

“He should not walk in alone.”

“He is not going to. Mr. Drake and I will drive to the Sequoia Court tonight or in the morning. The truth Mr. Bannon walks in with on Monday morning will be the truth as he gives it on a witness stand under oath, with the trial record running.”

“All right, Mr. Mason.”

“Monday morning at nine in Department Nine.”

Hollister adjusted the heavy frames a quarter inch back on his nose.

“It is going to be a long weekend in this room, Walter.”

“I have been here every weekend, Counselor.”

Mason stood. He knocked once on the inside of the door. The jailer came.

The late-summer light at the corner of First and Hill was on the slant when Mason came down the jail steps. He turned south for the office and walked.

Chapter 17

Friday evening, the thirteenth of August. The back-stairs door at the end of the hall clicked at eight twenty-eight.

Drake came up first, hat in hand. Vivian Tate came up the stairs behind him, still in the charcoal suit she had worn on the witness stand that morning, the single string of pearls at the collar of the ivory silk blouse, the clutch handbag in her left hand. Under her right arm she carried a flat manila envelope.

She did not stop at Della's desk. Came through the inner-office door.

Mason stood at the desk.

"Miss Tate. Please."

He indicated the visitor chair. She set the envelope on the corner of his desk, set the clutch on the chair seat, sat. Took a slim cigarette case from the clutch and a thin gold lighter and lit a Pall Mall. Drew the ashtray nearer her elbow. Della came through behind Drake with the steno pad and took the wooden chair against the wall.

Vivian looked at Mason across the desk.

"Mr. Drake walked me through it this afternoon at the gallery. The Coastal pattern. The monthly cadence since sixty-nine. What Miss Doyle will say on the stand Tuesday morning."

She drew on the cigarette and let the smoke out toward the desk lamp.

"I came down tonight to find out what you can do for me on the police side."

Mason sat. Set both hands flat on the desk.

"Three things, Miss Tate. First. Monday morning you take the stand and tell the truth on Mr. Hollister's whereabouts on the evening of Tuesday, July sixth. He was at your apartment from approximately nine until eleven-thirty. The doorman saw him come in. The cab driver saw him at the corner. Your neighbor heard his voice through the wall."

"All right."

"Second. The envelope on the desk goes into the defense file tonight."

She looked at the envelope and looked back at Mason. Pushed it a quarter inch toward him with the back of one knuckle.

“Photostats of the cordovan ledger. The quarterly receipts. The bank deposits matched to each. Mr. Reisman’s signature on the original transmittal of every one.”

“Third. The Coastal payments to your gallery. The question between us tonight is whether they come out on the trial record as something a victim of Mr. Reisman’s leverage took because she was lied to about what the company was, or as something a co-conspirator took to help him launder. The first frame puts you on a witness stand against him. The second puts you in front of a grand jury.”

The cigarette stopped an inch from her mouth. She held it there a count before she set it back to her lips and drew on it again.

“I cannot represent you on it. Mr. Hollister is my client and the conflict is direct. But I can coordinate with your counsel on a voluntary statement that lands the first frame on the District Attorney’s desk before Miss Doyle’s testimony does. Filed Monday morning before court.”

“Saturday and Sunday for the structuring?”

“Saturday morning at ten with your counsel. Sunday for the second draft. On Mr. Burger’s desk by eight-fifteen Monday.”

She drew on the cigarette. Let the smoke out toward the lamp again.

“You can guarantee Miss Doyle’s testimony lands after mine?”

“Miss Doyle is a defense witness. The order is mine to set. The defense calls you Monday after the morning recess. Miss Doyle the next day, Tuesday morning.”

“Immunity?”

“That is the District Attorney’s call. I can position you as a witness against Mr. Reisman, not for him. The office is more inclined to accommodate the witness who came forward with documents than the one who was subpoenaed on what they could prove from the books.”

She set the cigarette in the ashtray. Looked at the envelope. Looked at Mason.

"My counsel is Mr. Coltrane at Coltrane, Patton on Wilshire. He is in the office Saturday mornings."

"Miss Street will telephone him at eight tomorrow morning."

Della from the wall chair: "Receipt to Miss Tate before she leaves, Chief."

"In your hand, Della."

Vivian drew on the cigarette once more.

"What time on Monday?"

"Be at this office by nine. I will walk you through the direct."

"Mr. Burger will cross?"

"He will. He has had since this morning to think about what he would do with hostile testimony recanted. The cross will be careful and short. Miss Street will work the cross-examination with you Sunday afternoon."

"All right, Mr. Mason."

Della took a fresh sheet from the cabinet, wrote the receipt in the small clean hand, crossed the room and gave it to Vivian. Vivian folded it once and put it in the clutch with the cigarette case.

"Mr. Drake will see you down to the cab. Saturday morning at ten at Mr. Coltrane's office."

Drake at the door: "Cab is at the curb on Sixth, Miss Tate."

She walked to the door. The shoulders sat a quarter inch lower under the charcoal jacket than they had on the way in. Drake opened the door for her and went out behind her.

The dashboard clock in Drake's car read ten fifteen when he turned in at the Sequoia Court in Burbank and parked at the back row of units. The single overhead light over the door of room twelve was on. The AC in the window was running on high.

Drake knocked. Three quick taps; pause; one tap.

Hal opened the door. Still in the denim jacket and jeans, the studio t-shirt under the jacket. The deep tan a shade lighter than it had been the morning he had walked into the office in June. The sandy-brown hair grown out at the collar.

“Mr. Mason. Mr. Drake.”

He stepped back. Mason came in first; Drake behind him; closed the door; the chain ran along its track.

The room was a queen bed against the back wall, a dresser with a black-and-white television on top, an ashtray and two stubs on the nightstand, the *Times* open on the bed beside an indent in the green spread where Hal had been sitting. The visitor chair was against the wall between the dresser and the door. A coffee cup with a cold film at the bottom sat at the corner of the dresser; three more were on the floor beside the wastebasket.

Hal sat back down on the edge of the bed. Mason took the visitor chair. Drake leaned on the dresser, hat in hand. Hal’s hands settled on his knees, and the right one closed once on the denim and opened again.

Hal looked at Mason across the small space.

“Mr. Mason. I want to walk into Tragg’s office tomorrow morning and tell him what really happened.”

Mason did not answer at once. The AC unit ran.

“You do not have to do this, Mr. Bannon. We are going to win this regardless.”

“I know what the trial looks like, Mr. Mason. I have been reading it in the *Times* for three days.”

“The defense conceded the alibi on Wednesday. The People’s case on the alibi is broken. By Monday afternoon Miss Tate will be on the stand cooperating and Mr. Hollister’s whereabouts that evening will be on the record. Mr. Burger may not file on you. The District Attorney’s office has the discretion. You become his witness against Mr. Reisman either way.”

The hands on the knees did not move.

“Walter has been in jail for a month because of what I said, Mr. Mason. I am telling you now what I should have told you on the Wednesday morning I walked into your office.”

Mason held it a count. Looked at the *Times* on the bed. Looked at Hal.

“All right, Mr. Bannon. Then I want you to hear what walking in means and what staying quiet means before you commit to it.”

“Tell me.”

“Stay quiet. The perjury statute runs three years. The District Attorney’s office can come for you any time between now and nineteen seventy-four. You have no negotiating position because you did not come forward. He may decide in eighteen months that filing the perjury makes a political point. You will not know one way or the other for three years.”

He paused. The AC unit took the silence.

“Walk in tomorrow. The voluntary disclosure is mitigation. Cooperation against Mr. Reisman gives Mr. Burger a frame he can use publicly — the witness came forward, the office accepted his cooperation. He has direct incentive to be soft. The likely outcome is a plea and probation. Possibly no prison. The chip is in your hand at the negotiating table because you put it there.”

Hal listened. Did not interrupt.

“Either way, Mr. Bannon. The union may pull your card on the stunt side. The lots that hired you may not hire you again. The reputation cost is the same whether you walk in or stay quiet. The criminal cost is what you can still control.”

The AC unit ran. The *Times* on the bed had not moved since they had come in.

“I know what I am walking into, Mr. Mason. I know what the union does to confessed perjurers. I know what the lots do. I am going to walk in anyway.”

Mason looked at Drake. Drake gave him a small nod.

"All right, Mr. Bannon. We go in at nine. Mr. Drake stays with you tonight. I pick you both up at the curb at eight in the morning. Lieutenant Tragg will have a room ready. You give him the statement in your own words; Mr. Burger will be in within the hour. We work with what he gives us."

"Will I sleep in my own bed tomorrow night?"

"Probably not. The office may hold you on material-witness terms until they have decided what to charge. Mr. Drake will be with you through whatever Lieutenant Tragg and Mr. Burger decide; I will be there until the morning's work is done."

"All right."

Mason picked his hat up from the corner of the dresser. Hal had not moved from the edge of the bed.

"Eight in the morning, Mr. Bannon. Sleep if you can."

Hal nodded. The hands stayed on the knees.

Mason went out. The door closed behind him. The chain ran along its track.

Saturday morning Hal walked into the bureau at nine with Drake at his elbow. Tragg had the room ready. Burger came in at five past ten and took Hal through the prior alibi sales and the wire-rig night. By noon the statement was signed and Burger had pulled Drake aside fifteen minutes on the Sequoia Court arrangement. No filings on the perjury. Burger kept the cooperation chip in his hand.

Saturday at ten Mason and Della were at Coltrane's office on Wilshire. Coltrane was a thin man with steel-rim glasses, a corner room, and a draftsman's habit with paragraphs; the voluntary statement was drafted by noon and clean-copied by three. Sunday the second draft. Vivian read it through in the conference room Sunday evening, signed two pages, and went home. Coltrane filed with Burger's office at eight-fifteen Monday morning. Burger's clerk acknowledged the receipt at eight-thirty.

Department Nine, Monday morning, the sixteenth of August. The defense was into its fourth day.

“The defense calls Mr. Pete Goldberg.”

Goldberg came through the bar in a tan windbreaker with a Yellow Cab cap in his hand: late thirties, lean, sharp nose, short dark hair. He took the stand, set the cap on his knee, took a small spiral notebook out of the windbreaker pocket, set it on the rail.

The clerk swore him. Mason established hack license, cab number, and shift. Goldberg opened the notebook to a marked page.

“On Tuesday, July sixth, you took a dispatch at nine-oh-three PM for a pickup at the corner of Mulholland and Outpost. You picked the fare up at nine-oh-eight. One passenger, male, the back seat. The destination was an address in Beverly Hills.”

“That is correct, sir.”

“Look at the gentleman seated at the defense table. Have you seen him before today?”

“Yes, sir. The gentleman I picked up at nine-oh-eight that night.”

“At what time did you arrive at the Beverly Hills address?”

“Nine-thirty-one PM, sir. Drive time of twenty-three minutes.”

Mason had no further questions. Burger declined cross.

“The defense calls Mr. Velez.”

The doorman at Wilton Court on Crescent Drive in Beverly Hills came through the bar in a navy uniform with brass buttons and the building name embroidered on the breast pocket. Late fifties, gray-edged dark hair cut close, brown skin. The white gloves were in his left hand, the doorman’s log book under his right arm.

The clerk swore him. Mason established the log as a regular business record and asked him to read the entry for nine-thirty-five PM Tuesday, July sixth, marked Defense Exhibit Six.

“Mr. Hollister, nine-thirty-five PM, to apartment three-B, Miss Tate.”

“How many years has Mr. Hollister visited apartment three-B?”

“Perhaps five, sir.”

“Did Mr. Hollister at any time give you a name other than his own?”

“No, sir. He came in under his own name.”

“Did he ever ask you to omit his arrival from the log?”

“No, sir. I logged him in as I log every visitor.”

At the defense table Hollister looked once at Velez and then down at the wood. He did not look up again until Velez had stepped down.

Burger at the lectern. “Mr. Velez. You do not in fact know what occurred inside apartment three-B that evening.”

“No, sir.”

“Did Mr. Hollister bring his wife to apartment three-B on any of these visits over those years?”

“No, sir.”

Velez closed the log book and went down through the bar.

“The defense calls Mrs. Fenster.”

She came up to the stand in a navy dress with a small floral pattern, glasses on a chain against her chest. Early sixties, slight, the white hair pinned at the back in a low chignon. The hands settled in her lap and stayed there.

Mason established that she had lived at apartment three-C, Wilton Court, for twelve years; that three-C was adjacent to three-B and they shared the bedroom wall; that she had been introduced to Mr. Hollister once at the elevator on a Saturday morning and had recognized his voice through the wall on prior occasions over a period of years.

“On Tuesday evening, July sixth, did you at any time that evening hear voices from apartment three-B?”

“Yes, sir. From approximately a quarter to ten. Two voices. Miss Tate’s and Mr. Hollister’s. In conversation.”

“How do you know the time was approximately a quarter to ten?”

“I glanced at the bedside clock. It read shortly before ten. I listen to the KNX news broadcast at ten PM.”

“At what time, approximately, did you last hear voices from apartment three-B that evening?”

“Approximately eleven PM, sir. Though I will not commit more precisely. I read until I fell asleep with the book on my chest.”

Burger crossed her in two questions to establish she had not seen Mr. Hollister at any point. She had not. She could not see through the wall. She adjusted the glasses on the chain and went down.

Whitcomb recessed for fifteen minutes.

The spectator bench at the back of the courtroom was empty when court came back at ten-thirty. Mason did not look toward it.

“The defense calls Miss Vivian Tate.”

She came down the center aisle in a different charcoal suit, fresh at the lapel, the clutch in her left hand. Did not look at the defense table. Did not look at the gallery. Came up to the rail and waited.

The clerk swore her. She sat. The clutch went on the rail beside her right hand.

Mason at the lectern.

“Miss Tate. On Friday last you testified before this court that you did not recall whether you had seen Mr. Hollister during the week of Tuesday, July sixth. You wish today to correct that testimony.”

“I do, Counselor.”

“Why did you not testify truthfully on Friday?”

“I had been threatened, Counselor.”

“Who threatened you, Miss Tate?”

“Mr. Reisman.”

At the defense table the dark eyes lifted once behind the heavy frames toward the witness stand. They held there a half-count. The hand on the wood went still on the grain.

“What was the mechanism of the threat?”

“Mr. Reisman is a business partner of Mr. Hollister at Argonaut Pictures. Since June of nineteen sixty-nine my gallery has received quarterly payments from a firm called Coastal Production Services. Mr. Reisman set up the arrangement. He represented the gallery as rendering art-advisory services to Coastal as a legitimate consulting client. I signed quarterly receipts represented as consulting invoices. I came in time to consider that the representation might not have been true.”

“The amounts.”

“Twelve thousand dollars per quarter at the outset. The most recent payment was eighteen thousand. Approximately one hundred and forty thousand dollars over the period.”

“Did Mr. Reisman speak with you in advance of your Friday testimony?”

“Thursday afternoon at my gallery. The day after the subpoena was served. He reminded me of the arrangement. He asked whether I had given thought to what I would say if Mr. Hollister’s affair surfaced in court. He suggested that *I do not recall* answers would protect both of us. Myself from gallery exposure. Mr. Hollister from public humiliation in his trial. He left without further specifics.”

“Did Mr. Reisman need to make the connection between your continued receipt of Coastal payments and your testimony explicit?”

“He did not, Counselor. The arrangement had been operating for twelve years. The implication was clear.”

“You understood you were being told to give hostile testimony.”

“I did.”

“When did you reconsider that position?”

“On Friday evening, after I read the afternoon edition of the *Times*. The trial coverage included Mr. Carmody’s testimony on the telephone bill. I considered Mr. Hollister’s defense and Mr. Reisman’s role in the leverage that had compelled my morning testimony. I took counsel with Mr. Coltrane Saturday morning. A voluntary statement was filed with Mr. Burger’s office at eight-fifteen this morning.”

“Will you tell this court now where Mr. Hollister was on the evening of Tuesday, July sixth, between nine PM and eleven-thirty PM.”

“Mr. Hollister was at my apartment from approximately nine until eleven-thirty that evening. He arrived by cab at approximately nine-thirty. He came up to the third floor by the elevator.”

“By what means had he reached the building.”

“He had walked from the Magnolia Club to the corner where he called the cab. His car was at the Magnolia where he had left it earlier that evening.”

“At what time did Mr. Hollister leave your apartment.”

“Approximately eleven-thirty PM. By cab. He returned to the Magnolia to retrieve his car. The pattern was the same each Tuesday.”

“Was Mr. Hollister at the Hollister residence at any time between approximately nine PM and eleven-thirty PM on the evening of Tuesday, July sixth.”

“He was not, Counselor.”

“No further questions, Your Honor.”

Burger stood. Straightened the folder once. Crossed to the lectern.

“Miss Tate. Friday morning, under subpoena, you testified that you did not recall whether you had seen Mr. Hollister during the week of Tuesday, July sixth.”

“Yes, Mr. Burger.”

“That testimony was given under oath.”

“Yes, Mr. Burger.”

“The threat by your account today originated approximately one week before your Friday testimony. Wednesday afternoon at your gallery. Yet between Wednesday afternoon and Friday morning you did not contact this office. You did not contact Mr. Coltrane until Saturday. After your Friday testimony had been given.”

“That is correct, Mr. Burger.”

Burger straightened the folder a second time.

“No further questions, Your Honor.”

Mason from the defense table: “No redirect, Your Honor.”

Vivian rose. She stepped down. She walked back up the center aisle. She did not look at the defense table. She went out through the back of the courtroom.

Mason crossed to the lectern. He buttoned the jacket at the middle button.

“Your Honor. With the testimony of Mr. Goldberg, Mr. Velez, Mrs. Fenster, and Miss Tate now on the record, I respectfully submit that the evidence operationalizes Mr. Hollister’s whereabouts during the window of Mrs. Hollister’s death.”

He set both hands on the slope of the lectern.

“Mr. Hollister was at Miss Tate’s apartment in Beverly Hills from approximately nine PM until eleven-thirty PM on the evening of Tuesday, July sixth. He arrived by cab at approximately nine-thirty-one PM, having been picked up by Mr. Goldberg’s cab at nine-oh-eight PM at a corner near the Magnolia Club. He was logged into the building at nine-thirty-five PM by Mr. Velez. His voice was heard by Mrs. Fenster through the bedroom wall of the adjacent apartment from approximately quarter to ten PM until approximately eleven PM.”

“The defendant did not give a false name to the doorman. He did not pay the cab driver in coin. He did not lower his voice through the apartment wall.

Your Honor, the defendant was not concealing a murder. He was concealing a long-standing relationship outside his marriage.”

Burger did not rise.

Whitcomb looked at the clock above the bench. Mason from the lectern looked once down the center aisle to the back of the courtroom. The spectator bench had been empty since the morning recess, and was empty now. The gavel came down on adjournment to Tuesday morning at nine.

Chapter 18

Tuesday morning, the seventeenth of August. Margaret Doyle came up the back stairs at seven-fifty, first time at Mason's office. Wiry-thin in a gray wool cardigan over a pale blouse with a small round collar; dark red hair pulled back tightly into a low knot at the nape; hazel eyes; freckles fading on the bridge of the nose. The slim brown handbag was in her left hand. She carried nothing else.

Mason indicated the visitor chair. Margaret sat. The cold hands went flat on the chair arm and stayed there.

"Miss Doyle. Four areas, in this order. Mr. Reisman as the architect of the Coastal Production Services arrangement. The mechanism — the quarterly cadence, the work that did not exist, his signature on the invoices. Mrs. Hollister's planned exposure of the scheme — the Monday-evening telephone call, the Wednesday-morning meeting that did not occur. The leverage Mr. Reisman set up over you concerning your mother at Beverly Manor. I will guide you through each."

"All right, Mr. Mason."

"Mr. Burger will cross you. He will not, I think, attack the substance. He will probe the gap — that you do not have direct evidence Mr. Reisman was at the Hollister residence on the evening of July sixth. The gap is true. You confirm it. The gap does not undo what you do know."

"All right."

The cold fingers loosened on the chair arm a fraction, settled, and stayed.

Della from the wall chair: "Cab at the curb on Sixth at eight-twenty, Miss Doyle. I will ride up with you."

"Thank you, Miss Street."

Mason took his hat from the rack.

"The defense calls Miss Margaret Doyle."

Margaret came down the center aisle. The flat sensible shoes set down on the wood. The cold hands went to the witness-stand rail.

On the spectator bench at the back of the courtroom Reisman in the modern-cut summer-weight suit, hands folded in his lap, no portfolio.

The clerk swore her. Mason established that Margaret Doyle was a book-keeper in the production accounting department at Paramount Pictures, ten years and four months in the role, and had worked on Argonaut's accounts payable through that period — Argonaut produced on the Paramount lot under a unit arrangement, and signed off on its own books.

Mason at the lectern.

"Miss Doyle. I am going to hand you a file of papers that has been authenticated by Mrs. Caroline Marsh as having been the personal records of her sister, Mrs. Helen Hollister."

The clerk took the file forward, marked it Defense Exhibit Seven, brought it back. Margaret opened the file on her knee. The fingers stayed flat on the rail.

"Will you identify this file."

"These are Mrs. Hollister's compiled records on Coastal Production Services payments from Argonaut Pictures, in the period the first quarter of nineteen sixty-seven through the second quarter of nineteen seventy-one. I helped Mrs. Hollister assemble them between March and June of this year."

"Who set up the Coastal Production Services arrangement at Argonaut Pictures?"

The cold fingers tightened on the rail. Margaret's eyes went once to the spectator bench at the back of the courtroom and came back to Mason.

"Mr. Reisman, Mr. Mason."

Behind the heavy frames Hollister looked at the wood and did not look up.

"How long has the arrangement been in place?"

"Eighteen quarters, Mr. Mason. The first invoice in the file is dated the fourth Tuesday of January, nineteen sixty-seven. The most recent is dated the fourth Tuesday of April, nineteen seventy-one. Quarterly. On the fourth Tuesday of each calendar quarter. Without exception."

“The amounts?”

Margaret turned a page in the file.

“The first invoice, January nineteen sixty-seven — fourteen thousand dollars. The third quarter of nineteen sixty-nine — twenty-four thousand. The most recent, the second quarter of this year — thirty-two thousand. The amounts rose to the quarter. Across eighteen quarters the total is approximately four hundred and eighty thousand dollars.”

“What work did Coastal Production Services perform for Argonaut Pictures?”

“The invoices describe the work as *production services*. They do not say what the production services were. There is no work order in the file. There is no project name. There is no invoice description beyond *production services* on a single line.”

“Who signed off on the Coastal Production Services payments at Argonaut?”

Margaret turned to a specific page.

“Mr. Reisman, Mr. Mason. The signed-off line on this invoice carries the signature *A. Reisman*. I have seen his signature on Argonaut paperwork for ten years.”

On the spectator bench Reisman had not moved.

“Miss Doyle. In April of this year did you have a conversation with Mrs. Hollister at the Wilshire benefit on the Children’s Hospital committee?”

“I did. Mrs. Hollister asked me whether Paramount took the Argonaut payroll through the studio books or whether Argonaut ran their own. I told her Argonaut ran their own.”

“In May did Mrs. Hollister telephone you at your Paramount office?”

“She asked who signed off on Argonaut invoices when they came back through the studio for record-keeping. I told her Argonaut signs off on its own.”

“And in June?”

“Mrs. Hollister brought her preliminary notes to me at my office. She asked for my help cross-referencing the Coastal Production Services payment list against the Argonaut payables. We worked on it together between the eighth of June and the twenty-fifth of June. The file in front of me is the result of that work.”

“How long had you known Mrs. Hollister?”

“Approximately fourteen years, Mr. Mason. We met in nineteen fifty-seven when she was a secretary at Paramount.”

“When Mrs. Hollister told you she planned to do something, did she follow through?”

“Yes, Mr. Mason. Always. She was a careful person. When she said she would do a thing on a particular day, she did it.”

“On the evening of Monday, July fifth, of this year, did Mrs. Hollister telephone you at your apartment?”

“Yes, Mr. Mason. At approximately seven o’clock that evening. The call lasted approximately fifteen minutes.”

“What did you and Mrs. Hollister speak about?”

“We spoke about the Wednesday charity board on which we both served. We spoke about a dressmaker who had been slow with a fitting. We spoke about ordinary things.”

Margaret took a breath. The knuckles on the rail went whiter under the skin.

“And Mrs. Hollister told me that her notes on Coastal Production Services were complete. That she would bring the records to Mr. Levine of Levine, Coulter and Sokol on Wednesday morning. That Mr. Levine had been her attorney on the matter since March. That Mr. Levine had agreed to take the records to the District Attorney’s office that Wednesday afternoon.”

She held the rail and said it flat.

“Mrs. Hollister did not live to Wednesday morning.”

At the defense table the dark eyes lifted once behind the heavy frames toward the witness stand. The hand on the wood went still.

On the spectator bench Reisman had not moved.

"Miss Doyle. Did Mrs. Hollister tell anyone other than yourself that she was ready to bring the records forward?"

"She did not. She told me she had not told Mr. Hollister. She told me she would tell Mr. Levine when she arrived Wednesday morning."

"Miss Doyle. I would like to ask you about your mother at Beverly Manor."

The cold fingers tightened again on the rail.

"My mother has been at Beverly Manor on the twelve-thousand block of Pico, in West Los Angeles, since June of nineteen sixty-nine. She has severe dementia. She does not know me when I visit on Saturdays."

"What is the monthly charge for her care?"

"Three hundred dollars a month. Two hundred and forty when she was admitted in June of sixty-nine. It rose to three hundred this spring."

"Who pays the bill?"

"A check is mailed direct from a bank in Pasadena to the home on the first of every month. I have never seen the check. The director tells me the arrangement is private."

"Do you know the source of the funds?"

The voice went thin half a register.

"Mr. Reisman, Mr. Mason. In June of nineteen sixty-nine my mother had been failing for two years. I could not pay the rates at Beverly Manor on what Paramount pays a bookkeeper. Mr. Reisman came to me at the Argonaut bungalow on a billing question. He said he had a cousin at Beverly Manor. He cited the cost of that kind of care. He arranged it through what he called a private fund. He told me it was a longtime family-friend gesture. I let myself believe him."

"Did the Beverly Manor payments continue after Mrs. Hollister's death?"

“Yes. The check arrived on the first of August, as it had every first of the month since June nineteen sixty-nine.”

“And did Mr. Reisman speak with you about the records you had helped Mrs. Hollister assemble?”

“Not directly. He spoke with me at the Argonaut bungalow on July tenth — four days after Mrs. Hollister’s death. He said the company was looking into Mrs. Hollister’s affairs. He said he hoped my mother was well at Beverly Manor.”

“No further questions, Your Honor.”

Burger crossed to the lectern. Set both hands on the slope.

“Miss Doyle. You do not in fact have any direct evidence that Mr. Reisman was at the Hollister residence on the evening of Tuesday, July sixth.”

“I do not, Mr. Burger.”

“You did not see Mr. Reisman that evening.”

“I did not.”

“Mr. Reisman did not telephone or otherwise communicate with you that evening or the morning after.”

“He did not.”

“The Coastal Production Services records you have described establish a business arrangement. They do not establish murder.”

“They do not, Mr. Burger.”

Burger held the lectern a half-count. Sat.

“No further questions, Your Honor.”

Mason rose.

“Miss Doyle. You have not testified today that Mr. Reisman killed Mrs. Hollister. You have testified to what you know.”

“That is correct, Mr. Mason.”

“No further questions, Your Honor.”

Margaret stood. She stepped down. As she passed the defense table she did not look at Hollister. She did look at Mason at the lectern — a small nod, met by his own. She went out through the back of the courtroom.

Mason at the lectern.

“Your Honor. With Defense Exhibit Seven admitted and the testimony of Miss Doyle on the record, the evidence establishes the financial motive for Mrs. Hollister’s death. Mr. Reisman ran the Coastal Production Services scheme out of Argonaut Pictures for the eighteen quarters Miss Doyle has described. Mrs. Hollister had compiled the records that would have exposed him. Mrs. Hollister had told Miss Doyle on Monday evening, the fifth of July, that she would bring those records to Mr. Levine the following morning. Mrs. Hollister did not live to that morning.”

“Combined with the testimony of Miss Tate and the operational whereabouts established yesterday, the evidence places Mr. Hollister demonstrably outside the Hollister residence during the murder window — and the partner with every reason to silence Mrs. Hollister at liberty during that window.”

“The defense will call Mr. Bannon tomorrow morning at nine.”

Burger did not rise. The gavel came down on adjournment to Wednesday morning at nine.

Wednesday morning, the eighteenth of August. The defense was into its sixth day.

“The defense calls Mr. Hal Bannon.”

The bailiff went through the side door from holding. He came back through with Hal at his elbow — in the denim jacket Drake had brought from the motel, the faded studio t-shirt beneath, the boots that had been on him since Day Zero. The sandy-brown hair touching the collar. The deep tan. Hal did not look at Hollister at the defense table. He did look at Mason at the lectern. Mason met it with a small nod.

The clerk swore him. Hal sat. The hands went to the rail at first and the jaw worked once.

“Mr. Bannon. On Saturday, the fourteenth of August, did you give a voluntary statement to Lieutenant Arthur Tragg of the Los Angeles Police Department?”

“I did, Mr. Mason. I corrected the testimony I had given before the grand jury on the second of July.”

“The grand-jury testimony you corrected concerned what?”

“It concerned where I was on the evening of Tuesday, the sixth of July, of this year. I told the grand jury I had been at the Magnolia Club with Mr. Hollister from eight to midnight. I was not at the Magnolia Club at any time that evening. Mr. Hollister had paid me to say I was.”

The hands came off the rail and went to the knees. They stayed there.

“Mr. Bannon. The arrangement with Mr. Hollister had a history. Tell us about the first time you sold him an alibi.”

“It was about fifteen months ago, Mr. Mason. Vito Petracca came down to the western lot at Paramount one afternoon. Vito was an assistant director on a feature Argonaut had in development called *Crossfire*. He told me Mr. Hollister wanted to meet me at the Argonaut bungalow. I went over the next morning. Mr. Hollister was at the desk. He told me he had a Tuesday-evening standing thing with a lady-friend in Beverly Hills and he needed somebody to say he had been at the Magnolia Club with him on the Tuesday after next. He gave me a thousand dollars in tens and twenties. He said, *‘Nobody is ever going to ask, Mr. Bannon.’*”

“And the second arrangement?”

“About eight months ago. Mr. Hollister called the bungalow himself. Same speech. Same thousand dollars in tens and twenties.”

“How were you paid?”

“I would sign in at the Magnolia as Mr. Hollister’s guest a couple of nights after the Tuesday in question, have a drink, and Mr. Hollister would slip me the envelope going out. Eddie Salinas behind the bar saw me both times.”

“What did Mr. Hollister tell you the alibi was for?”

“For a Tuesday standing thing with a lady-friend. He never named her.”

“You did not press to know.”

“I did not, Mr. Mason. It was an arrangement. The arrangement was the alibi.”

“Mr. Bannon. The third arrangement with Mr. Hollister. When and where was it set up?”

“At Musso’s, Mr. Mason. On Hollywood Boulevard. Thursday, the first of July, of this year. One o’clock in the afternoon.”

“Five days before Mrs. Hollister’s death.”

“Five days.”

“Will you describe the meeting.”

“Mr. Hollister had the corner booth on the south wall. He had a martini in front of him when I came in. After the second martini and before the chicken came, he slid an envelope across the booth bench between us. The envelope was plain manila. Inside was two thousand dollars in tens and twenties.”

“Did Mr. Hollister say anything when he gave you the envelope?”

“He said, *‘Not at the club this time, Hal — I’m doing this one cleaner.’*”

At the defense table the hand on the wood eased a degree against the seven-day pressure that had been holding it.

On the spectator bench Reisman had not moved.

“Did Mr. Hollister say anything else?”

“He said, *‘Just be ready to say it if anybody asks, Hal — nobody is going to ask.’*”

“Mr. Bannon. On the evening of Tuesday, the sixth of July — the evening the alibi was for — where were you?”

“On the Mannix unit at Paramount, Mr. Mason. A wire-rig sequence for an episode.”

“What work did you do that evening?”

“First a high-fall sequence from a fourth-story facade onto an air bag. Three takes. Then the wire rig for a second sequence. Approximately eight to ten in the evening. I came off the rig at ten.”

“You were not at the Magnolia Club at any time on the evening of Tuesday, the sixth of July.”

“I was not.”

“No further questions, Your Honor.”

Burger crossed to the lectern.

“Mr. Bannon. You have testified today that you lied to the grand jury on the second of July.”

“I did, Mr. Burger.”

“You lied under oath.”

“I did.”

“You took two thousand dollars to lie. You sat on the grand-jury stand and you repeated the lie to me personally. You watched Mr. Hollister be held at the bureau and then taken into custody on a charge that included the evidence you supplied. He has been in jail for the better part of six weeks.”

“I have, Mr. Burger.”

“Why should this court believe you now?”

The jaw worked once.

“Mr. Burger, you should not have to take my word for any of it. You should believe what is on the Mannix call sheet. You should believe Mr. Vincent’s photograph at nine-thirty. You should believe Eddie Salinas behind the bar at the Magnolia on the prior two arrangements. You should believe the

envelope at Musso's. You do not have to believe me. The record is what it is."

"You have come forward voluntarily."

"I have, Mr. Burger. Last Saturday morning. I read the trial in the *Times*. Mr. Hollister had been in jail a month because of what I said. I wanted to make it right."

"Mr. Bannon. Are you aware that the perjury exposure you face is a felony under California law?"

"I am."

"And you have come forward despite that exposure."

"I have. The fraud was mine. The consequences are mine."

The jaw worked once again.

"Mr. Hollister did not kill his wife."

Burger held the lectern a half-count. Sat.

"No further questions, Your Honor."

Mason rose.

"Mr. Bannon. You have not testified today that you participated in a murder. You have testified to a fraud you committed and have come forward to correct."

"That is correct, Mr. Mason."

"No further questions, Your Honor."

Hal stood. He stepped down from the witness stand. The bailiff came forward. They went together through the side door from holding. The door closed.

Mason at the lectern. He buttoned the jacket at the middle button.

"Your Honor. With the testimony of Mr. Bannon now on the record alongside the testimony of Mr. Leo Ramsey and Mr. Eddie Vincent admitted

in Mr. Burger's case, the evidence establishes that the alibi Mr. Hollister purchased from Mr. Bannon was the third in a pattern of paid alibis Mr. Hollister had established over fifteen months. The first two concerned ordinary Tuesday evenings on which Mr. Hollister visited Miss Tate. The third concerned the Tuesday on which Mrs. Hollister was killed."

"The pattern is not consciousness of murder. It is consciousness of a long-standing affair. The defense will continue, Your Honor, to show who at this hour did kill Mrs. Hollister."

Burger did not rise. The gavel came down on adjournment to Thursday morning at nine.

Hollister stood as the bailiff crossed to the defense table. Before the bailiff reached him he looked once at Mason.

"Thank you, Counselor."

Mason gave him a small nod. Hollister looked at Della at the defense table.

"Helen's records are on the record now, Miss Street so her sister can see them."

"They are, Mr. Hollister."

The bailiff took his elbow. They went through the side door from holding.

The wall clock above the bookshelf in the inner office read just past five when Drake came up the back stairs.

He set the hat on the rack and came through to the visitor chair. Della came through behind him with the steno pad and took the wooden chair at his left shoulder.

Drake took the small black notebook out of the inside pocket of the coat.

"Subpoenas held, Perry. Mr. Marchese Thursday morning at nine. Mr. Beltran Thursday afternoon. Owen Davies Friday morning."

"All right."

Drake turned a page.

“Hennessey’s man on the Argonaut bungalow Tuesday afternoon. Mr. Reisman took a phone call at three-twenty. The afternoon edition of the *Times* was on his desk; the headline was Miss Doyle’s morning testimony. The call was Bill Schiffrin’s office. Mr. Reisman told Schiffrin’s secretary he had never been at Donna Aaronson’s June party in Trousdale. Joe Levin’s man was on Donna Aaronson’s door that night. Mr. Reisman’s name was on the list. Mr. Reisman was at the party twenty minutes by the bar.”

Mason set both hands on the desk.

“Three.”

“Three.”

Drake closed the notebook and put it back in the inside pocket of the coat.

Mason crossed to the desk. He set his hand on the pull of the third drawer on the left side and held it there a count. Then he opened the drawer and took out a manila folder.

“This came up the back stairs in your hat band five weeks ago, Paul. I have been holding it.”

He set the folder on the corner of the desk. He took a single photostatted page from the folder and set the page on the wood where Drake could see it.

Della’s eyes lifted from the steno pad to the page.

Drake leaned forward in the chair.

The page was a photostat of a steward’s-book page from the Magnolia Club. Across the lined page in black ink, in Owen Davies’s hand: *Tuesday, February 9, 1970. Mr. A. Reisman, guest Mr. H. Bannon. 7:40.*

Drake’s eyes dropped a quarter inch behind the lids and came back up.

“Eighteen months back, Perry. The *Crossfire* picture. The one Vito Petracca was on.”

“Mr. Reisman signed Mr. Bannon in as his guest at the Magnolia Club for a stunt-coordinator lunch on the *Crossfire* picture three months before Mr. Hollister told Vito to come down to Mr. Bannon on the western lot.”

Della's eyes went from the page to Mason and stayed there.

"Mr. Bannon does not remember the lunch. He takes a lot of these meetings. He has been on five lots in fifteen months."

"Mr. Reisman set him up."

"He set the precedent. Vito worked the *Crossfire* picture with Mr. Bannon under him. Three months later Mr. Hollister told Vito to bring him a stuntman; Vito brought the stuntman he knew. The pattern Mr. Reisman put on the lot in February was the pattern Mr. Hollister tapped in May. Mr. Hollister did not need to know about the February lunch. He asked Vito; Vito brought Mr. Bannon."

Mason rested his fingers on the corner of the page.

"Owen Davies authenticates the steward's-book signature Friday morning. I recall Mr. Reisman as the last defense witness Friday afternoon. I ask him whether he had ever met Mr. Bannon prior to this case."

"What if he does not deny it, Perry. What if he says he does not recall."

"He will deny it. He has been keeping the small things denied for many years. He keeps a profile. To concede the lunch is to lose the profile. To deny the lunch is to lose the page. If he says he does not recall, the page refreshes his recollection and we are at the same place, only quieter. He will not say he does not recall. He has not hedged a small thing in two years."

"He may go either way."

"He will deny it. Mr. Bannon's confession was on the record this morning. Mr. Reisman watched it from the second row. He has seen what Mr. Bannon will say if he is asked. We will know inside the first minute Friday afternoon."

Della: "I will have the Reisman recall paperwork on your desk by eight Friday morning, Chief."

"By eight, Della."

Drake's eyes came up. Held there.

"Davies Friday morning, Perry."

“And then Mr. Reisman.”

Mason picked the photostat off the wood. Set it back inside the folder. Held the folder on the corner of the desk.

“Take it with you, Paul. File it under Friday’s witness folder at your office. Mr. Davies will see his own hand when he sits down.”

Drake stood. Took the folder. Put it in the inside pocket of his coat alongside the notebook. Picked the hat off the rack on his way through the outer office. Went out the back stairs. The door at the end of the hall clicked.

Chapter 19

Thursday morning, the nineteenth of August. Department Nine. The defense was into its seventh day.

On the spectator bench at the back of the courtroom Reisman in a modern-cut summer-weight suit a shade lighter than Wednesday's, hands folded in his lap, no portfolio.

"The defense recalls Mr. Anthony Marchese."

The bailiff went through the side door from the witness room. He came back through with Marchese at his elbow — in the white valet jacket over the pale-blue shirt, the dark hair combed back. The clerk reminded him he was under previous oath.

Mason at the lectern.

"Mr. Marchese. You testified on Wednesday last that Mr. Hollister's Lincoln was in the first row of the Magnolia Club lot from approximately seven-fifty until a few minutes after midnight."

"I did, Mr. Mason."

"During the evening of Tuesday, the sixth of July, did any other car arrive at the parking lot that you have not yet testified to?"

"Mr. Reisman's Cadillac, Mr. Mason. He came back briefly that night."

"At what time?"

"Around eleven-thirty. He parked it himself in the second row. He did not call for the valet."

"Did you see him on his arrival?"

"I did, Mr. Mason. From the stand I can see the lot and the front entrance both. He came in through the front entrance."

"Was he carrying anything when he came in?"

"A small gym bag. Dark canvas."

"Did you see what was inside?"

“No, sir. It was closed.”

“Was he carrying the gym bag when he came back out?”

“He was not, Mr. Mason. He came out empty-handed.”

“How long was he inside the club?”

“Ten minutes. Maybe twelve. He came out, took the Cadillac out of the second row, and drove off down the drive.”

“No further questions, Your Honor.”

At the defense table Hollister did not move.

On the spectator bench Reisman had not moved.

Burger crossed to the lectern. Set both hands on the slope.

“Mr. Marchese. You did not see what was inside the gym bag.”

“I did not, Mr. Burger.”

“You do not know what Mr. Reisman did inside the club during the ten or twelve minutes he was inside.”

“I do not, Mr. Burger. I was at the valet stand.”

“Members of the Magnolia Club come and go with personal items they do not show to the valet.”

“They do, Mr. Burger.”

“No further questions, Your Honor.”

Whitcomb recessed for fifteen minutes.

The clerk and the court reporter left the well. The newspaper men stood to stretch.

At the defense table Della tore a clean sheet from her steno pad. Wrote in the small clean hand:

1. Marchese
2. Beltran

3. Hennessey & Burdette

She slid the page across the table to his right hand.

Behind the heavy frames Hollister looked at the page. He looked at Della.

“Thank you, Miss Street.”

The page stayed under his fingers.

“The defense calls Mr. Manuel Beltran.”

The bailiff brought Beltran in through the side door — plain dark slacks and a pressed white shirt with no tie, a small hat in his left hand. Medium height, stocky through the chest, late fifties. Weathered tan from outdoor years. Gray hair cut close to the scalp. A small burn-scar on the back of his right hand.

The clerk swore him. He sat. The thick working hands lay flat on his thighs.

Mason at the lectern. Mason established Beltran as the morning porter at the Magnolia Club, twenty-three years in the role, on shift from five-thirty each morning — opens the kitchen, lights the stoves, checks the grounds, lights the incinerator if any of the staff burned items overnight.

“On the morning of Wednesday, the seventh of July, of this year, during the morning of your shift, were you present at the club incinerator at any point?”

“I was, Mr. Mason. At six-thirty in the morning. I came around the back of the kitchen to check whether the incinerator needed to be lit.”

“What did you observe when you reached the incinerator?”

“Mr. Reisman was at the incinerator, Mr. Mason. The door was open. He was putting items inside. The incinerator was already lit.”

“Mr. Reisman, the member of the Magnolia Club.”

“Yes, Mr. Mason. I have known Mr. Reisman by sight at the club for many years.”

“How were the items wrapped?”

“In newspaper, Mr. Mason. Each item separately. I could see the newspaper through the door.”

“How many items did you see Mr. Reisman put into the incinerator?”

“Several, Mr. Mason. I could not count them. He was already at it when I came around the back of the kitchen and he was still at it when I left him to it.”

“Was it customary for a member of the Magnolia Club to use the incinerator personally?”

“It was not customary, Mr. Mason. The staff burns items. Members do not normally come to the incinerator. Mr. Reisman was the first member I had seen at the incinerator in twenty-three years.”

“No further questions, Your Honor.”

Behind the heavy frames Hollister looked at the wood and did not look up. On the spectator bench Reisman had not moved. The page on his lap did not turn.

Burger crossed to the lectern.

“Mr. Beltran. You testified you did not observe what was inside the newspaper.”

“I did not, Mr. Burger.”

“It might have been household items. It might have been studio paperwork. It might have been any of a number of items that a person had reason to burn at six-thirty in the morning.”

“It might have been, Mr. Burger.”

“No further questions, Your Honor.”

Beltran picked the hat off the floor and went down through the bar.

Mason established the two surveillance witnesses together. James Hennessey, twelve years a licensed California PI, five years with Drake, prior LAPD vice 1959–1964. Charles Burdette, six years a licensed California PI,

four with Drake. Hennessey had taken the night side on the surveillance of Mr. Arthur Reisman from Friday the sixteenth of July through Tuesday the twentieth — five nights. Burdette had taken the day side from Tuesday the twentieth forward. Hennessey opened a small black notebook on the witness-stand rail.

“Mr. Hennessey. During your five nights of surveillance, did Mr. Reisman attend the offices of Argonaut Pictures at the Paramount lot in the evenings?”

“He did, Mr. Mason. Each of the five nights. He arrived at the bungalow at approximately seven fifty-five. He was inside until eleven o’clock. He left at eleven on the minute each night. I could have set a watch by it.”

“What did he carry with him?”

“A slim leather portfolio, Mr. Mason. Under his right arm on the way in.”

“Mr. Burdette. During your day-side surveillance, did the pattern continue?”

“It did, Mr. Mason. The same portfolio Mr. Hennessey has described. He carried it under his right arm on the way out.”

“Did you observe anything about the portfolio that Mr. Hennessey has not described?”

“I did, Mr. Mason. On the way up the leather lay flat against the side of his coat. On the way down the leather had a fold under his arm that it had not had on the way up. The portfolio was heavier coming out than it had been going in.”

“On each of the evenings you observed it?”

“On each of the evenings.”

“No further questions, Your Honor.”

Burger crossed to the lectern. Set both hands on the slope.

“Mr. Hennessey. Your surveillance of Mr. Reisman was directed by Mr. Mason through Mr. Drake.”

“It was, Mr. Burger.”

“Your testimony today reflects observations you were paid by Mr. Mason through Mr. Drake to make.”

“My testimony reflects what I observed, Mr. Burger.”

“Mr. Burdette. The same question.”

“My testimony reflects what I observed, Mr. Burger.”

“No further questions, Your Honor.”

Mason at the lectern.

“Your Honor. The testimony of Mr. Marchese this morning establishes that Mr. Reisman’s Cadillac was at the Magnolia Club at approximately eleven-thirty on the evening of Tuesday, the sixth of July — the evening Mrs. Hollister was killed. Mr. Reisman returned to the club briefly carrying a small canvas gym bag he did not show to the valet, and left some ten minutes later without it.”

“The testimony of Mr. Beltran establishes that at six-thirty the following morning — the morning Mrs. Hollister’s body was found — Mr. Reisman was at the Magnolia Club incinerator personally, putting items wrapped in newspaper into the fire. The first member Mr. Beltran has seen at the incinerator in twenty-three years.”

“The testimony of Mr. Hennessey and Mr. Burdette establishes that across more than a week following the discovery of Mrs. Hollister’s body Mr. Reisman attended the Argonaut Pictures bungalow each evening with a slim leather portfolio that left the bungalow heavier than it came in.”

“Combined with the testimony of Miss Doyle and Mr. Bannon this week, the evidence establishes a pattern consistent with the destruction of evidence after the murder and the sanitizing of records in the days that followed. The defense will recall Mr. Davies tomorrow morning at nine and Mr. Reisman tomorrow afternoon.”

On the spectator bench Reisman had heard his own name called for recall and had not moved.

Burger did not rise. The gavel came down on adjournment to Friday morning at nine.

Friday morning, the twentieth of August. Department Nine. The defense was into its eighth day.

Mason was at the defense table. Drake had met him on the steps and handed over the manila folder before the clerk called the matter; the folder sat now under Mason's left hand on the corner of the table.

Drake was two rows back in the gallery, hat on his lap. Lieutenant Tragg was at the back of the gallery near the door, hands in the pockets of the dark coat. Mason gave him a small acknowledgment with the chin. Tragg returned it.

Reisman was on the spectator bench in the modern-cut summer-weight suit, hands folded in his lap, no portfolio.

"The defense recalls Mr. Owen Davies."

The bailiff brought Davies in — in the Magnolia steward livery, black single-breasted club waistcoat over a white shirt and a dark tie. Tall, thin, mid-fifties, gray hair cut neat. The long fingers laid flat on the rail when he sat.

The clerk reminded him he was under previous oath. Mason established Davies as steward at the Magnolia Club twenty-six years, keeper of the steward's-book in the regular course of business — date column, member column, guest column, time column, steward signature column at the right margin, entries in his own hand.

"Mr. Davies. I show you a photostatted page that has been marked for identification as Defense Exhibit Eight."

Mason took the photostat from the manila folder. The bailiff carried the photostat to the witness stand and set it on the rail.

Davies took the page. Held it under the light from the high window.

"Do you recognize this photostatted page?"

"I do, Mr. Mason. It is a photostat of a page from the steward's-book at the Magnolia Club."

"What date does the page record?"

"Tuesday, the ninth of February, nineteen seventy."

On the spectator bench Reisman's brown eyes lifted to Davies once at the date and went back to the page on his lap.

At the defense table Hollister's eyes went to Davies behind the heavy frames.

"In whose hand are the entries on the page?"

"In my own hand, Mr. Mason."

"I draw your attention to the entry approximately halfway down the page. Read the entry into the record."

Davies took a moment to find the line.

"The entry reads, Mr. Mason. Member, Reisman, A. Guest, Bannon, H. Time, seven-forty."

"Did you make this entry in the steward's-book on the evening of Tuesday, the ninth of February, nineteen seventy?"

"I did."

"Are entries of this kind kept in the regular course of business at the Magnolia Club?"

"They are. Every guest signed in by every member every evening."

"Do you have any specific recollection of the lunch this entry records?"

"I do not, Mr. Mason. I sign in many members and many guests each evening. The entry is unambiguous and routine in my hand. The specific lunch I cannot recall."

"Move to admit Defense Exhibit Eight, Your Honor."

Burger did not rise.

"Defense Exhibit Eight is admitted," Whitcomb said.

“No further questions, Your Honor.”

Burger crossed to the lectern.

“Mr. Davies. You did not produce the photostat yourself.”

“I did not, Mr. Burger.”

“You authenticate the entries on the page against your own memory of the original.”

“I authenticate the entries, Mr. Burger, against the original volume kept in the steward’s office at the Magnolia. The entries are in my own hand.”

“No further questions, Your Honor.”

The bailiff escorted Davies out.

Reisman on the spectator bench had not moved. The brown eyes were back on the page on his lap.

The court adjourned at eleven-twenty for the lunch recess. At two o’clock Whitcomb returned to the bench.

Mason rose. Crossed to the lectern. Buttoned the jacket at the middle button.

“The defense recalls Mr. Arthur Reisman.”

The bailiff went to the spectator bench. Reisman stood. The bailiff took his elbow. They came up the center aisle to the witness stand. Average height, lean, sharp features, the dark hair silvered at the temples, the businessman’s pleasant blank in the brown eyes. The hands folded on his thigh.

The clerk reminded him he was under previous oath.

Mason at the lectern.

“Mr. Reisman. You testified during Mr. Burger’s case that on the evening of Tuesday, the sixth of July, of this year, you were at the Argonaut Pictures bungalow at Paramount from approximately seven-thirty through eleven, and that you did not leave the bungalow during those hours.”

“I did, Mr. Mason.”

“Mr. Marchese has testified before this court that your Cadillac returned to the parking lot at the Magnolia Club at approximately eleven-thirty that evening. Were you driving that Cadillac at approximately eleven-thirty that evening, Mr. Reisman?”

A small pause.

“I was, Mr. Mason. I drove from the Argonaut bungalow to the Magnolia briefly that evening on a personal errand.”

“You did not consider that worth mentioning during Mr. Burger’s direct.”

“It was personal, Mr. Mason. I did not consider it relevant.”

Mason did not argue.

“Mr. Beltran has testified that on the morning of Wednesday, July seventh, of this year — the morning Mrs. Hollister was found dead — you were at the Magnolia Club incinerator at six-thirty in the morning, putting items wrapped in newspaper into the fire personally. Were you at the Magnolia Club incinerator on the morning of Wednesday, July seventh, at approximately six-thirty AM?”

“I was, Mr. Mason. I had personal items to dispose of. I had left them in my locker at the club the prior evening.”

“Personal items wrapped in newspaper, Mr. Reisman?”

“Personal items, Mr. Mason. I do not recall the wrapping.”

“Why did you dispose of them personally rather than leave them for the staff?”

“I had time before my office hours. I was at the club. The incinerator was lit.”

“Mr. Beltran testified that you were the first member he had seen at the incinerator personally in twenty-three years.”

“I do not know what other members have done at the incinerator, Mr. Mason.”

Mason moved on.

“Miss Tate has testified that her gallery on Camden Drive in Beverly Hills received quarterly payments from Coastal Production Services beginning in June of nineteen sixty-nine and continuing through the second quarter of this year — approximately one hundred and forty thousand dollars in total. Were you aware of those quarterly payments?”

“I was aware of certain payments from Coastal Production Services to Miss Tate’s gallery. I understood them to be for art-advisory services.”

“The signature on the work-product invoices authorizing those payments is on the trial record. Whose signature is on the invoices?”

“Mine, Mr. Mason.”

“Each quarterly invoice from June nineteen sixty-nine through the second quarter of nineteen seventy-one. Your signature.”

“My signature, Mr. Mason.”

At the defense table the hand on the wood eased a degree.

On the witness stand the hands folded and unfolded on the thigh once. Folded again.

Mason squared the folder of foolscap on the lectern. The wall clock above the bench read two-forty-eight.

“Mr. Reisman. Had you ever met Mr. Bannon prior to this case?”

The brown eyes held the witness rail.

“I had not, Mr. Mason.”

At the defense table the jaw worked once and went still.

Mason did not move from the lectern.

He stood looking at Reisman until the pencils in the second row had stopped moving, until the bailiff at the side door from the witness room had stopped shifting his weight, until the press of the courtroom had grasped that some weight had settled in the well of Department Nine without yet knowing why, until Reisman on the stand had not unfolded his hands from

the rail for the longest count the witness had given the court in five court days.

Mason turned. Crossed to the defense table. Took Defense Exhibit Eight from the manila folder. Set the page in the bailiff's hand.

"Mr. Bailiff. To the witness stand, please."

The bailiff crossed the well. Set the photostat on the rail in front of Reisman. Mason at the lectern.

"Mr. Reisman. The photostatted page in front of you is Defense Exhibit Eight, admitted into evidence this morning. Mr. Davies has authenticated the entries on the page as being in his own hand and made in the regular course of business at the Magnolia Club."

Reisman lifted the page off the rail. Looked at it.

"I do not recall this lunch, Mr. Mason. I take many such meetings."

"Read the entry approximately halfway down the page into the record, Mr. Reisman."

A small pause.

"The entry reads, Mr. Mason. Member, Reisman, A. Guest, Bannon, H. Time, seven-forty."

"And the date of the entry."

"Tuesday, the ninth of February, nineteen seventy, Mr. Mason."

"Mr. Davies has authenticated this steward's-book page in his own hand. The page records that you signed Mr. Bannon in as your guest at the Magnolia Club on the evening of Tuesday, the ninth of February, nineteen seventy. Mr. Bannon testified from this witness stand on Wednesday that the first arrangement Mr. Hollister made for Mr. Bannon to provide a paid alibi was set up by Mr. Vito Petracca, then assistant director on Argonaut's *Crossfire* picture, coming down to Mr. Bannon on the western lot at Paramount one afternoon in the spring of nineteen seventy — three months after the entry on this page."

The shoulders on the witness stand set differently against the chair. The hands came off the thigh and went to the rail. The brown eyes flicked from the rail to the gallery once and came back. The pause before whatever might have been an answer was longer than any pause the witness had given the court in five court days.

At the defense table the dark eyes lifted from the table edge slowly. The hand on the wood eased open. The eyes went to the witness stand and held a beat and dropped to the wood again.

In the gallery two rows back from the rail the pale-blue droop deepened a fraction under Drake's hat brim.

At the steno pad behind the defense table Della's pencil paused. Her eyes lifted from the pad to Mason at the lectern and went to Hollister at her right and came back to Mason.

Mason at the lectern. Hands still on the slope.

"No further questions, Your Honor."

He crossed back to the defense table. Sat.

Whitcomb looked at Burger. Burger did not rise.

"You may step down, Mr. Reisman."

Reisman stepped down. The bailiff at the side door from the witness room had moved during the silence; he stood now at the rail. Tragg at the back of the gallery had moved to the gallery door. The bailiff escorted Reisman across the well toward the rail. Tragg waited at the door.

The wall clock above the bench read three-fifty-one.

Whitcomb looked at the prosecution table.

"Mr. Burger."

Burger rose. Set both hands on the prosecution table. The steel-rimmed glasses caught the ceiling light. He straightened the folder once.

"Your Honor. The People move that the indictment against Mr. Walter Hollister be dismissed in the interests of justice."

Burger sat.

Whitcomb let the room hold. Looked at the defense table. Looked back at Burger.

“The People’s motion is granted. The indictment is dismissed. Mr. Hollister, you are free to go. Court is adjourned.”

The gavel came down.

The bailiff at the side door from holding stood from his desk and crossed two steps toward the defense table out of nine days of habit, and stopped. He turned. He went back to his desk.

Mason stood up from the defense table. Hands at his sides.

Hollister stood. The chair pushed back. The charcoal three-piece settled on him. He looked at Mason once.

The hand came off the table edge for the first time in five trial weeks.

He turned to Mason. He put out his hand. Mason took it.

“Mr. Mason.”

Mason gave him a small nod.

Hollister turned to Della. Della had stood from her chair behind the defense table. The handbag was in her left hand.

“Miss Street.”

“Mr. Hollister.”

Hollister turned. He walked the length of the defense table. The bailiff at the side door from holding watched from his desk and did not move. The newspaper men in the second row turned to watch him pass. The spectators in the gallery turned. He walked up the center aisle of Department Nine.

The doors swung shut behind him.

Chapter 20

Tuesday morning, the twenty-fourth of August. Four days since the verdict. Mason at the desk in a gray three-piece, coffee at his elbow. Saturday's Times folded once at the corner of the desk where Della had set it down on Saturday morning, the verdict story above the fold. Spring Street under the corner traffic light at Spring and Sixth carried normal morning traffic.

Della was at the outer-office desk in a pale blouse, the steno pad open at the corner. Tuesday's Times on the corner of her desk, the verdict story moved now to an inside page.

The back-stairs door at the end of the hall clicked.

Drake came up through the outer-office door with a small brown paper bag in his left hand and his hat in his right. Tan suit. Tie loosened at the collar in the morning warmth. He set the bag on the corner of Della's desk and the hat on the rack.

"Petrakis on the way in, Della. The kid behind the counter said his uncle wanted to know if I was going to come back as a customer now that the trial was done, or whether I was going to stay a hat."

Della took the bag from him. Looked into it.

"And."

"I told him I had been a hat for six years and a customer for two weeks. The hat had longer standing."

"You did not tell him that."

"I told him I would have the same six tomorrow."

Della took two small white plates from the cabinet behind her desk. Set them on top of the bag. Brought all three through to the inner office. Drake was already through with the hat off and the visitor chair under him. Della set the plates and the bag on the corner of Mason's desk and took the wooden chair at Drake's left shoulder, the steno pad on her knee.

Mason took a glazed donut from the bag. Set it on the plate at his elbow. Took a small bite.

“All right.”

Drake reached into the bag and lifted out the second donut. Pale yellow icing.

“You caught him in the first ten minutes, Della. The man had a habit of subtracting five hundred dollars from a story before he was sure which story he was telling, and you caught it through a closed door from the outer office.”

“The door was open.”

“It was open by then. You opened it when you heard fifteen hundred.”

“He had paid two thousand, Paul.”

“That is what I am saying.”

“He had also eaten the sandwich Mr. Mason had left on the corner of my desk.”

“He had not been here twenty minutes.”

“He had been here ten.”

Drake half-smiled.

“He has been a client you get twice in a lifetime. Once if you are lucky.”

“Twice if you are not.”

Drake took a bite of the second donut. Chewed. Set it back on the plate.

“You count the bag, Della.”

“I count it. The kid counts it. We do not have to count it together.”

“The kid has been counting since July.”

“He has been counting since the last Friday in July. The Friday after Mr. Mason had the section twelve seventy-one hearing.”

“He has been counting.”

“The bakery has been our calendar, Chief. The kid behind the counter has been keeping the running total against the trial since July. He asked Paul in July if he wanted to put in a standing order.”

“I told him I would think about it after the trial.”

“He asked again two weeks ago.”

“I told him I would think about it after the trial.”

“He asked this morning.”

Drake’s eyes went to the donut and back.

“I told him I would let him know on Friday.”

Mason looked up.

“Friday.”

“I had to give him something, Perry.”

Della set her pencil down on the steno page.

“What was that thing with the Cadillac, Paul?”

“The Cadillac question.”

“That one.”

Della looked at Mason.

“Mr. Mason asked the Magnolia secretary at the procedural whether she was aware that Mr. Reisman had been seen driving in the Hollywood Hills in his Cadillac on the night of the murder. Mr. Burger objected on three grounds. Judge Whitcomb sustained on all three. The question went on the trial record.”

“And it stayed there.”

“It stayed there. Mr. Burger never did figure out which side that one was on.”

“He still does not.”

The corner of Mason’s mouth moved.

Drake glanced at Della and back at Mason.

“He read it as a defense fish.”

“He read it as a defense fish for three weeks.”

“Then he read it as a defense lock for one.”

“He has been reading it as something else since the verdict.”

“If he is reading.”

Drake took the third donut from the bag. The bag was lighter by half.

“That reminds me, Perry.”

“What?”

“There was a triple-rate clock running on Mr. Hennessey from the Sunday a week ago through the Friday.”

“All right.”

“I have not entered it into the books yet.”

“Enter it.”

“Triple, Perry.”

“Triple.”

“The guy is a son of a bitch, Perry.”

“He paid for himself, Paul.”

Drake looked at Della. He took a small bite of the third donut and set it back on the plate.

“He did.”

Della’s pencil paused on the steno page. She set it down on the pad. Looked at Mason.

“Has it been taken care of, Chief? Margaret’s mother at Beverly Manor?”

“It’s done.”

Drake had been about to lift the donut again and stopped. The donut stayed on the plate.

“How, Perry?”

Mason set the coffee cup down on the saucer. The cup made a small sound on the porcelain.

“Mr. Levine, at Levine, Coulter and Sokol. Three checks a quarter to the home directly. I went down to his office the Wednesday before the verdict and we drew up the standing instructions. They go out the first of every month starting the first of September. The home will not notice the difference.”

Drake set the donut down on the plate without lifting it.

“Mr. Levine.”

“Yes.”

Drake’s expression went level.

“All right, Perry.”

Della: “How long, Chief?”

“As long as she is at Beverly Manor.”

Della did not write. The pencil stayed on the pad. The eyes lifted to Mason once and went back to the page. Drake had not picked the donut back up.

The telephone on Della’s desk in the outer office rang.

Della stood. Went through to the outer office. Lifted the receiver from the cradle.

“Mr. Mason’s office. ... Yes. ... One moment please.”

She set the receiver on the desk and came back through to the inner office.

“Your front office, Paul.”

Drake stood. Took the hat off the rack on his way through and picked up the receiver in the outer office.

“Drake. ... All right. ... All right. ... All right.”

He set the receiver back on the cradle. Folded the top of the brown paper bag down with one hand and tucked the hat under the same arm. He looked through the open door to the inner office.

“Tomorrow, Perry.”

“Tomorrow, Paul.”

Drake went out through the front of the outer office. The front door clicked.

Della came back through to the inner office with the steno pad in her left hand and the appointment book in her right, the pencil tucked into the spiral of the pad. She set the appointment book on the corner of Mason’s desk and opened it to the page for today. Tapped the page once with the pencil.

“The appointment book, Chief.”

“The appointment book.”

Mason looked at the page. Set his finger on the first name.

“All right.”

Mason stood from the desk. Crossed to the inner-office window.

The corner traffic light at Spring and Sixth was on the red. A man in shirt-sleeves at the curb across the way folded the morning newspaper under his arm and waited for the change.